WILL OF KELSEY FEY BROWN

Prepared by:
Adam C. Flock
RMP LLP
Attorneys At Law
11601 Pleasant Ridge Road, Suite 101
Little Rock, Arkansas 72212

WILL OF KELSEY FEY BROWN

I, Kelsey Fey Brown, of Bentonville, Arkansas, make this my Will. I revoke all my prior wills and codicils.

1. **FAMILY DECLARATION.** 1.1 Husband and Children. I am married to Nicholas Lynn Coleman ("Nick"). Nick and I have no children at the time of execution of this Will.

2. **ESTATE DISTRIBUTION.** 2.1 Personal Items. At my death, my Executor will distribute my Personal Items (7.3.2) as directed in the list or writing that bears my signature or is in my handwriting (if any). I give the remainder of these items to Nick if he is then living, or if not, these items will be transferred to my trustee under paragraph 2.2 and held and distributed for my descendants.

2.2 Remaining Property. I give My Remaining Property (7.3.1) to the trustee of the Kelsey Brown Revocable Trust (the "Trust") created under the Kelsey Brown Revocable Trust Agreement dated January 30, 2025 (the "Agreement"), to be held in trust under the terms of the Agreement as it exists at my death (which refers to the Agreement as amended or restated). In the alternative, if for any reason the Kelsey Brown Revocable Trust does not exist at the time of my death, or if for any reason a court of competent jurisdiction declares the previous disposition to the trustee of the Kelsey Brown Revocable Trust as it exists at the time of my death to be invalid, then I incorporate by reference into this Will the terms of the Agreement in effect this date and I give my Remaining Property to the trustee of the Kelsey Brown Revocable Trust to be held in trust under those terms. To the extent permissible, I intend that the Kelsey Brown Revocable Trust be administered as a private (rather than a testamentary) trust and that the Kelsey Brown Revocable Trust (including any property added to it by this paragraph 2.2) will not be subject to the jurisdiction of any probate court.

3. **EXECUTOR** 3.1 List. I appoint the first person set forth in the following list to serve as executor of this Will and my probate estate ("Executor"):

(1) Nicholas Lynn Coleman;
(2) Arvest Trust Company.

If a person is unable or unwilling to serve, resigns or ceases to serve as Executor for any reason, the first person set forth in the previous list (starting in order again) who is willing and able to serve will become Executor.

3.2 Ancillary Administration. In the event that an ancillary administration of my probate estate is needed outside of my domicile for any reason, if my Executor is permitted to qualify in the other jurisdiction, I appoint my Executor as ancillary executor in that jurisdiction. If my Executor is unable or unwilling to qualify in the other jurisdiction, then I appoint as my ancillary executor in that jurisdiction the person selected by my Executor in writing. Except to the extent that the following powers, privileges and status are not allowed under the other jurisdiction, my ancillary executor will have:

(1) those powers granted to my Executor under this Will;
(2) those privileges and the status given my executor under this Will (*e.g.*, no requirement to post bond);

KB

(3) those powers that are inherently granted in the other jurisdiction to executors or that may be granted by reference to the statutory powers statutes of the other jurisdiction (which statutes are incorporated by reference) to the extent that those powers are not inconsistent with the powers, privileges and status under this Will;

My ancillary executor will administer the assets of my probate estate in the other jurisdiction and turn these assets over to my Executor as soon as practical and as appropriate.

3.3 Bond. My executor will not be required to give bond or other security in any jurisdiction. If despite this exoneration a bond is required for any reason, no sureties will be required.

3.4 Acts of Others. No executor will be liable to anyone for anything done or not done by any other executor.

3.5 Successor. A successor executor has the same position with its powers and duties as the prior executor without additional title transfer. A person will become successor executor according to law after acceptance of the position of executor in writing.

3.6 Vote. Except as specifically otherwise limited by this Will, (A) reference to the Executor refers to all those acting from time to time as an executor and, (B) if two or more executors are eligible to act on a given matter, they will each have one vote and will act by majority. The vote will bind the estate and its beneficiaries and may be relied upon by persons involved in transactions with respect to the estate.

4. **GUARDIAN**. 4.1 Requested Persons. If both Nick and I are deceased and it should be desirable to appoint a guardian of any child of mine, then I nominate Yvonne Louise Westfall to serve as such guardian without the requirement of a bond. If Yvonne Louise Westfall is unable or unwilling to serve or continue serving as guardian hereunder, I nominate Christopher William Coleman to serve as such guardian without the requirement of a bond. If both Yvonne Louise Westfall and Christopher William Coleman are unable or unwilling to serve or continue serving as guardian hereunder, then I nominate Joy Bonady Shepherd to serve as such guardian without the requirement of a bond.

4.2 Reimbursement. I intend that the guardian not bear the financial burden of room, board, medical, or other expenses incurred by my child living with the guardian. Accordingly, if the guardian does not have a duty of support, it is my request that he or she be reimbursed from the assets of any trusts created by me for the child for any payments that have been made for that child's benefit.

5. **ADMINISTRATION.** 5.1 Fiduciary Powers. Except to the extent inconsistent with other specified powers or as limited by this Will, the following powers will be exercisable without court authority by the Executor:

(1) to buy, sell, lease, convey, grant security interests in, mortgage and pledge estate assets (real or personal property) on terms (that include periods that start in the future or extend beyond the term of a related trust unless otherwise limited by perpetuity limitations) that the executor determines advisable (with or without notice at either

KFB

public or private sale and subject only to those confirmations and other requirements of local law and courts which may not be waived by my direction), including with respect to any warranties or indemnifications;

(2) to access, handle, distribute and dispose of my digital assets which will include files stored on my digital devices, including but not limited to, desktops, laptops, tablets, peripherals, storage devices, mobile telephones, smartphones, and any similar digital device which currently exists or may exist as technology develops or such comparable items as technology develops and for this purpose the term "digital assets" also includes but is not limited to emails received, email accounts, digital music, digital photographs, digital videos, software licenses, social network accounts, file sharing accounts, financial accounts, domain registrations, DNS service accounts, web hosting accounts, tax preparation service accounts, online stores, affiliate programs, other online accounts and similar digital items which currently exist or may exist as technology develops or such comparable items as technology develops, regardless of the ownership of the physical device upon which the digital item is stored;

(3) (a) to hold and retain any estate assets in the form received (including by continuation of a sole proprietorship or other business form);

(b) to invest and reinvest estate assets in all forms of real and personal property, which includes:

(i) investment or reinvestment in loans, bonds, notes, futures, stock or other securities of any kind, shares or participating interests in any common trust fund of any corporate trustee, mutual funds and other forms of joint investment (that may be managed by, advised by or affiliated with a trustee), insurance, annuities, real estate, mortgages, real estate trusts, partnerships, mutual funds, venture capital or other private equity, leveraged or speculative funds, closely held businesses, tax shelters, foreign assets, oil and gas and other natural resource interests, equipment, commodities, currencies, collectibles, precious metals or other real or personal property of any kind considered appropriate in executor discretion, and

(ii) investment or reinvestment by organization, operation and dissolution of businesses as corporations, sole proprietorships, general or limited partnerships, limited liability companies, business trusts, joint ventures or other forms (with authority to elect to a board of directors any individual executor or officer or employee of any corporate executor or an affiliated entity, to pay premiums on liability insurance maintained for any such individual executor or officer or employee acting as a director and to receive additional compensation in respect of this service);

(c) to exercise all options, rights and privileges to convert stocks, bonds, notes, mortgages or other property into stocks, bonds, notes, mortgages or other property, subscribe for additional other stocks, bonds, notes, mortgages or other property and make such conversions and subscriptions and payments for such conversions and subscriptions and hold such stocks, bonds, notes, mortgages or other property so acquired as investments of the trust;

KB

(4) to trade in securities, including by options, short sales, futures and on margin, and to maintain margin accounts and pledge securities held by the executor for loans and advances to the probate estate;

(5) to borrow from any source (including from an executor individually) and mortgage or pledge any estate assets;

(6) to permit and engage in the use and severance of natural resources (including oil, gas, ore, coal, timber and other minerals and resources) as an owner of real property in which such natural resources are situated, as a lessee, licensee, partner or joint venturer in respect of such use and severance, or as a holder of any royalty, interest or miscellaneous right involving such use and severance, and in so doing, to secure appraisals and geological surveys and studies, make pooling and unitization agreements, make agreements involving the installation or operation of absorption, repressuring or other processing plants, pay delayed rents, lease bonuses, royalties and overriding royalties, drill, rework or recomplete wells, test, explore, treat, mine, produce, recover, process, store, transport and market any minerals or other natural resources, pay all reasonable expenses, employ, supervise and discharge independent contractors and employees and take any other action necessary or desirable in order to use and sever natural resources;

(7) to enter into underwriting, purchase and stockholder deposit agreements, sign prospectuses, sign and file registration statements, give powers of attorney to sign registration statements, execute bonds and take any other action necessary to register and sell securities;

(8) to apply estate assets otherwise distributable to a beneficiary to the use of or for the benefit of the beneficiary, and for a beneficiary under age 21 or legal disability, to transfer the assets to a custodian for the beneficiary under a transfer to minors act or the legal guardian of the beneficiary's estate;

(9) to make allocations and distributions of estate assets in cash or in specific property (including undivided interests), or both, which are not *pro rata* in character of assets and without regard to the income tax basis of specific property allocated or distributed;

(10) to litigate, submit to arbitration, compromise, adjust or settle claims against or on behalf of the probate estate and execute agreements, deeds, releases and other documents connected with such action;

(11) to retain or take title to any estate assets held as executor in bearer form or in the name of any custodian or nominee, without disclosing this relationship;

(12) to the extent not inconsistent with the above powers, the powers set forth in Ark. Code Ann. §28-69-304(1)-(38) as enacted at this date (which are designated as paragraphs "a" through "ff" of Section 3 of Act 153 of the 1961 Acts of the General Assembly of Arkansas and as paragraphs "(33)" through "(38)" of Section 1 of Act 421 of the 1993 Acts of the General Assembly of Arkansas) which are incorporated in this Will by reference.

These powers may be exercised without regard to any fiduciary requirement concerning nature of legal investments and without liability for lack of productivity, decline in value or lack of diversification, and if the Executor disposes of assets, without liability for loss resulting from any increase in the value of the assets after disposition.

KB

5.2 Principal and Income. Except to the extent the Executor is otherwise restricted by the tax-sensitive or other transfer tax limitations of this Will, for income tax purposes, the Executor has the discretion to allocate capital gains to distributable net income on the books, records and income tax returns of the estate. Otherwise, the determination of all matters with respect to what is principal and income of the probate estate and the allocation of receipts, disbursements and other charges between these accounts will be governed by Arkansas law as it exists from time to time. I incorporate for this purpose any required statutory reference to the Arkansas principal and income statutes.

5.3 Delegation. If permitted by law, one executor may in writing delegate to another executor the exercise of any power held by that executor (but only if the other executor is permitted to exercise the power delegated). Even though revocable, the delegating executor will have no responsibility concerning exercise of the delegated power while the delegation is in effect.

5.4 Compensation. The Executor will be entitled to receive reimbursement for expenses reasonably incurred in administering the probate estate. If an individual serves as Executor, he will by acceptance of the position of executor have waived his compensation for executor services. This waiver may be revoked at any time by this individual for services not yet rendered and this individual Executor will then receive reasonable compensation for executor services. A corporate Executor will receive reasonable compensation for executor services (as approved by any then trustee changer of the Kelsey Brown Revocable Trust, or if none, the adult beneficiaries of the Kelsey Brown Revocable Trust, or if none, the applicable court).

5.5 Investment. The Executor may employ, appoint, rely on the advice of and pay reasonable compensation to investment counsel, accountants, attorneys and other professional advisers and agents, attorneys-in-fact, employees and other similar persons the Executor deems reasonably necessary for proper estate administration, without affecting the fees otherwise payable to the Executor. The Executor may delegate discretionary investment authority over investments to investment counsel. The Executor may acquire and retain investments that present a higher degree of risk than would normally be authorized by the "prudent person" rule, with no investment type being prohibited regardless of the risk or speculation. The Executor may retain and acquire property that does not produce income subject to other restrictions or qualifications of this power elsewhere under this Will.

5.6 Conflicts. The fact that the Executor may have conflicting fiduciary and individual interests in a transaction, or may otherwise be interested in a transaction other than as executor, will not be the basis for preventing the Executor from exercising powers with respect to a transaction and the Executor may enter into the transaction so long as it is fair to the probate estate. This recognition of perceived conflict does not relieve the Executor of the fiduciary duties of the position, nor does it reduce them in any manner. Subject to the fairness requirement, this recognition permits:

(1) purchases and sales of investment through a corporate executor or firm of which an executor is a partner, shareholder, proprietor, associate, employee, owner, subsidiary, affiliate or the like and investment in individual securities, mutual funds, partnerships, private placements or other forms of investment promoted, underwritten, managed, or advised by an executor or such a firm;

(2) an executor (or a firm of which an executor is a member or with which an executor is otherwise affiliated) to render accounting, legal or other professional services for

the probate estate and to receive both fees for these services and for services as executor unless specifically limited by law.

This recognition also waives the rules of law prohibiting self-dealing between the Executor in a fiduciary capacity and the Executor in an individual capacity, entities with which the Executor may be affiliated in an individual capacity, or entities in which the Executor may have an interest in an individual capacity, but all such transactions will be at arm's length. The intent of this paragraph 5.6 is: (a) to relieve the Executor of any liability for decisions or actions that would constitute self-dealing by a fiduciary if such decisions or actions are made in good faith and (b) to keep a transaction made by the Executor in good faith from being void or voidable by a beneficiary pursuant to the duty of loyalty or similar standard otherwise applicable to the Executor.

5.7 Marital Deduction Administration Matters. The Executor may not exercise any power or discretion in any manner that would infringe upon any legal requirement for the allowance of the marital deduction with respect to the transfer of property to Nick outright, in trust for his benefit or otherwise. It is my intent that each marital trust created under the Agreement (if any) will either qualify for the marital deduction without election, or if designed as a QTIP trust, will qualify for the marital deduction as qualified terminable interest property in the event of the QTIP election by the Executor (which election is exercisable in the discretion of the Executor). All of my Will provisions will be construed consistent with this intent.

5.8 Property Insurance. Property transferred by this Will includes any insurance policies on the property or policy proceeds.

5.9 Tax Elections. The Executor may make any elections or allocations available under tax laws an executor is permitted to make.

5.10 Release of Power. The Executor may irrevocably release one or more powers held by the Executor in the position while retaining other powers. This release will be binding on similarly situated successor executors if designated in the release document.

5.11 Nature of Executor Action. Each power, authority, discretion, action or nonaction of an executor is exercisable only in a fiduciary capacity and may not be used by the Executor to enlarge or shift any beneficial interest except as an incidental consequence of the discharge of fiduciary duties *and* it is my intent that an interested executor will not be deemed for transfer tax purposes to possess tax-sensitive powers (such as a taxable power of appointment) as a result of a fiduciary power, authority or discretion under this Will. Judicial review of executor authority, discretion, action or nonaction will be made under a "good faith" standard of review and subject to correction by a court if the Executor should act without reason, in bad faith or in violation of specific terms of this Will unless this review standard would contradict this intent of my estate plan. Otherwise, I want the Executor to have as much discretion as is consistent with my intent of no unintended transfer taxation. Attorney fees and costs will be reimbursed to this Executor for the defense of a judicial review or other action if a final determination is made by a court or the moving party acknowledges that the Executor did not act or fail, choose or refuse to act without reason or in bad faith. These fees and costs may be advanced at the Executor's request if the advance must be returned without interest in the event of a final court finding of without reason or bad faith. The indemnity granted under this Will is in addition to any and all rights to indemnity implied by law.

6. **DEBTS, COSTS & TAXES.** 6.1 Charges. The Executor will pay or provide for the payment of my funeral, burial and last illness expenses, the costs of the administration of my probate estate, enforceable claims and similar charges (which do not include debts described in paragraph 6.4) from the residue of my probate estate. Subject to the apportionment described in paragraph 6.2, the Executor will pay or provide for the payment of Transfer Taxes (6.2.1) from the residue of my probate estate. The Executor may require that the Trustee of the Kelsey Brown Revocable Trust (before its division into further trusts, if applicable) provide all or part of the funds required for these items. The Executor may require the Trustee of the Kelsey Brown Revocable Trust to pay these items directly to third parties for the benefit of my probate estate and avoid probate jurisdiction over them.

6.2 Taxes. 6.2.1 Transfer Taxes Defined. "Transfer Taxes" means all estate, inheritance and other similar transfer taxes (including interest, penalties and any excise or supplemental taxes) assessed at the time of or by reason of my death on my probate estate, a trust or any person (regardless of whether the property with respect to which these taxes are levied passes through my probate estate or not), but does not include:

(1) Code §2032A(c), Code §2057(f) or other similar recapture taxes;
(2) generation-skipping transfer ("GST") taxes other than GST taxes attributable to direct skips of which I am the transferor.

The taxes described in phrases 6.2.1(1) and 6.2.1(2) will be paid as directed by federal law.

6.2.2 Certain Apportionment. Transfer Taxes described in the following clauses will be apportioned as follows and attributed to the classes of property as set forth in subparagraph 6.2.3:

(A) estate or similar taxes attributed to property included in my gross estate that is received as a result of a qualified disclaimer will be paid by the recipient(s) of the disclaimed property;
(B) estate or similar taxes attributed to any part of a transfer of property that otherwise could constitute qualified terminable interest property under Code §2056(b)(7) for which the marital deduction is not allowed (for any reason, including a decision not to elect QTIP treatment) will be paid by the recipient(s) of the nonelected property subject to the following exception: to the extent applicable, these estate or similar taxes will be paid by the recipient of the nonexempt Marital Share to the extent of its assets, with any remaining amount paid by the recipient of the exempt Marital Share;
(C) estate or similar taxes attributed to Included Gift Taxes (6.2.3(2)) will be paid by the recipients of the gifts, with each recipient of property that produced gift tax includible in my gross estate under Code §2035(b) being treated as having received the amount of the gift tax for apportionment calculation purposes;
(D) if I predecease Nick, GST taxes attributed by federal law to a direct skip of which I am the transferor will be paid by the recipients of the property;
(E) if I survive Nick, GST taxes attributed by federal law to a direct skip of which I am the transferor and that are caused by a qualified disclaimer by a nonskip person will be paid by the recipients of the property;
(F) estate or similar taxes attributed to all Code §2044 property will be apportioned first to the Code §2044 property with the highest GST tax inclusion ratio that is other than

KB

zero, then to the Code §2044 property with the next highest GST tax inclusion ratio that is other than zero, and so on only as to Code §2044 property with a GST tax inclusion ratio that is other than zero, and will be paid by the trustee holding the property or the recipient of the property, as applicable;

(G) if I predecease Nick, estate or similar taxes attributed to any other property included in my gross estate that does not qualify for the marital, charitable, qualified family-owned business interest or other similar deduction other than the property excepted from this apportionment by subparagraph 6.3 will be paid by the recipients of the property.

6.2.3 Attributable Estate Taxes. The estate or similar taxes attributable:

(1) to Code §2044 property is the difference between (a) the total estate or similar taxes incurred by my estate and (b) the estate or similar taxes that would have been incurred if there were no Code §2044 property;

(2) to any gift taxes that will be included in my gross estate by Code §2035(b) (referred to as "Included Gift Taxes") is the difference between (a) the total estate or similar taxes incurred by my estate, less the estate or similar taxes described in phrase 6.2.3(1) and (b) the estate or similar taxes that would have been incurred if there were no Code §2044 property or Included Gift Taxes;

(3) to the remaining property listed in subparagraph 6.2.2 is the difference between the total estate or similar taxes incurred by my estate less the estate or similar taxes described in phrase 6.2.3(1) and phrase 6.2.3(2).

Except as otherwise directed in subparagraph 6.2.2, if there is more than one recipient of the described property to which tax is apportioned, each recipient or holder of the described property will pay or have apportioned to him a proportionate share of the applicable estate or similar taxes based on the value as finally determined for federal estate tax purposes of the described property received compared to the total value of the described property to which this estate or similar tax is apportioned.

6.2.4 Reimbursement. It is my intent to apportion taxes as described in this paragraph 6.2. The Executor will assert only the rights to reimbursement under Code §§2206, 2207, 2207A, 2207B, 2603 and similar provisions enacted after execution of this Will that are necessary to accomplish this apportionment. I expressly waive all rights of reimbursement that are not consistent with my directed apportionment and this waiver is binding on my Executor, probate estate and other successors in interest to me.

6.3 Property Excepted from Apportionment. My Personal Items (7.3.2), whether a part of my probate estate or held by the trustee of the Trust will not bear any Transfer Tax.

6.4 Liens. Property transferred by this Will which is pledged (by mortgage, security interest or other lien) as security for any debt will be transferred subject to the debt (after application of any applicable credit life insurance proceeds) without reimbursement of any kind from my probate estate.

7. **OTHER**. 7.1 Survivorship. 7.1.1 Marital. If Nick and I should die simultaneously or under circumstances in which it cannot be determined which of us died first, it will be presumed for

KB

all purposes under this Will (and for the other situations for which a survivorship declaration is relevant and valid that I have not otherwise specifically addressed in a writing and for which I am allowed to address by this survivorship presumption) that I survived Nick.

7.1.2 GST. An individual (the "nonskip person") will be deemed to have not been alive on my death under this Will if this nonskip person is alive on my death but is not alive on the 90th day after my death and the existence of this condition of survivorship causes another individual who would otherwise be assigned to a generation below that of the nonskip person to be assigned to the generation of the nonskip person for GST tax purposes.

7.2 No Pretermission. I recognize at the date of the execution of this Will that it is possible that I might have other children, through adoption or otherwise. I *have not* failed to provide for this possibility under this Will unintentionally. I have provided for these possible children and their descendants under the terms of the Agreement. Any such children and their descendants will therefore not be considered "pretermitted" for probate or similar law purposes and may not take against this Will. I intend that all of my descendants, current or future, be provided for under the Agreement.

7.3 Certain Definitions. 7.3.1 My Remaining Property. The phrase "My Remaining Property" means that portion of my probate estate which will remain after making (1) the distributions described in paragraph 2.1 that do not lapse and (2) payment of (or provision for) the charges and taxes described in Section 6. Use of this phrase does not exercise any powers of appointment which I have.

7.3.2 Personal Items. The phrase "Personal Items" means my tangible personal property that is of a personal or household nature not held for investment or business purposes such as jewelry, silver, china, books, pictures, sporting goods, guns, tools, clothing, household furniture and furnishings, personal motor vehicles, recreational vehicles and boats, together with any unexpired insurance on this property and any resulting proceeds from this insurance, and subject to any encumbrances. If multiple lists or writings refer to an item, the most recent reference will control.

7.4 Construction. 7.4.1 Gender, Number, Person. Words expressed in gender and number will include other genders and numbers in proper context. Use of the word "person" refers to both natural persons (*i.e.*, individuals) and artificial persons (*e.g.*, corporations, partnerships, *etc.*) as appropriate to the context.

7.4.2 Headings. Headings are for convenience, are not part of this Will and cannot be used in a construction of it.

7.4.3 Capitalized Words. The generic use of an uncapitalized word or phrase includes within that use in proper context a defined word or phrase that is noted by capitalization. For example, reference to "executor" includes and refers to the Executor or an ancillary executor in proper context. Reference to "Executor" includes the initial, successor and substitute position holders.

7.4.4 Corporate Executor. Reference to "corporate executor" refers to a person with fiduciary powers that is not an individual and to the successors in interest to this person's business. A successor in interest to a corporate executor will continue to act as executor.

7.4.5 Tax Terms and Sections. Words or phrases related to taxation will be construed in the context of the federal revenue laws in effect at my death. References to "Code §" are to provisions of the Internal Revenue Code of 1986 as in effect at the date of this Agreement and to applicable successor provisions of this or other federal revenue codes.

7.5 Pages. My Will consists of 11 typewritten pages which are sequentially numbered and identified in the lower right hand corner of each page. I have signed this page this date.

DATED: February 4, 2025

Kelsey Fey Brown

This Will has been signed, published and declared by Kelsey Fey Brown as her Will in our presence and we have at her request, in her presence and in the presence of each other written our names as witnesses this February 4, 2025.

Hunter Bedell

Robin Veenhuis

PROOF OF WILL

STATE OF ARKANSAS

COUNTY OF WASHINGTON

We, Hunter Bedell and Robin G. Veenhuis state on oath that:

1. We are the subscribing witnesses to the attached written instrument dated February 4, 2025, and signed by **Kelsey Fey Brown** as her Will, who in our presence signed the Will at the end or acknowledged her signature, declared it to be her Will and requested that we attest her execution of it. We then in her presence and in the presence of each other, each signed our names as attesting witnesses where our signatures appear beneath the attestation clause.

2. At the time of the execution and attestation of the Will, **Kelsey Fey Brown** appeared to be more than 18 years of age, of sound mind and memory and acting without undue influence, fraud or restraint.

Hunter Bedell

Hunter Bedell

Robin G. Veenhuis

Robin G. Veenhuis

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day personally appeared before me, the undersigned, duly commissioned, qualified and acting Notary Public within and for this County and State, Hunter Bedell and Robin G. Veenhuis, to me well known who stated to me under oath that they were the attesting witnesses to the Will of **Kelsey Fey Brown**, the original (or true copy) of the testamentary instrument that is attached to this Proof of Will, and the statements contained in this Proof of Will are true.

Dated: February 4, 2025

Mackenzie Smith

NOTARY PUBLIC

My commission expires:

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

RESERVED FOR RECORDER

DURABLE FINANCIAL POWER OF ATTORNEY

I, Kelsey Fey Brown, of Bentonville, Arkansas, create this durable financial power of attorney. Each attorney-in-fact agrees by assumption of the attorney-in-fact position to the terms of this power of attorney.

1. **AGENT**. 1.1 Grant of Financial Power of Attorney. Pursuant to this power of attorney, I grant my agent ("Agent") a durable financial power of attorney.

1.2 Designation of Agent. 1.2.1 I appoint Nicholas Lynn Coleman to serve as my Agent. Nicholas Lynn Coleman will serve as my Agent during any period of time that Nicholas Lynn Coleman is not incapacitated (4.1) and is willing to serve as my Agent.

1.2.2 If Nicholas Lynn Coleman becomes incapacitated, resigns or ceases to serve as my Agent for any reason, I appoint Yvonne Louise Westfall to serve as my Agent during this period of time and until Nicholas Lynn Coleman is able and willing to again serve as my Agent. If Yvonne Louise Westfall becomes incapacitated, resigns, or ceases to serve as my Agent for any reason, I appoint Joy Bonady Shepherd to serve as my Agent during this period of time and until Nicholas Lynn Coleman or Yvonne Louise Westfall are able and willing to serve again as my Agent.

1.3 Substitution. The individuals who are serving as my Agents at any point in time will have the authority to substitute one or more persons as one of my Agents or as sole Agent in the above list and define the terms of this substitution.

1.4 Joint Agent Action. The Agents designated to serve jointly must act unanimously.

2. **DURATION**. 2.1 Effective Date. This durable financial power of attorney is effective this date.

2.2 Revocation. This power of attorney may be revoked by me at any time.

2.3 Durability. This is a durable power of attorney and it will not be affected by my disability, incompetence or other incapacity. My Agent will be able to exercise the authority given, notwithstanding my subsequent disability, incompetence or other incapacity.

3. **AUTHORITY**. 3.1 Powers. My Agent will have complete authority to manage and control all of my real property as my Agent determines appropriate, including the following powers:

(1) to buy, sell, lease, gift, convey, mortgage, pledge and grant security interests in any of my real property on such terms and conditions as my Agent deems advisable, and to execute any instruments (including a release or discharge of any mortgage,

security interest or other lien) and give any warranties or indemnifications that my Agent deems useful in effecting such transactions;

(2) to manage, repair, improve, maintain, restore, build, develop or abandon any of my real property.

This grant is a general power of attorney as to my real property affairs. The list of example powers does not limit this general authority.

4. **OTHER**. 4.1 Governing Law. This power of attorney is intended to be valid in any jurisdiction in which it is presented and will be governed by and construed according to Arkansas law.

4.2 Construction. 4.2.1 Gender, Number, Person. Words expressed in gender and number will include other genders and numbers in proper context. Use of the word "person" refers to both natural persons (*i.e.*, individuals) and artificial persons (*e.g.*, corporations, partnerships, *etc.*) as appropriate to the context.

4.2.2 Headings. Headings are for convenience, are not part of this document and cannot be used in a construction of it.

4.2.3 Capitalized Words. The generic use of an uncapitalized word or phrase includes within that use in proper context a defined word or phrase that is noted by capitalization. For example, reference to "attorney-in-fact" includes the Agent and to "Agent" includes initial, successor and substitute (if authorized) attorneys-in-fact, in proper context.

4.3 Counterparts. Any person may rely on a copy of this executed document certified under oath by my Agent to be a true copy of the original executed document.

4.4 No Inquiry. Every person to whom this power of attorney or a certified copy of it is presented may honor and give effect to all instruments signed pursuant to its authority without inquiring into the circumstances surrounding the instruments or into the disposition of any property delivered to my Agent. Such person will have no responsibility to determine that my Agent properly applied or handled property received or held by my Agent or to see to the proper discharge of my Agent's duties under this document.

4.5 Expenses. My Agent will be entitled to reimbursement for all reasonable expenses incurred as a result of acting as my attorney-in-fact.

4.6 Ratification of Agent's Acts. I ratify and confirm all that my Agent does or causes to be done, and I exonerate my Agent from liability for acts or omissions that are not gross negligence, fraud or criminal.

DATED: February 4, 2025

Kelsey Fey Brown

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the person whose name is subscribed to this Durable Financial Power of Attorney, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that she had executed and given this Durable Financial Power of Attorney as set forth.

Dated: February 4, 2025

NOTARY PUBLIC

My commission expires:

_____

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

DURABLE FINANCIAL POWER OF ATTORNEY

I, Kelsey Fey Brown, of Bentonville, Arkansas, make this durable financial power of attorney pursuant to the Uniform Power of Attorney Act (Ark. Code Ann. Section 28-68-101, et seq.) ("Act"). Each agent acting under this durable financial power of attorney agrees by assumption of the agent position to the terms of this power of attorney and will serve as my agent pursuant to the Act.

1. **AGENT**. 1.1 Grant of Financial Power of Attorney. Pursuant to this power of attorney, I grant my agent ("Agent") a durable financial power of attorney.

1.2 Designation of Agent. 1.2.1 I appoint Nicholas Lynn Coleman to serve as my Agent. Nicholas Lynn Coleman will serve as my Agent during any period of time that Nicholas Lynn Coleman is not incapacitated (4.1) and is willing to serve as my Agent.

1.2.2 If Nicholas Lynn Coleman becomes incapacitated, resigns or ceases to serve as my Agent for any reason, I appoint Yvonne Louise Westfall to serve as my Agent during this period of time and until Nicholas Lynn Coleman is able and willing to again serve as my Agent. If Nicholas Lynn Coleman and Yvonne Louise Westfall become incapacitated, resign or cease to serve as my Agent for any reason, I appoint Joy Bonady Shepherd to serve as my Agent during this period of time and until either Nicholas Lynn Coleman or Yvonne Louise Westfall are able to serve again as my Agent.

1.3 Substitution. The individuals who are serving as my Agents at any point in time will have the authority to substitute one or more persons as one of my Agents or as sole Agent in the above list and define the terms of this substitution.

1.4 Joint Agent Action. The Agents designated to serve jointly must act unanimously.

2. **AUTHORITY**. 2.1 General Authority Grant. My Agent will have the authority to do all acts that I could do myself unless the action or nonaction of my Agent is prohibited by the Act without my specific authorization in this power of attorney and I have not granted that authorization in paragraph 2.2 below. My Agent will have the general authority to manage and control all of my property, real or personal, tangible or intangible, and my financial affairs as my Agent determines appropriate. This general authority includes the authority of my Agent to take the following described action or nonaction on my behalf:

(1) continue, modify and terminate financial and other accounts in my name at any time in person, by mail, online or other method and establish, modify and terminate new financial and other accounts in my name at any time in person, by mail, online or other method, deposit money into, withdraw money from, pay balances due under or otherwise deal with these accounts by check, order, electronic funds transfer or otherwise, which accounts include checking, savings, credit union or other accounts with any bank, trust company, savings and loan association, credit union, thrift company, brokerage firm or other financial institution, internet service provider, retail vendor, utility company, telephone company, email service provider, airline or other person with whom accounts of any type are created;

(2) apply for, receive and use letters of credit, credit and debit cards, electronic transaction authorizations and traveler's checks from a financial institution and give an indemnity or other agreement in connection with letters of credit;

(3) receive, assign and collect currency to which I am entitled and make, assign, draw, endorse, discount, guarantee and negotiate promissory notes, checks, drafts and other negotiable or nonnegotiable instrument of mine or payable to me or my order, transfer money and receive cash or other proceeds with respect to these transactions and accept drafts drawn on me by a person and pay promissory notes, checks, drafts or other negotiable or nonnegotiable instrument when due;

(4) buy, sell, lease, sublease, convey, receive, manage, develop, alter, replace, repair, improve, maintain, restore, build, develop, abandon, use, remove, partition, divide, alter, exchange, insure, accept as a gift, change the form of title to, conserve, accept or reject an interest in or right incident to, mortgage, pledge and grant security interests in and otherwise deal with any of my property of any kind or with property of any kind in which I claim an interest, demand and accept security interests granted to me in property of any kind, with all of this action or nonaction with respect to this property being on those terms and conditions as my Agent determines advisable, which includes the execution of any instruments (including a deed or release or discharge of any mortgage, security interest or other lien) and the giving of any warranties or indemnifications that my Agent deems useful in putting these transactions into place and in maintaining them;

(5) borrow and lend money with interest rates, security, loan duration and other terms determined advisable by my Agent, and pledge as security any or all of my property necessary to borrow money, and pay, renew or extend the time of payment of any current or future debt or mine or other debt guaranteed by me;

(6) access, use, modify, receive, delete, control and otherwise deal with my electronic communications, other digital assets, information and records as these items of property are defined under Ark. Code Ann. Section 28-75-102 and this access, use, modification, receipt, deletion, control and other authority to deal with these items of property will include all right and authority under the Arkansas Revised Uniform Fiduciary Access to Digital Assets Act (Ark. Code Ann. Section 28-75-101, et seq., and any successor statutes) and the right and authority to: (a) change my username and password as necessary to gain access to my digital and other accounts, information and records, (b) open new digital and other accounts and modify or close these accounts, (c) access, use and control my desktops, laptops, tablets, peripherals, mobile telephones, smartphones, digital storage hardware and other types of digital devices which currently exist and future such digital devices which come into being as technology develops for the purpose of accessing, modifying, deleting, controlling, transferring or otherwise in any manner dealing with my digital assets, information and records and (d) access, modify, delete, create, control, transfer and otherwise deal with received and sent emails, email accounts, digital music, digital photographs, digital videos, software licenses, social network accounts, file sharing accounts, financial accounts, domain registrations, DNS service accounts, web hosting accounts, tax preparation service accounts, online store accounts, affiliate programs, airline accounts, other online accounts and any other electronic communications, other digital assets, information and records of mine which currently exist or may exist in the future;

(7) invest, reinvest, buy, sell, exchange, assign, settle, exercise, pledge for my debt, modify, establish, terminate and continue with respect to any and all of my funds and other assets in any type of investment or investment account, including blockchain assets, corporate obligations of every kind, preferred or common stocks, securities of any regulated investment trust, partnership interests, limited liability company member interests, U.S. bonds redeemable at par in payment of federal estate tax liabilities and futures contracts and call or put options on stock or stock indexes traded on a regulated option exchange;

(8) buy, sell, exchange, assign, settle, exercise, establish, continue, modify and terminate all options, rights, privileges and option accounts to convert stocks, bonds, notes, mortgages or other property into stocks, bonds, notes, mortgages or other property; subscribe for additional stocks, bonds, notes, mortgages or other property, make those conversions and subscriptions of stocks, bonds, notes, mortgages and other property, payments for these conversions and subscriptions, hold the stocks, bonds, notes, mortgages or other property acquired by these investment actions and borrow the money necessary to exercise any attendant options, rights and privileges;

(9) participate in the operation of any business, investment or other enterprise, whether sole proprietorship, partnership (limited or general), limited liability company, corporation or other form of enterprise, and exercise or perform any act, right or duty of or related to such enterprise, including to vote, assign, contribute additional capital, operate, buy, sell, enlarge, reduce, terminate, enforce, endorse and exercise any other action with respect to the entity ownership interest issued by the enterprise, prepare, sign, file, and deliver reports, compilations of information, returns or other papers with respect to an enterprise and make related payments, and enter into or modify existing buy-sell agreements of ownership interests in the enterprise and incorporate, dissolve, reorganize, convert, merge, consolidate, sell, liquidate or otherwise change the form of such enterprise;

(10) hold any of my property in the name of any trustee, custodian or nominee without disclosing this relationship;

(11) apply for or transfer any certificate of title on any motor vehicle or other asset with respect to which title is represented by a certificate of title and represent that this motor vehicle or other assets is free and clear of all liens and encumbrances not otherwise noted in the title and transfer documents;

(12) sue, defend, intervene, waive, submit, settle, propose, compromise or take other appropriate legal action (including obtaining or regaining possession of property) before a court, administrative agency, alternative dispute resolution or other party for my protection, the protection of my property or the protection of my Agent in the performance of the duties of my Agent as my agent and pay, contest or settle any claim by or against me or my Agent in the performance of duties as my agent, make or accept a tender, offer of judgment, or admission of facts, submit a controversy on an agreed statement of facts, consent to examination, and bind me in litigation, seek an attachment, garnishment, or other preliminary, provisional, or intermediate relief and use an available procedure to effect or satisfy a judgment, order or decree;

(13) employ persons, including those associated or affiliated with my Agent, to advise or assist my Agent in the performance of the duties as my agent;

(14) prepare, sign and file any returns of tax, refund claims, requests for extension of time to file or pay, closing agreements, petitions to any court with respect to any tax, offers, waivers, consents, powers of attorney and other documents relating to any type

of federal, state, local or foreign tax, execute any elections I may have under any such tax laws, compromise or contest taxes, deficiencies or assessments and otherwise act for me in all tax matters for all periods before the Internal Revenue Service or any other taxing authority (and for these and other purposes, I waive any privileges I may have against disclosure of any confidential tax information to my Agent);

(15) enter my existing safe-deposit boxes and withdraw or add to the contents and close them out and open new safe-deposit boxes in my name and withdraw or add to the contents and close them out;

(16) take custody of wills (and codicils, if any), deeds, life insurance policy contracts, securities, trusts or other documents of any kind or nature which pertain to me or my affairs;

(17) take any action to secure federal, state, local or foreign government benefits of any form or type to which I may be entitled (including authority to create and fund a Medical Assistance Income Trust and similar statutory elder law authorized planning vehicles for this purpose) such as those related to civil or military service and the Social Security and Medicare systems;

(18) move any of my property to any place, whether or not within the United States; and

(19) waive any doctor-patient, lawyer-client, accountant-client or similar privilege I may possess so that my Agent may obtain access to information which otherwise might be privileged and could not be turned over to my Agent.

The enumerated descriptions of the various examples of general authority listed above are for ease of use and understanding of the general authority granted to my Agent by this power of attorney and the Act. The Act also sets forth example Agent authorized action and nonaction unless the power of attorney "provides otherwise". These descriptions do not "provide otherwise" in this power of attorney. These descriptions will be read and interpreted in conjunction with the Act to give my Agent the broadest general authority that does not otherwise require specific authority designation by the Act and only "add to" and not "take away" from the example authority set forth in the Act.

2.2 Specific Authorization. I grant to my Agent by this power of attorney the specific authority to:

(1) create, amend, revoke or terminate inter vivos trusts for me and for others in connection with the management of my affairs and estate planning;

(2) create or change rights of survivorship;

(3) create or change a beneficiary designation;

(4) delegate authority granted under this power of attorney;

(5) waive my right to be a beneficiary of a joint and survivor annuity such as a survivor benefit under a retirement plan;

(6) exercise fiduciary powers that I have the authority to delegate;

(7) make gifts of my property (including of any kind in which I claim an interest) to the following persons outright or for the benefit of (including in trust, by custodial account or in any other form and by exercise of a presently exercisable power of appointment) these persons in amounts and forms and with limits described:

(a) my spouse in unlimited amounts for any purposes;

(b) my descendants, the spouses of my descendants and other individuals related to me and described in Ark. Code Ann. Section 28-9-214 (1)-(7) ("Tables of Descent") in unlimited amounts for any purposes;

(c) charitable organizations that qualify for a charitable deduction under the income and gift tax provisions of the Code in unlimited amounts for any purposes;

(d) my Agent or an individual to whom my Agent owes a legal obligation of support so long as my Agent is an individual related to me and described in the Tables of Descent.

In exercising this authority to make gifts, my Agent must act in good faith and will take into consideration those factors my Agent considers to be in my best interest or in the best interest of the donees as reflected by my relationship with these persons including the minimization of income, estate, gift, generation-skipping transfer and other taxes even if I do not have a past pattern or history of making gifts.

(8) take action or nonaction in any manner with respect to contracts which provide me or another person with an annuity, policies of insurance on my life or the life of another individual, polices of insurance on my property of any type and other contracts, including contracts in force at this date and future contracts acquired by me, my Agent or other persons, with this action including authority to continue, pay premiums and make contributions on a current contract, modify, exchange, rescind, release or terminate a current contract, procure new, different and additional contracts for and on me and other persons in amounts, types and modes of payment of the insurance or annuity determined by my Agent, maintain these current and future contracts and exercise the rights of ownership (incidents of ownership) attendant to these contracts such as the exercise of, or the decision to not exercise, any election, option, right or privilege available to the owner of the contract including the following action: (a) change beneficiaries under the contract or annuity, (b) reduce the amount of any life policy or convert or exchange any life policy into other forms of insurance, (c) enter into nontaxable and taxable exchanges of contracts, (d) surrender any life policy for its cash surrender value, (e) borrow upon and pledge any life policy in connection with a loan, (f) take paid-up insurance, (g) elect extended term insurance, (h) collect dividends, death or other benefits (including disability benefits or an accelerated death benefit), surrender payments and any other payment which may be due or collectable, (i) enter into a split-dollar or other premium sharing arrangement with any person or entity, (j) split any life policy into two or more policies, (k) allow dividends to remain with the insurance company or to use them to reduce premiums or to purchase additional insurance, (l) use cash values to pay premiums, (m) exercise any options of settlement that may be available under the terms of a life policy, (n) determine and modify the current amount of life insurance coverage under an existing life policy, (o) enter into viatical settlements concerning any life policies and (p) sell a life policy on the secondary market;

(9) deal with all types of retirement plans (such as those defined in the Act) and my retirement benefits under these retirement plans in any manner including the following action: (a) establish retirement plans, (b) change the beneficiaries of my retirement benefits, (c) make voluntary and required contributions to an IRA or other retirement plan, (d) make rollovers from one retirement plan to another directly or by trustee-to-trustee transfers, (e) borrow from, sell assets to or purchase assets from a

retirement plan, (f) elect payout options under a retirement plan, (g) give consents and make waivers under applicable retirement plan contracts or law on my behalf with respect to my retirement benefits and retirement benefits of others and (h) exercise investment powers available under retirement plans;

(10) reject, renounce, disclaim, release, consent to a reduction in or modification of (a) a share in or payment from an estate, trust or other beneficial interest or (b) a fiduciary or other power held by me;

(11) exercise any presently exercisable general or limited power of appointment held by me in whatever form; and

(12) transfer my property of any kind or property of any kind in which I claim an interest to revocable or irrevocable trusts created by me or held for me to be held and administered under the terms of these trusts (even if my Agent is a trustee), exercise withdrawal rights I have under these trusts, receive distributions of income and principal payable to me from these trusts and execute receipts, releases or other documents related to the income and principal received.

2.3 Life Insurance Limitation. Notwithstanding paragraph 2.2(8) above, should I own any life insurance policy on the life of my Agent, my Agent is forbidden from exercising any incidents of ownership possessed by me in the policy.

3. **DURATION**. 3.1 Effective Date. This power of attorney is legally effective this date.

3.2 Revocation. This power of attorney may be revoked by me at any time.

3.3 Durability. This power of attorney is durable. My Agent will be able to exercise the authority granted to the Agent notwithstanding my subsequent lack of capacity (4.1).

4. **OTHER**. 4.1 Incapacity. 4.1.1 Suspended from Position. An individual will not hold the position of agent during any period that the individual is incapacitated.

4.1.2 Definition. An individual is "incapacitated" and may not hold the position of agent if the individual:

(1) lacks the physical or mental capacity, personal stability or maturity of judgment needed to effectively manage his or her personal or financial affairs, whether by reason of a medical condition, substance abuse or dependency or other reason or

(2) refuses to be examined by physicians, or provide (or authorize release by a health care provider) the medical information needed, to make a determination of whether or not the individual is incapacitated.

An individual is incapacitated under this agent capacity definition when two physicians attending the individual (at least one of whom is trained in the specialty most closely associated with the alleged incapacity) set forth in writing that the individual lacks the physical or mental capacity, personal stability or maturity of judgment needed to effectively manage his or her personal or financial affairs. The written statement need not indicate the cause for the incapacity. If the individual is in the practice of being seen by a family practice, internal medicine physician or clinic on a regular basis, one of the two examining physicians will be this doctor or a doctor from this clinic if reasonably

available to make the examination. No person will be liable to anyone for actions taken in reliance on these physician statements.

4.1.3 Regained Capacity. If an incapacitated individual who held the position of agent thereafter becomes able to hold the position of agent again, this individual may choose to accept and hold this position of agent again by delivery of an acceptance in writing to the then position holder who will be replaced by this writing unless designated to serve as joint agent.

4.1.4 Release of Records. An individual by acceptance of the position as agent authorizes the release by any health care provider of that medical information of the individual needed to make any determination of incapacity.

4.2 My Requested Guardian. If protective proceedings for my estate are commenced, I nominate my Agent to serve as the guardian of my estate.

4.3 HIPAA. I request and authorize any physician, health care professional, health care provider and medical care facility to provide to my Agent information relating to my physical and mental condition and the diagnosis, prognosis, care and treatment of these conditions pursuant to Ark. Code Ann. Section 20-6-110. I intend by this authorization for my Agent to be a personal representative under privacy regulations related to protected health information and for my Agent to be entitled to all health information in the same manner as if I had personally made the request. This request and authorization will be considered a consent to the release of this information under current laws, amendments to current laws and future laws and their attendant rules and regulations, which includes the express grant of authority to personal representatives provided by Regulation Section 164.502(g) of Title 45 of the Code of Federal Regulations and the medical information privacy law and regulations generally referred to as HIPAA.

4.4 Governing Law. This power of attorney is intended to be valid in any jurisdiction in which it is presented and will be governed by and construed according to Arkansas law.

4.5 Construction. 4.5.1 Gender, Number and Other Similar Concepts. Words expressed in gender and number will include other genders and numbers in proper context. Use of the word "person" refers to both natural persons (*i.e.*, individuals) and artificial persons (*e.g.*, corporations, partnerships, *etc.*) as appropriate to the context. Use of the word "includes" or a derivative of it is not used in the limitation sense and will mean "including but not limited to," "including without limitation" or similar concept in proper context. Use of the word "and" in a series, and use of the word "or" in a series, includes the concept of "and/or" in proper context. Use of the word "will" is a word of mandate in proper context and equivalent to the traditional use of the word "shall."

4.5.2 Cross-references. References and cross-references to other parts of this power of attorney are made in parentheses to other paragraphs, subparagraphs, clauses or phrases that are helpful in understanding the provision of this Agreement.

4.5.3 Headings. Headings are for convenience, are not part of this document and cannot be used in a construction of it.

4.5.4 Capitalized Words. The generic use of an uncapitalized word or phrase includes within that use in proper context a defined word or phrase that is noted by capitalization. For

example, reference to "agent" includes the Agent and to "Agent" includes initial, successor and substitute (if authorized) agents, in proper context.

4.5.5 Tax Terms and Sections. Words or phrases related to taxation will be construed in the context of the federal revenue laws in effect at my death. Any references to "Code Sections" are to provisions of the Internal Revenue Code of 1986 as in effect at the date of this power of attorney and to applicable successor provisions of this or other federal revenue codes.

4.6 Copies Effective. My Agent is authorized to make photocopies of this document. Each photocopy will have the same force and effect as any original. Any person may rely on a copy of this document unless this person has actual knowledge that this document is no longer in effect.

4.7 No Inquiry. Every person to whom this power of attorney or a certified copy of it is presented may honor and give effect to all instruments signed pursuant to its authority without inquiring into the circumstances surrounding the instruments or into the disposition of any property delivered to my Agent. Such person will have no responsibility to determine that my Agent properly applied or handled property received or held by my Agent or to see to the proper discharge of the duties of my Agent under this document.

4.8 Expenses. My Agent will be entitled to reimbursement for all reasonable expenses incurred as a result of acting as my agent.

4.9 Ratification of Acts of Agent. I ratify and confirm all that my Agent does or causes to be done and I exonerate my Agent from liability for acts or omissions that are not gross negligence, fraud or criminal.

4.10 Reliance and Indemnity. A person will not be liable to me or my estate (or other persons claiming through me or my estate such as an heir or creditor) for any loss resulting from this person's good-faith recognition (1) of the authority and capacity of the Agent to act under this power of attorney prior to having received written notice of my revocation of this power of attorney or (2) of successor agent status of a person that succeeds to the position of agent. I, and my successors in interest, agree to indemnify and hold such person harmless against any loss suffered as a result of this person's good-faith recognition of the authority of my Agent to act under this document. Notarized evidence (e.g., a death certificate or written resignation) of an individual's failure to act or of the resignation or cessation of the individual from the position of my agent may be conclusively relied upon by any person as giving the successor Agent authority to act for me under this power of attorney.

4.11 Release. My Agent and my Agent's estate, heirs, successors and assigns are released and discharged by me, my estate, my heirs, successors and assigns from all liability and from all claims or demands of all kinds arising out of acts or omissions of my Agent under this power of attorney except for willful misconduct or gross negligence.

4.12 Revocation/Other Powers. I revoke all prior general financial powers of attorney granted by me and terminate the agency relationships created by such grants. I do not intend that this grant of financial power of attorney affect, modify or terminate any special, restricted or limited powers of attorney I may previously have granted in connection with any banking, brokerage, borrowing or commercial transaction or my summary real estate power of attorney dated February

4, 2025. This financial power of attorney is in addition to, and does not replace or revoke, any non-financial powers of attorney (at whatever time executed), such as one relating to my health care.

DATED: February 4, 2025

Kelsey Fey Brown

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the person whose name is subscribed to this Durable Financial Power of Attorney, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that Kelsey Fey Brown had executed and given this Durable Financial Power of Attorney as set forth.

Dated: February 4, 2025

NOTARY PUBLIC

My commission expires:

_____

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

DURABLE HEALTH CARE POWER OF ATTORNEY

I, Kelsey Fey Brown, of Bentonville, Arkansas, create this durable health care power of attorney with the intent that it is being entered into pursuant to the Arkansas Healthcare Decisions Act. Each attorney-in-fact agrees by assumption of the attorney-in-fact position to the terms of this power of attorney.

1. **AGENT**. 1.1 Grant of Health Care Power of Attorney. Pursuant to this health care power of attorney, I grant my agent ("Agent") a durable health care power of attorney.

1.2 Designation of Agent. 1.2.1 I appoint Nicholas Lynn Coleman to serve as my Agent. Nicholas Lynn Coleman will serve as my Agent during any period of time that Nicholas Lynn Coleman is not incapacitated (5.1) and is willing to serve as my Agent.

1.2.2 If Nicholas Lynn Coleman either (1) becomes incapacitated, resigns or ceases to serve as my Agent for any reason or (2) cannot be contacted for direction by the person in need of direction with reasonable effort under the circumstances, I appoint Yvonne Louise Westfall to serve as my Agent until Nicholas Lynn Coleman is able and willing to again serve as my Agent or can be reached for directions. If both Nicholas Lynn Coleman and Yvonne Louise Westfall (1) become incapacitated, resign, or cease to serve as my Agent for any reason or (2) cannot be contacted for direction by the person in need of direction with reasonable effort under the circumstances, I appoint Joy Bonady Shepherd to serve as my Agent until Nicholas Lynn Coleman or Yvonne Louise Westfall are able and willing to again serve as my Agent or can be reached for directions.

1.3 Joint Action. Jointly designated agents may act alone and independent of the other as my Agent except with respect to substitution. Action or nonaction taken under this power of attorney by one of my agents will be reported to the other agents within a reasonable period of time. Failure to notify the other agents of action or inaction under this power of attorney will not invalidate this action or nonaction.

1.4 Substitution. My Agent will have the authority to substitute one or more individuals as one of my Agents or as sole Agent and define the terms of this substitution (including whether joint agents can act alone and independent of the other agents).

2. **DURATION**. 2.1 Effective Date. This health care power of attorney is legally effective this date.

2.2 Revocation. This health care power of attorney may be revoked by me at any time.

2.3 Durability. This health care power of attorney is durable. My Agent will be able to exercise the decision and other authority granted to the Agent notwithstanding my subsequent lack of capacity (5.1).

2.4 Applicable Periods. My Agent will have the authority to make decisions regarding my health care during periods when I lack capacity to make an informed decision about my health care (which can be determined by a physician if necessary in the circumstances). Under this health care power of attorney and the Act, I will lack capacity when I am not able (a) to understand the significant benefits, risks and alternatives to health care proposed for me *and* (b) to make and communicate my own health care decision. This authority of my Agent is effective only so long as I lack this capacity.

3. **AUTHORITY**. 3.1 Guidance on Exercise. In making health care decisions on my behalf, my Agent will follow my desires and preferences as known by my Agent. My Agent will be guided by my medical diagnosis and prognosis and any information provided by my physicians as to the intrusiveness, pain, risks and side effects associated with a procedure or course of treatment. My Agent will not authorize a procedure or course of treatment that my Agent knows, or on reasonable inquiry ought to know, is contrary to my basic values or my religious beliefs. If my Agent cannot determine what choice I would have made on my own behalf with respect to a procedure or course of treatment, my Agent will make the choice for me based on what my Agent believes to be in my best interests and in keeping with my values and beliefs as then known by my Agent. My Agent will attempt to discuss with me the specifics of any proposed decision regarding my health care if I appear able to communicate in any manner to the extent practicable.

3.2 Example Powers. This grant of health care power of attorney is intended to be as broad as possible so that my Agent will have the authority to make any decision I could make with respect to my health care. Specifically, and not to limit any other rights prescribed by the Act, my Agent will have the power to:

(1) consent to, withdraw consent to or refuse (a) any type of medical care, treatment, surgical procedure, diagnostic procedure or medication and the use of mechanical or other procedures that affect any bodily function and (b) such medical care, procedure or treatment (including (i) cardiopulmonary resuscitation and artificial respiration and (ii) the withholding or withdrawal of life-sustaining procedures or treatment (including nutrition and hydration)) that is in keeping with my wishes as expressed in my most recent available advance directive (if any), and if this advance directive is not available, as my Agent believes is in my best interest and in keeping with my values and beliefs as then known by my Agent [Note: This authority specifically includes the power to consent to the administration of dosages of pain-relieving medication that are in excess of standard dosages and sufficient to relieve pain (even if these dosages or medication carry the risk of addiction or inadvertently hasten my death) and the power to direct and consent to the writing of a "No Code" or "Do Not Resuscitate" order or an "Emergency Medical Services Do Not Resuscitate Order" by any health-care provider.];

(2) (a) request, receive and review any information, verbal or written, regarding my physical or mental health, including medical and hospital records, (b) execute any releases or other documents that may be required in order to obtain such information, (c) consent to the disclosure of this information and (d) disclose this information to such persons as my Agent determines appropriate;

(3) (a) employ and discharge medical personnel including physicians, psychiatrists, dentists, nurses and therapists as my Agent deems necessary for my physical, mental and emotional well-being and (b) arrange for them to be paid reasonable compensation;

(4) (a) arrange (on execution of certificates by two psychiatrists who have examined me and who agree that I am in immediate need of hospitalization because of mental disorder, alcoholism or drug abuse) for my voluntary admission to an appropriate hospital or institution for treatment of the diagnosed problem or disorder, (b) arrange for private psychiatric and psychological treatment for me and (c) revoke, modify, withdraw or change consent to such hospitalization, institutionalization or private treatment that I or my Agent may have previously given [Note: The consent of my

Agent to my hospitalization for psychiatric help, alcoholism or drug abuse will have the same legal effect, subject to local law, as a voluntary admission by me.];

(5) authorize my admission to, transfer to or discharge from (even against medical advice) any hospital, hospice, nursing home, adult home, assisted living or other medical-care facility;

(6) contract on my behalf for any health care related service or facility without my Agent incurring personal financial liability for such contracts;

(7) take any lawful actions that may be necessary to carry out these decisions, including the granting of releases of liability to medical providers;

(8) direct my attending physician to enter in my medical records orders preventing resuscitation, intubation or hospitalization;

(9) make decisions concerning my visitation subject to physician orders and to the policies of any institution to which I am admitted;

(10) establish a new residency or domicile for me, from time to time and at any time, within or outside the state, and within or outside the United States, for such purposes as my Agent determines appropriate, including any purpose for which this instrument was created;

(11) take other action determined to be necessary to do what I have authorized by this document, including (a) the grant of any waiver or release from liability required by any hospital, physician or other health care provider, (b) the signature of any documents relating to refusals of treatment or the leaving of a facility against medical advice and (c) the pursuit of legal action in my name (and at the expense of my estate) to force compliance with my wishes.

4. **ANATOMICAL GIFTS AND DISPOSITION OF REMAINS**. 4.1 Anatomical. On my death, I authorize my Agent to make an anatomical gift of any parts of my body pursuant to Arkansas law.

4.2 Remains. On my death, I authorize my Agent to direct the disposition of my remains to the extent authorized by law (including by cremation).

5. **OTHER**. 5.1 Incapacity. 5.1.1 Suspended from Position. An individual will not hold the position of agent during any period that the individual is incapacitated.

5.1.2 Definition. An individual is "incapacitated" and may not hold the position of agent if the individual:

(1) lacks the physical or mental capacity, personal stability or maturity of judgment needed to effectively manage his or her personal or financial affairs, whether by reason of a medical condition, substance abuse or dependency or other reason or

(2) refuses to be examined by physicians, or provide (or authorize release by a health care provider) the medical information needed, to make a determination of whether or not the individual is incapacitated.

An individual is incapacitated under this agent capacity definition when two physicians attending the individual (at least one of whom is trained in the specialty most closely associated with the alleged incapacity) set forth in writing that the individual lacks the physical or mental capacity, personal stability or maturity of judgment needed to effectively manage his or her personal or financial affairs. The written statement need not indicate the cause for the incapacity. If the individual is in the practice of being seen by a family practice, internal medicine physician or clinic on a regular basis,

one of the two examining physicians will be this doctor or a doctor from this clinic if reasonably available to make the examination. No person will be liable to anyone for actions taken in reliance on these physician statements.

5.1.3 Regained Capacity. If an incapacitated individual who held the position of agent thereafter becomes able to hold the position of agent again, this individual may choose to accept and hold this position of agent again by delivery of an acceptance in writing to the then position holder who will be replaced by this writing unless designated to serve as joint agent.

5.1.4 Release of Records. An individual by acceptance of the position as agent authorizes the release by any health care provider of that medical information of the individual needed to make any determination of incapacity.

5.2 My Requested Guardian. If protective proceedings for my person are commenced, I nominate my Agent to serve as the guardian of my person.

5.3 HIPAA. I request and authorize any physician, health care professional, health care provider and medical care facility to provide to my Agent information relating to my physical and mental condition and the diagnosis, prognosis, care and treatment of these conditions pursuant to Ark. Code Ann. Section 20-6-110. I intend by this authorization for my Agent to be a personal representative under privacy regulations related to protected health information and for my Agent to be entitled to all health information in the same manner as if I had personally made the request. This request and authorization will be considered a consent to the release of this information under current laws, amendments to current laws and future laws and their attendant rules and regulations, which includes but is not limited to, the express grant of authority to personal representatives provided by Regulation Section 164.502(g) of Title 45 of the Code of Federal Regulations and the medical information privacy law and regulations generally referred to as HIPAA.

5.4 Governing Law. This health care power of attorney is intended to be valid in any jurisdiction in which it is presented and will be governed by and construed according to Arkansas law.

5.5 Construction. 5.5.1 Gender, Number and Other Similar Concepts. Words expressed in gender and number will include other genders and numbers in proper context. Use of the word "person" refers to both natural persons (*i.e.*, individuals) and artificial persons (*e.g.*, corporations, partnerships, *etc.*) as appropriate to the context. Use of the word "includes" or a derivative of it is not used in the limitation sense and will mean "including but not limited to," "including without limitation" or similar concept in proper context. Use of the word "and" in a series, and use of the word "or" in a series, includes the concept of "and/or" in proper context. Use of the word "will" is a word of mandate in proper context and equivalent to the traditional use of the word "shall."

5.5.2 Cross-references. References and cross-references to other parts of this power of attorney are made in parentheses to other paragraphs, subparagraphs, clauses or phrases that are helpful in understanding the provision of this Agreement.

5.5.3 Headings. Headings are for convenience, are not part of this document and cannot be used in a construction of it.

5.5.4 Capitalized Words. The generic use of an uncapitalized word or phrase includes within that use in proper context a defined word or phrase that is noted by capitalization. For

example, reference to "agent" includes the Agent and to "Agent" includes initial, successor and substitute (if authorized) agents, in proper context.

5.6 Copies Effective. My Agent is authorized to make photocopies of this document. Each photocopy will have the same force and effect as any original. Any person may rely on a copy of this document unless this person has actual knowledge that this document is no longer in effect.

5.7 Expenses. My Agent will be entitled to reimbursement for all reasonable expenses incurred as a result of acting as agent. My Agent will render bills for all costs incurred in the exercise of the authority granted in this document to the agent then serving under my durable financial power of attorney.

5.8 Ratification of Acts of Agent. I ratify and confirm all that my Agent does or causes to be done, and I exonerate my Agent from liability for acts or omissions that are not gross negligence, fraud or criminal.

5.9 Reliance and Indemnity. A person will not be liable to me or my estate (or other persons claiming through me or my estate such as an heir or creditor) for any loss resulting from this person's good-faith recognition (1) of the authority and capacity of the Agent to act under this power of attorney prior to having received written notice of my regained capacity or my revocation of this power of attorney or (2) of successor agent status of a person that succeeds to the position of agent. I, and my successors in interest, agree to indemnify and hold such person harmless against any loss suffered as a result of this person's good-faith recognition of the authority of my Agent to act under this document. Notarized evidence (e.g., a death certificate or written resignation) of an individual's failure to act or of the resignation or cessation of the individual from the position of my agent may be conclusively relied upon by any person as giving the successor Agent authority to act for me under this power of attorney.

5.10 Release. My Agent and my Agent's estate, heirs, successors and assigns are released and discharged by me, my estate, my heirs, successors and assigns from all liability and from all claims or demands of all kinds arising out of acts or omissions of my Agent under this power of attorney except for willful misconduct or gross negligence.

5.11 State of Mind. By my signature below, I indicate that I am emotionally and mentally competent to make this advance directive and that I understand the purpose and effect of this power of attorney.

5.12 Revocation/Other Powers. I revoke all prior health care powers of attorney granted by me and terminate the agency relationships created by such grants. This health care power of attorney is in addition to, and does not replace or revoke, any financial powers of attorney (at whatever time executed).

Dated: February 4, 2025

Kelsey Fey Brown

This health care power of attorney has been signed, published and declared by Kelsey Fey Brown in our presence and we have at the request of Kelsey Fey Brown and in the presence of Kelsey Fey Brown and each other, written our names as witnesses this February 4, 2025. The signature of Kelsey Fey Brown was voluntary and Kelsey Fey Brown appeared to be eighteen years of age or older, of sound mind and acting without undue influence, fraud or restraint. Neither of us is agent under an advance directive of Kelsey Fey Brown as defined in the Arkansas Healthcare Decisions Act. Each of us is a competent adult. At least one of us is (1) not related to Kelsey Fey Brown by blood, marriage or adoption and (2) is not entitled to any portion of the estate of Kelsey Fey Brown upon the death of Kelsey Fey Brown under any will or codicil made by Kelsey Fey Brown existing on this date or by operation of law.

Hunter Bedell

Hunter Bedell

Robin Q. Veenhuis

Robin Q. Veenhuis

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the individual whose name is subscribed to this Durable Health Care Power of Attorney, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that Kelsey Fey Brown had executed and given this Durable Health Care Power of Attorney as set forth.

Dated: February 4, 2025

Mackenzie Smith

NOTARY PUBLIC

My commission expires:

_____

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

ADVANCE DIRECTIVE

I, Kelsey Fey Brown, make this advance directive regarding life-sustaining medical treatment pursuant to the Arkansas Healthcare Decisions Act (Ark. Code Ann. Section 20-6-101, et seq.). I willfully and voluntarily make this advance directive and declaration recognizing that death is natural and is but a phase in the cycle of life. I give this advance directive as a part of my health care desire to avoid the indignity and futility of deterioration, dependence and hopeless pain in certain medical situations.

Except as provided in this advance directive regarding artificial nutrition and hydration, I do not wish to be kept alive by artificial means or heroic measures if there is no reasonable medical expectation of my recovery from certain physical or mental conditions. For that reason, I direct that life-sustaining procedures or treatments be withheld or withdrawn when the application of the procedures or treatments would serve only to artificially prolong the process of dying if, and when, my attending or treating physician and another consulting physician have determined that there is no reasonable medical probability of my recovery from one or more of the following conditions:

(A) I have a terminal condition caused by injury, disease or illness from which there is no reasonable medical probability of recovery and which can be expected to cause my death within a relatively short period of time if not treated.

(B) I am in an irreversible end-stage condition that is caused by injury, disease or illness that has resulted in severe and permanent deterioration, indicated by my incapacity and complete physical dependency, for which treatment would be medically ineffective to a reasonable degree of medical certainty.

(C) I am in a persistent vegetative state characterized by permanent and irreversible unconsciousness in which there is an absence of voluntary action or cognitive behavior of any kind by me, with an inability to communicate or interact purposefully with others in the environment around me.

In the event of this determination, I direct that I be permitted to die naturally with only the administration of medication or the performance of those medical procedures or treatments determined necessary to provide me with comfort care or to alleviate pain even if those procedures hasten my death.

For purposes of this advance directive, the following are "life-sustaining procedures or treatments" which I direct to be withheld or withdrawn in the applicable medical conditions:

(A) CPR: Cardiopulmonary Resuscitation in order to make the heart beat again and restore breathing after the heart has stopped, which usually involves electric shock, chest compressions and breathing assistance.

(B) Life Support or Other Artificial Support: Continuous use of breathing machine, IV fluids, medications and other equipment that helps the lungs, heart, kidneys and other organs to continue to work.

(C) Treatment of New Conditions: Use of surgery, blood transfusions or antibiotics that will deal with a new condition but will not help the main illness.

This list of life-sustaining procedures or treatments is illustrative and not all-inclusive.

I further declare my wishes regarding artificial nutrition and hydration known separately from the directions I have given in the previous paragraphs. By my initials on the line(s) below, I specifically:

KB DIRECT that artificial nutrition may be withheld or withdrawn.

KB DIRECT that artificial hydration may be withheld or withdrawn.

_____ DIRECT that artificial nutrition may not be withheld or withdrawn.

_____ DIRECT that artificial hydration may not be withheld or withdrawn.

The absence of my initials is my direction that such health care may not be withheld or withdrawn. I intend that this advance directive be honored by my agent under any healthcare power of attorney, my family and my physicians as the final expression of my legal right to refuse medical or surgical treatment and to accept the consequences for such refusal. I understand that my wishes may place a heavy burden upon others and I make this declaration to assume sole responsibility for my decision and to mitigate any feelings of guilt that my wishes may cause.

I am emotionally and mentally competent to make this advance directive, and I understand its importance.

DATED: February 4, 2025

Kelsey Fey Brown
Bentonville, Arkansas

This advance directive has been signed, published and declared by Kelsey Fey Brown in our presence and we have at the request of Kelsey Fey Brown and in the presence of Kelsey Fey Brown and each other, written our names as witnesses this February 4, 2025. The signature of Kelsey Fey Brown was voluntary and Kelsey Fey Brown appeared to be eighteen years of age or older, of sound mind and acting without undue influence, fraud or restraint. Neither of us is agent under an advance directive of Kelsey Fey Brown as defined in the Arkansas Healthcare Decisions Act. Each of us is a competent adult. At least one of us is (1) not related to Kelsey Fey Brown by blood, marriage or adoption and (2) is not entitled to any portion of the estate of Kelsey Fey Brown upon the death of Kelsey Fey Brown under any will or codicil made by Kelsey Fey Brown existing on this date or by operation of law.

Hunter Bedell

Robin G. Veenhuis

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the individual whose name is subscribed to this Advance Directive, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that Kelsey Fey Brown had executed and given this Advance Directive as set forth.

Dated: February 4, 2025

NOTARY PUBLIC

My commission expires:

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

AUTHORIZATION FOR USE AND DISCLOSURE OF PROTECTED HEALTH INFORMATION

1. I, Kelsey Fey Brown, authorize all health care providers, including physicians, nurses, and all other persons (including entities) who may have provided, or be providing, me with any type of health care, including physical, mental, psychiatric or psychological diagnosis and treatment, to disclose all of my protected health information, including charts, notes, x-rays, operative reports, lab or medication records, copies of prescriptions and all other medical information about me, including medication history, diagnoses, testing and test results, prognoses and records or information about treatment of any physical condition, disease or drug, alcohol or substance abuse problem:

(1) to an agent designated in a durable power of attorney signed by me when asked by my agent to do so for the purpose of determining my capacity as defined in the power of attorney or by governing law, even if the power of attorney only becomes effective upon my incapacity;

(2) to the trustee, or a designated successor trustee, of any trust of which I am a beneficiary or a trustee when asked to do so for the purpose of determining my capacity as defined in the trust;

(3) to any partner of any partnership of which I am a member for the purpose of determining my capacity as defined in the partnership agreement;

(4) to my lawyer, Adam C. Flock, for the purposes of determining my capacity to make inter vivos gifts, to execute estate planning documents, and whether, and to what extent, a guardianship or other protective proceedings for me is necessary or desirable;

(5) to a guardian ad litem, if one is appointed for me, for the purpose of determining whether, and to what extent, a guardianship or other protective proceedings for me is necessary or desirable.

2. This authorization is intended to provide my health care providers with the authorization necessary to allow each of these providers to disclose protected health information regarding me to the persons listed above for the purpose of allowing each of them to make the specified determinations regarding my capacity or need for protective proceedings.

3. I understand that information disclosed by a health care provider pursuant to this authorization is subject to redisclosure by the recipient and may no longer be protected by the HIPAA federal privacy laws.

4. This authorization may be revoked at any time, except to the extent that action has already been taken in reliance on it. I understand that any revocation must be by a writing signed by me or by my personal representative and that copies of the written revocation must be provided to the source requested to disclose my protected health information and to the potential recipient of my protected health information.

5. This authorization will expire four years after my death unless validly revoked prior to that date.

6. A healthcare provider or health plan subject to the HIPAA federal privacy laws cannot refuse to provide me services based on my failure or refusal to sign this authorization.

DATED: February 4, 2025

Kelsey Fey Brown

AUTHORIZATION AND CONSENT FOR DISCLOSURE AND RELEASE OF ELECTRONICALLY STORED INFORMATION

I, Kelsey Fey Brown, make this Authorization and Consent for Release of Electronically Stored Information ("Authorization"). I authorize any person or entity that possesses, custodies, or controls any electronically stored information of mine or that provides to me an electronic communication service or remote computing service, whether public or private, to divulge to my then-acting Fiduciaries (defined below) at any time: (1) any electronically stored information of mine; (2) the contents of any communication that is in electronic storage by that service or that is carried or maintained on that service; and (3) any record or other information pertaining to me with respect to that service. In addition, my Fiduciaries will have the power to perform any act permitted by the Revised Uniform Fiduciary Access to Digital Assets Act (Ark. Code Ann. §28-75-101, et seq.). "Fiduciaries" means an attorney-in-fact acting under a power of attorney document signed by me, a guardian or conservator appointed for me, a trustee of my revocable trust (including after it becomes irrevocable), and a personal representative (administrator or executor) of my probate estate. The terms used in this Authorization are to be construed as broadly as possible.

This Authorization is to be construed to be my consent under the Electronic Communications Privacy Act of 1986, as amended; the Computer Fraud and Abuse Act of 1986, as amended; the Revised Uniform Fiduciary Access to Digital Assets Act, as amended; and any other applicable federal or state data privacy law or criminal law. This Authorization is effective immediately. Unless this Authorization is revoked by me in writing while I am competent, this Authorization continues to be effective during any period that I am incapacitated and continues to be effective after my death.

Unless a person or entity has received actual notice that this Authorization has been validly revoked by me, that person or entity receiving this Authorization may act in reliance on the presumption that it is valid and not revoked, and that person or entity is released and held harmless by me, my heirs, legal representatives, successors, and assigns from any loss suffered or liability incurred for acting according to this Authorization. A person or entity may accept a copy or any electronic facsimile of it of this original Authorization as though it were an original document.

Dated: February 4, 2025

Kelsey Fey Brown

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the person whose name is subscribed to this Authorization, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that Kelsey Fey Brown had executed and given this Authorization as set forth.

Dated: February 4, 2025

NOTARY PUBLIC

My commission expires:

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

RESERVED FOR RECORDER

CERTIFICATION OF TRUST

KELSEY BROWN REVOCABLE TRUST

I, Kelsey Fey Brown, as trustee, represent that:

1. I, Kelsey Fey Brown, as settlor, entered into the Kelsey Brown Revocable Trust Agreement dated February 4, 2025 ("Agreement"), with myself and my successors as trustee of the Kelsey Brown Revocable Trust (the "Trust") created under the Agreement. The Agreement is a written document, and the Trust is a written trust. The Agreement was executed on February 4, 2025.

2. This Certificate is a true and correct representation of some of the various terms of the Trust. The Trust is in existence. *The Trust has not been revoked, modified or amended in any manner that would cause the representations contained in this certification of trust to be incorrect.*

3. Kelsey Fey Brown is the current trustee of the Trust (the "Trustee"). The current address of the Trustee is 2211 NW Willow Street, Bentonville, Arkansas 72712.

4. The Trust is a revocable trust created for the benefit of Kelsey Fey Brown, who is the sole lifetime income and principal beneficiary. Kelsey Fey Brown holds the power to revoke the Trust.

5. The power and authority of the Trustee to deal with the property of the Trust and of third parties to deal in good faith with the Trustee includes (but is not limited to) the following powers and authority (which are paragraphs excerpted from the Agreement):

"6. **ADMINISTRATION**. 6.1 Powers. 6.1.1 Listed Powers. Except to the extent that the following powers are in conflict, inconsistent with or limited by other provisions of this Agreement, the Trustee will have the power:

(1) to buy, sell, lease, convey, grant security interests in, mortgage and pledge trust assets (real or personal property) on terms (that include periods that start in the future or extend beyond the trust term unless otherwise limited by perpetuity limitations) the Trustee determines advisable (with or without notice at either public or private sale and subject only to those confirmations and other requirements of local law and courts which may not be waived by my direction), including with respect to any warranties or indemnifications;

(2) (a) to hold and retain any property in the form received under this Agreement (including by continuation of a sole proprietorship or other business form);

(b) to invest and reinvest trust assets in all forms of real and personal property, which includes:

(i) investment or reinvestment in loans, bonds, notes, futures, stock or other securities of any kind, shares or participating interests in any common trust fund of any corporate trustee, mutual funds and other forms of joint investment (that may be managed by, advised by or affiliated with a trustee), insurance, annuities, real estate, mortgages, real estate trusts, partnerships, mutual funds, venture capital or other private equity, leveraged or speculative funds, closely held businesses, tax shelters, foreign assets, oil and gas and other natural resource interests, equipment, commodities, currencies, collectibles, precious metals or other real or personal property of any kind considered appropriate in trustee discretion, and

(ii) investment or reinvestment by organization, operation and dissolution of businesses as corporations, sole proprietorships, general or limited partnerships, limited liability companies, business trusts, joint ventures or other forms (with authority to elect to a board of directors any individual Trustee or officer or employee of any corporate Trustee or an affiliated entity, to pay premiums on liability insurance maintained for any such individual Trustee or officer or employee acting as a director and to receive additional compensation in respect of this service);

(c) to exercise all options, rights and privileges to convert stocks, bonds, notes, mortgages or other property into stocks, bonds, notes, mortgages or other property, subscribe for additional other stocks, bonds, notes, mortgages or other property and make such conversions and subscriptions and payments for such conversions and subscriptions and hold such stocks, bonds, notes, mortgages or other property so acquired as investments of the trust;

(3) to trade in securities, including by options, short sales, futures and on margin, and to maintain margin accounts and pledge securities held in the trust for loans and advances to the trust;

(4) to borrow from any source (including from a trustee individually) and mortgage or pledge any assets of the trust for any purpose;

(5) to permit and engage in the use and severance of natural resources (including oil, gas, ore, coal, timber and other minerals and resources) as an owner of real property in which such natural resources are situated, as a lessee, licensee, partner or joint venturer in respect of such use and severance, or as a holder of any royalty, interest or miscellaneous right involving such use and severance, and in so doing, to secure appraisals and geological surveys and studies, make pooling and unitization agreements, make agreements involving the installation or operation of absorption, repressuring or other processing plants, pay delayed rents, lease bonuses, royalties and overriding royalties, drill, rework or recomplete wells, test, explore, treat, mine, produce, recover, process, store, transport and market any minerals or other natural resources, pay all reasonable expenses, employ, supervise and discharge independent contractors and employees and take any other action necessary or desirable in order to use and sever natural resources;

(6) to enter into underwriting, purchase and stockholder deposit agreements, sign prospectuses, sign and file registration statements, give powers of attorney to sign registration statements, execute bonds and take any other action necessary to register and sell securities;

(7) to apply trust assets otherwise distributable to a beneficiary to the use of or for the benefit of the beneficiary, and for a beneficiary under age twenty-one (21) or legal disability, to transfer the assets to a custodian for the beneficiary under a transfer to minors act or the legal guardian of the beneficiary's estate;

(8) to make allocations and distributions of trust assets in cash or in specific property (including undivided interests), or both, which are not *pro rata* in character of assets and without regard to the income tax basis of specific property allocated or distributed;

(9) to litigate, submit to arbitration, compromise, adjust or settle claims against or on behalf of the trust and execute agreements, deeds, releases and other documents connected with such action;

(10) to retain or take title to any property held in trust in bearer form or in the name of any custodian or nominee, without disclosing this relationship;

(11) to charge fiduciary accounting income with charges described in paragraph 9.1.

These powers may be exercised without regard to any fiduciary requirement concerning nature of legal investments and without liability for lack of productivity, decline in value or lack of diversification, and if the Trustee disposes of assets, without liability for loss resulting from any increase in the value of the assets after disposition.

6.1.2 Incorporated Statutory Powers. In addition, to the extent not inconsistent with the subparagraph 6.1.1 listed powers, the Trustee will have those powers set forth in Ark. Code Ann. § 28-69-304 (4)-(38) as enacted at this date (that are designated as paragraphs "e" through "ff" of Section 3 of Act 153 of the 1961 Acts of the General Assembly of Arkansas and as paragraphs "(33)" through "(38)" of Section 1 of Act 421 of the 1993 Acts of the General Assembly of Arkansas) which are incorporated in this Agreement by reference.

6.1.3 Other Trust Code Powers. In addition, to the extent not inconsistent with the subparagraph 6.1.1 listed powers and the subparagraph 6.1.2 incorporated statutory powers, the Trustee will have those powers granted by the Arkansas Trust Code.

6.1.4 Exercise. The powers of the Trustee are exercisable without court authority. These trustee powers (and the other administrative terms of this Agreement) apply to all trust assets held by the Trustee until actual distribution of the trust assets, which includes the windup period with respect to the termination of a trust.

* * * * * * * * * *

6.10 Duty of Person Dealing with Trustee. A person who in good faith and for value deals with a trustee or a co-trustee (or a person purporting to be a trustee or co-trustee), or

who in good faith assists a trustee or co-trustee (or a person purporting to be a trustee or co-trustee), in the conduct of a transaction (*e.g.*, a purchaser of trust assets, a transfer agent, a dividend disbursing agent, a bank or a brokerage firm) will not be required to:

(1) ascertain whether this person who purports to be a current trustee is in fact then occupying the position of trustee;
(2) ascertain whether this trustee has the power to act alone, or if applicable, on behalf of the other co-trustees;
(3) ascertain whether a trustee is properly exercising any power;
(4) assure the proper application of any property paid or delivered to a trustee.

Deeds, notes, checks, contracts, leases, bills of sale, trust certifications and other documents or writings, or other action or nonaction, which bind the trust, subject the trust to liability or create other legal relationships with respect to the trust assets may be executed, or taken or not taken, (a) by one co-trustee or (b) by another person designated by the Trustee to act for the Trustee (such as an agent for the Trustee)."

6. Title to assets of the Trust should be taken in a form similar to the following examples:

Kelsey Fey Brown as trustee of the Kelsey Brown Revocable Trust under the Kelsey Brown Revocable Trust Agreement dated February 4, 2025.

The trustee of the Kelsey Brown Revocable Trust u/a/d February 4, 2025.

7. This Certificate is being used to certify the existence of the Trust, to identify the Trustee of the Trust, to describe relevant powers and authority of the Trustee and provide examples of the form of taking title to assets in the name of the Trustee in order that the Trustee can deal with third parties, such as financial institutions, stock transfer agents, brokerage houses, title companies, insurance companies, without disclosing the entire Agreement, which is a private and confidential document.

8. A person may deal in good faith with the Trustee without any duty to inquire about or investigate the necessity or expediency of any act by the Trustee, any provision of the Agreement that is not set forth in this Certificate and the disposition of any property or cash delivered to the Trustee.

9. Anyone may rely on a photocopy, pdf computer file or other reproduction of this Certificate as if that reproduction were the signed original if the reproduction is provided to the third party by me, my attorney-in-fact, an attorney-at-law representing me, the Trustee or an attorney-at-law representing the Trustee.

10. All third parties dealing with the Trustee may rely on this Certificate of Trust or its reproduction as a true statement of the provisions of the Trust and the related information set forth above, such statement being effective as of the date that this Certificate or its reproduction is presented to the third party (regardless of the date listed below), unless the third party has actual

knowledge that the statements contained in this Certificate are not correct. The Trustee is expressly authorized to take that action necessary to cause third parties to rely on this Certificate and to preserve the confidentiality of the Agreement (including legal action for damages from a third party who fails or refuses to rely on this Certificate). ***Note:*** *A person presented with this Certificate who also makes a demand for a copy of the Agreement that is not in good faith may be liable for damages pursuant to Ark. Code Ann. §28-73-1013(h).*

DATED: February 4, 2025

Kelsey Fey Brown, Trustee

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the person whose name is subscribed to this Trust Certificate, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that Kelsey Fey Brown had executed this Trust Certificate in the stated capacities.

Dated: February 4, 2025

NOTARY PUBLIC

My commission expires:

_____

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

KELSEY BROWN REVOCABLE TRUST AGREEMENT

Agreement Date: February 4, 2025

I, Kelsey Fey Brown, of Bentonville, Arkansas, make this trust agreement ("Agreement"). I will serve as the trustee ("Trustee") of this Agreement. Each trustee agrees by assumption of, or continuation in, the trustee position to the terms of this Agreement. While I am Trustee, I may act with respect to trust assets (*e.g.*, sign trust bank account checks) and conduct trust business and affairs (*e.g.*, sell trust assets) as trustee without the consent of any person (including a co-trustee if later applicable).

1. **INTRODUCTION**. 1.1 Agreement Interpretation. 1.1.1 Rules of Construction. This Agreement will be construed by using the rules of construction set forth in paragraph 10.9 and by taking account of my intent as expressed in the various paragraphs of this Agreement.

1.1.2 Cross-references. References and cross-references to other parts of this Agreement are made in parentheses to other paragraphs, subparagraphs, clauses or phrases that are helpful in understanding the provision of this Agreement. For example, "(1.1)" refers to this entire paragraph 1.1 (entitled "Agreement Interpretation"), which is made up of subparagraphs 1.1.1 (entitled "Rules of Construction") and 1.1.2 (entitled "Cross-references"). In addition, various trust administration, tax planning or other alerts are made in italics for emphasis or as a reminder.

1.2 Initial Trust. I desire to create a trust for my benefit and the Trustee is willing to accept the trust created by this Agreement. I have transferred $10 to the Trustee, receipt of which is acknowledged by the Trustee by execution of this Agreement. The Trustee will hold and administer the assets of the Kelsey Brown Revocable Trust ("Trust") in trust according to this Agreement.

1.3 Amendment and Revocation. I may revoke or amend all or any part of this Agreement at any time, without the consent of anyone else, by a writing or by specific reference to the Agreement in my last Will. No part of an amendment that substantially changes the duties, powers or liabilities of a trustee will be effective without the consent of that trustee. If the trustee is not willing to accept such a change, that part of the amendment not accepted by this trustee will be effective from its execution with respect to the next designated trustee willing to accept such change and this successor trustee will act as special trustee only with respect to the change. At my death, the Trust becomes irrevocable. The other trusts created under this Agreement after my death are also irrevocable.

1.4 Additions. Additional assets may be transferred by me or other persons to the trustee of a trust under this Agreement. The Trustee may decline to accept additional assets that the Trustee determines will be detrimental to trust interests. An addition will be held and distributed by the Trustee under the applicable trust terms.

1.5 Family. I am married to Nicholas Lynn Coleman ("Nick"). Nick and I have no children at the time of execution of this Agreement.

2. **KELSEY BROWN REVOCABLE TRUST**. 2.1 My Lifetime. During my lifetime, the Trustee will distribute the assets of the Trust to me or for my benefit as I direct. Also during this time, the Trustee will distribute trust assets to persons as I direct in a writing delivered to the

Trustee. If I am unable to direct the disposition of the assets of the Trust because of illness, mental or physical disability or other similar factors, the Trustee may distribute trust assets to me as the Trustee determines is advisable from time to time. My Agent (10.7.6) may direct distribution of trust assets for me. Distribution directions may be verbal or written unless the Trustee requires by written notice to me that such directions be made in writing only.

2.2 My Death. 2.2.1 My Personal Items. At my death, the Trustee will distribute my Personal Items (10.7.8) as directed in the list or writing that bears my signature or is in my handwriting (if any). This list or statement will be a valid amendment to the Trust and need not be witnessed or notarized to be effective. The remainder of this property will be distributed to Nick if he survives me, or if not, this property will be allocated to my descendants, *per stirpes* (10.7.3), or if none, this property will be allocated pursuant to subparagraph 4.2. Personal Items allocated to a descendant who has attained age thirty-five (35) will be distributed outright to the descendant. Personal Items allocated to a descendant who has not attained age thirty-five (35) will be transferred to the trustee of the Bypass Trust to hold and distribute these items for the descendant as Beneficiary (4.2) under the Section 4 Bypass Trust terms. In making allocations for this purpose, the Trustee may choose but is not required to allocate these items as my adult children suggest.

2.2.2 Nick Survives. If Nick survives me, at my death, the Trustee will divide the Remaining Trust Assets (10.7.4) into the Marital Share (7.5.1) and the Bypass Share (7.5.2) and will then further divide these shares into exempt and nonexempt shares for generation-skipping transfer ("GST") tax planning purposes if required by my GST tax division directions (7.4.2). If the further division of assets for GST tax planning purposes is required:

(A) the exempt Marital Share will be transferred to the Trustee of the Marital Trust, who will allocate, hold and distribute the share as the Marital Trust under the Section 3 Marital Trust terms;

(B) the nonexempt Marital Share will be transferred to the Trustee of the Marital Trust, who will allocate, hold and distribute the share as a separate trust referred to as the Nonexempt Martial Trust under the Section 3 Marital Trust terms;

(C) the exempt Bypass Share will be transferred to the Trustee of the Bypass Trust, who will allocate, hold and distribute the share as the Bypass Trust under the Section 4 Bypass Trust terms;

(D) the nonexempt Bypass Share will be transferred to the Trustee of the Bypass Trust, who will allocate, hold and distribute the share as a separate trust referred to as the Nonexempt Bypass Trust under the Section 4 Bypass Trust terms.

If this further GST tax planning division is not required, the Marital Share and the Bypass Share will respectively be transferred to the Trustee of the Marital Trust and the Trustee of the Bypass Trust, who will allocate, hold and distribute the shares as separate trusts under the respective Section 3 Marital Trust terms and the Section 4 Bypass Trust terms.

2.2.3 I Survive. If Nick does not survive me, at my death, the Trustee will divide the Remaining Trust Assets (10.7.4) into exempt and nonexempt shares for GST tax planning purposes if required by my GST tax division directions (7.4.4). If this division is required:

(A) the exempt share will be transferred to the Trustee of the Bypass Trust, who will allocate, hold and distribute the exempt share as the Bypass Trust under the Section 4 Bypass Trust terms;

(B) the nonexempt share will be transferred to the Trustee of the Bypass Trust, who will allocate, hold and distribute the nonexempt share as a separate trust referred to as the Nonexempt Bypass Trust under the Section 4 Bypass Trust terms.

If this division is not required, the Remaining Trust assets will transferred to the Trustee of the Bypass Trust, who will allocate, hold and distribute them under the Section 4 Bypass Trust terms.

3. **MARITAL TRUST**. 3.1 Lifetime. During Nick's lifetime, the Trustee will distribute to Nick the net income of the Marital Trust in annual or more frequent installments. In addition, for fifteen months following my death, the Trustee will distribute to Nick as much of the principal of the Marital Trust as the Trustee determines is necessary for his education, health, maintenance and support in his accustomed manner of living. After this date, the Trustee may distribute to Nick as much of the principal of the Marital Trust as the Trustee determines is advisable from time to time. This distribution discretion includes the decision of the Trustee to withhold distributions of trust principal from Nick for any period of time or for any reason. (*If a QTIP election is not made for this trust, see 7.6.3 for tax-sensitive trustee limitations if Nick is a trustee or a trustee changer.*)

3.2 Death. 3.2.1 Taxes. At Nick's death, the Trustee will distribute to the trustee of the Nicholas Coleman Revocable Trust u/a/d February 4, 2025 (or if this trust has been revoked, to the personal representative of Nick's probate estate), that portion of the principal and undistributed income of the Marital Trust directed by paragraph 9.2 for tax payment and payment of other charges.

3.2.2 Remaining Marital Asset Division. At Nick's death, the Trustee will allocate that portion of the principal and undistributed income of the Nonexempt Marital Trust which remains after payment of the tax and other charges (9.2) into an exempt and a nonexempt share for the GST tax planning purposes of Nick if required by the GST tax division directions (7.4.3).

3.2.3 Remaining Assets. At Nick's death, the Trustee will transfer:

(1) the remaining principal and undistributed income of the Marital Trust to the Trustee of the Bypass Trust, who will hold and distribute these assets under the Section 4 Bypass Trust terms;

(2) the remaining principal and undistributed income of the Nonexempt Marital Trust to the Trustee of the Nonexempt Bypass Trust, who will hold and distribute the assets under the Section 4 Bypass Trust terms.

4. **BYPASS TRUST**. 4.1 Nick. 4.1.1 Lifetime. During Nick's lifetime, the Trustee may distribute the net income and principal of the Bypass Trust to or among one or more of Nick and my descendants as the Trustee determines is advisable from time to time. This distribution discretion includes the decision of the Trustee to withhold the distribution of net income and principal from one or more, or all, of these individuals for any period of time or for any reason. (*See (a) 6.33 for ascertainable distribution standards that apply to certain creditor situations, (b) 7.4.6 for instructions concerning taxable distributions from a nonexempt trust, (c) 7.6.3 for ascertainable distribution standards that apply to certain tax-sensitive situations and (d) 7.8 for the limitation on distribution of Plan benefits.*)

4.1.2 Limited Power of Appointment. Nick will have at Nick's death the power to appoint (direct the Trustee to distribute) all or any part of the remaining principal and undistributed net income of the Bypass Trust, or Nonexempt Bypass Trust, (other than Disclaimed Assets (10.5.2)) to or among one or more of:

(1) my descendants with the limitation that the appointment for each such descendant may *only* be made in further lawful trust;
(2) the Spouses (10.7.5) of my descendants with the limitation that the appointment for a Spouse of my descendant:
    (a) may *only* be made in further lawful trust,
    (b) may be an income interest in up to one-hundred percent (100%) of the trust assets for any purpose and
    (c) may be a principal interest in up to one-hundred percent (100%) of the trust assets *but only* for the education, health, maintenance and support of that Spouse in his or her accustomed standard of living (and for emphasis, the appointment for this Spouse *may not* include a larger principal interest such as "the Trustee deems advisable");
(3) any Charities (10.7.11).

If none of my descendants are living at Nick's death, Nick will have at Nick's death the additional power to appoint all or any part of the remaining principal and undistributed net income of the Bypass Trust, or Nonexempt Bypass Trust, to or among one or more of any persons other than Nick, Nick's creditors, Nick's estate or the creditors of Nick's estate. *(If this trust is nonexempt, see the 7.4.7 general power of appointment. See also 6.21 for the further provisions of the powers of appointment under this Agreement, such as method of exercise.)*

4.2 Asset Allocation at Nick's Death. 4.2.1 Bypass Trust Assets. At Nick's death, the Trustee will allocate the unappointed remaining principal and undistributed income of the Bypass Trust, to my descendants, *per stirpes*, or if none, to My Family as directed in paragraph 10.7.12. The portion of the Bypass Trust allocated to each individual under this subparagraph 4.2 will be held as a separate share of the Bypass Trust for the individual (who is then referred to as the "Beneficiary" of the share) and distributed for this individual ("Beneficiary") and the Beneficiary's family under paragraph 4.3.

4.2.2 Nonexempt Bypass Trust Assets. At Nick's death, the Trustee will allocate the unappointed principal and undistributed income of the Nonexempt Bypass Trust, to my descendants, *per stirpes*, or if none, to My Family as directed in paragraph 10.7.12. The portion of the Bypass Trust allocated to each individual under this subparagraph 4.2 will be held as a separate share of the Bypass Trust for the individual (who is then referred to as the "Beneficiary" of the share) and distributed for this individual ("Beneficiary") and the Beneficiary's family under paragraph 4.3.

4.3 Beneficiary. 4.3.1 Lifetime. During the Beneficiary's lifetime, the Trustee may distribute the net income and principal of the Beneficiary's share of the Bypass Trust to one or more of the Beneficiary and the Beneficiary's descendants as the Trustee determines is necessary for their education, health, maintenance and support in their accustomed manner of living. This distribution discretion includes the decision of the Trustee to withhold distributions of trust net income and principal from one or more, or all, of these individuals for any period of time or for any reason.

(See (a) 6.33 for ascertainable distribution standards that apply to certain creditor situations, (b) 7.4.6 for instructions concerning taxable distributions from a nonexempt trust, (c) 7.6.3 for ascertainable distribution standards that apply to certain tax-sensitive situations and (d) 7.8 for the limitation on distribution of Plan benefits.)

4.3.2 Additional Distributions. In addition to the payments authorized by subparagraph 4.3.1, the Trustee may distribute a portion of the Beneficiary's share of the Bypass Trust to or for the benefit of the Beneficiary upon the happening of various significant events in the Beneficiary's life, including the following:

(A) upon the Beneficiary attaining twenty-five (25) years of age, the Trustee may, but is not required, to distribute $300,000.00 to the Beneficiary or utilize $300,000.00 of the income and/or principal of the trust for the purchase of a personal residence for such Beneficiary in the name of such Beneficiary's trust; or

(B) any other event deemed by the Trustee to be the achievement of a milestone by the Beneficiary in the Trustee's sole and absolute discretion.

The Beneficiary will not have any enforceable right to a distribution upon the happening of any of the events set forth in this subparagraph 4.3.2. The decision whether to make a distribution (and the amounts to be distributed) will be made by the Trustee in its discretion based upon what the Trustee believes to be in the Beneficiary's best interests (including the Beneficiary's financial circumstances and solvency), although it is my expectation that the Trustee will follow the guidelines set forth in this subparagraph 4.3.2 unless there are good reasons not to do so. The Beneficiary shall not have any enforceable right to obtain the distribution set forth in subparagraph 4.3.2.(A) from both this trust and the Nicholas Coleman Revocable Trust. The Beneficiary shall only receive one distribution from one trust for the purposes set forth in Section 4.3.2(A) above.

4.3.3 Appointment. If the Beneficiary is age thirty-five (35) or older, the Beneficiary will have at the Beneficiary's death the power to appoint (direct the Trustee to distribute) all or any part of the remaining principal and undistributed net income of the Beneficiary's share of the Bypass Trust to or among one or more of:

(1) my *other* descendants (which is to say that the Beneficiary may not appoint to the Beneficiary, the Beneficiary's estate, the Beneficiary's creditors or the creditors of the Beneficiary's estate) with the limitation that the appointment for each such *other* descendant may only be made in further trust;

(2) the Spouses (10.7.5) of my descendants (which includes the Spouse of the Beneficiary) with the limitation that the appointment for a Spouse:
   - (a) may *only* be made in further lawful trust;
   - (b) may be an income interest in up to one hundred percent (100%) of the trust assets for any purpose;
   - (c) may be a principal interest in up to one hundred percent (100%) of the trust assets *but only* for the education, health, maintenance and support of that Spouse in his or her accustomed standard of living (and for emphasis, the appointment for this Spouse *may not* include a larger principal interest such as "the Trustee deems advisable");

(3) any Charities (10.7.11).

If the Beneficiary is age thirty-five (35) or older and none of my descendants are living, the Beneficiary will have at the Beneficiary's death the additional power to appoint all or any part of the remaining principal and undistributed net income of the Beneficiary's share of the Bypass Trust to or among one or more of any persons other than the Beneficiary, the Beneficiary's creditors, the Beneficiary's estate or the creditors of the Beneficiary's estate. *(If this trust is nonexempt, see the 7.4.7 general power of appointment and caution the Beneficiary to consider marital deduction planning with this power of appointment if advisable. Also see 6.21 for the further provisions of the powers of appointment under this Agreement, such as method of exercise.)*

4.3.4 Allocation at Death. At the Beneficiary's death, the Trustee will allocate the remaining unappointed principal and undistributed net income of the Beneficiary's share of the Bypass Trust:

(1) to the Beneficiary's descendants, *per stirpes*, or if none,
(2) to the living descendants of the parent of the Beneficiary who is my descendant, *per stirpes*, or if none,
(3) to the descendants of the grandparent of the Beneficiary who is my descendant, *per stirpes*, or if none,
(4) to my descendants *per stirpes*, or if none,
(5) to My Family as directed in subparagraph 10.7.12.

The portion of the principal and undistributed net income of the Bypass Trust allocated to each individual under this subparagraph 4.3.4 will be held as a separate share of the Bypass Trust for the individual (who is then referred to as the "Beneficiary" of the share) and distributed for this individual ("Beneficiary") and the Beneficiary's family under this paragraph 4.3. (*Consider 7.4.1 tax planning divisions.*)

4.3.5 Separate Trusts. When the Beneficiary reaches thirty-five (35) years of age (or if this Beneficiary is thirty-five (35) years of age or older when trust assets are allocated to a separate share for the Beneficiary), the principal and undistributed net income of this Beneficiary's separate share of the Bypass Trust will be distributed to the Trustee of a separate trust for this Beneficiary. The assets of this new trust (named by its Trustee) will be held and distributed for this Beneficiary under the terms of this paragraph 4.3 (with references to the Bypass Trust being to this new trust).

5. **TRUSTEES.** 5.1 List. I appoint the individuals named in the list that follows to serve as trustee ("Trustee") of the designated trust for the periods of time designated and in the trustee status designated if the individual has attained age thirty-five (35), is legally qualified to serve as trustee and is not disabled (10.6). I appoint the corporate trustee to serve in the status and for the periods of time designated. The status of an individual or corporate trustee and the time periods during which this person will serve as a trustee are designated in the lists that follow and will be applied as applicable and in list order at the time of application.

(A) Kelsey Brown Revocable Trust:
  (1) Kelsey Fey Brown;
  (2) Nicholas Lynn Coleman;
  (3) Arvest Trust Company.

(B) Marital Trust, Nonexempt Marital Trust, Bypass Trust and Nonexempt Bypass Trust (as applicable):
  (1) Nicholas Lynn Coleman;
  (2) Arvest Trust Company.

(C) Separate trust for the Beneficiary created under subparagraph 4.3.5:
  (1) the initial Beneficiary of this trust;
  (2) Arvest Trust Company.

If a person is disabled, is not willing, has not met a requirement, ceases to serve as trustee of a trust for any reason, including the regained ability (i.e., no longer disabled (10.6)) of a prior trustee, or resigns as trustee, the first person(s) set forth in the above list for that trust (starting in order again) that is legally qualified, able and willing to serve as trustee in the described circumstances will become the trustee. If ever applicable, a co-trustee cannot acquire sole trustee status by resignation or refusal to serve.

5.2 Trustee Change Authority. 5.2.1 Lists. I give the individuals named in the lists that follow for the periods of time designated the authority to change the terms which define the holding of the position of trustee of the designated trust if the individual has attained age thirty-five (35) and is not disabled (10.6). This authority with respect to the trust is referred to as "trustee change authority". Trustee change authority includes the right to remove trustees, to add additional trustees and to appoint successor trustees. The status of an individual with trustee change authority ("Trustee Changer") and the time periods during which trustee change authority is held are designated in the lists that follow and will be applied as applicable and in list order at the time of application.

(A) Kelsey Brown Revocable Trust:
  (1) Kelsey Fey Brown;
  (2) Nicholas Lynn Coleman.

(B) Marital Trust, Nonexempt Marital Trust, Bypass Trust and Nonexempt Bypass Trust (as applicable):
  (1) Nicholas Lynn Coleman; then
  (2) Arvest Trust Company.

(C) Separate trust for the Beneficiary created under subparagraph 4.3.5:
  (1) the initial Beneficiary of this trust; then
  (2) Arvest Trust Company.

When the rights of an individual with trustee change authority ("Trustee Changer") cease, which will be by release of the authority or in the event of disability, death, regained ability (i.e., no longer disabled (10.6)) of a prior trustee changer, attainment of age or happening of a designated event (if applicable), the first applicable individual(s) in the list for the trust (starting in order again) who is not disabled is given trustee change authority with respect to the trust. A trustee changer with authority for a limited period of time (for example, until another individual attains an age or during a period that a prior trustee changer is disabled or unwilling to hold this authority) may not exercise trustee change authority during this period to deny this authority to the individual(s) who will receive it at the next designated event.

5.2.2 Exercise. The Trustee Changer has the inherent authority to change the trustee list of a trust, including before it is funded. A trustee may be appointed for a limited purpose or a limited time or to hold only specified powers by this authority. The Trustee Changer may release all or any part of this authority or grant any aspect of this authority to another person, who is then also referred to as "Trustee Changer" in proper context. The Trustee Changer will exercise this authority by a writing (including a will) which sets forth the terms of the release or grant. This authority may be exercised by an Agent (10.7.6) of the Trustee Changer only if this Agent is specifically authorized to exercise this authority for the Trustee Changer.

5.2.3 Joint Changers. Joint trustee changers must act unanimously. A joint trustee changer cannot acquire sole trustee change authority by the release of joint authority.

5.2.4 Corporate Trustee Removal. If there is no Trustee Changer and this subparagraph 5.2.4 has not been intentionally limited by previous exercise of trustee change authority (if applicable), a majority of the Beneficiaries of that trust who have reached age thirty-five (35) may remove the corporate Trustee and substitute a successor corporate trustee at any time (1) with reasonable cause without termination fees and (2) without cause after the corporate Trustee has served for three years with reasonable termination fees. "Reasonable cause" will include:

(a) inability of the corporate Trustee and the Beneficiaries to agree upon reasonable compensation for trustee services (if applicable);
(b) unreasonable inattention to the reasonable needs of the Beneficiaries;
(c) unreasonable lack of communication between the corporate Trustee and the Beneficiaries;
(d) unreasonably inaccurate or unclear transaction statements or statements of account;
(e) unreasonable conflicts between the corporate Trustee and the Beneficiaries;
(f) merger, acquisition or deteriorating financial condition of the corporate Trustee;
(g) unreasonably high turnover of account officers assigned to the trust;
(h) lack of reasonable investment return on the assets of the trust.

In the event that a corporate trustee is removed by the Beneficiaries for reasonable cause, the corporate Trustee will only be entitled to charge reasonable termination fees that are approved by an independent third party selected unanimously by the Beneficiaries and the corporate trustee (such determination to be in the nature of a mediator). The reasonableness of the termination fee will be determined by the third party taking into account the level of conduct deemed to be reasonable cause. This mechanism is for the purpose of protecting the corporate trustee from "thin" or "subjective" charges of reasonable cause by the Beneficiaries but should not reward the corporate trustee for conduct that is determined to be reasonable cause.

5.2.5 No Duty to Act. The Trustee Changer is not required and will have no duty to exercise this authority. The Trustee Changer may appoint a beneficiary of a trust the Trustee of that trust. The Trustee Changer will be exonerated and indemnified from any and all liability arising from Covered Acts (10.8).

5.3 No List. If a trustee resigns, a designated trustee is not permitted to act under state law or another event occurs which leaves a trust without a designated successor trustee, the resigning trustee, the disqualified trustee or other trustee (or if he fails to act, the court with jurisdiction) may designate the successor trustee of that trust.

5.4 Bond. No trustee will be required to give bond or other security in any jurisdiction. If despite this exoneration a bond is required for any reason, no sureties will be required.

5.5 Vote. 5.5.1 Rules. Except as otherwise limited by this Agreement, if two or more trustees are eligible to act on a trust matter, the trustees will act by majority vote. The vote will bind the trust and its beneficiaries and may be relied upon by persons involved in transactions with respect to the trust. If a corporate trustee is serving with more than one individual trustee, the corporate trustee will have the same total number of votes concerning all trust matters as there are individual trustees (said another way, the corporate trustee will always have fifty percent (50%) of the vote on trust matters).

5.5.2 Deadlock. Deadlocked trustees may unanimously appoint a special trustee to break the tie, or one or more of the deadlocked trustees may petition the court with jurisdiction for appointment of a special trustee for this purpose.

5.5.3 Example. For example, if there are two individual trustees and there is a corporate trustee, there will be four total votes on a trust matter. The corporate trustee will have two votes on the matter and the matter will be decided by majority vote.

5.6 Acts of Others. No trustee will be liable to anyone for anything done or not done by any prior or successor trustee.

5.7 Successor. A successor trustee has the same position with the same powers and duties as the prior trustee without additional title transfer. A person will become the successor trustee of a trust when the person accepts the position of trustee in writing. No title transfer of assets will be required as part of the succession process from one trustee to another.

5.8 Resignation. A trustee may resign by giving written notice specifying the effective date of the resignation to the designated successor trustee of that trust, if there is one, or otherwise to each beneficiary who could be distributed trust income (determined at the time the notice is given). Notice to a minor beneficiary without a legal guardian or to a beneficiary with a legal guardian will be given to the custodial parent and the legal guardian, respectively.

5.9 No Merger. I do not intend for a beneficiary's interest to be merged or converted into a legal life estate or estate for years because the beneficiary is the sole trustee. If despite this expression of intent this would occur under applicable law, then, effective from inception of the event, an additional trustee is appointed in preference to this merger or conversion.

6. **ADMINISTRATION**. 6.1 Powers. 6.1.1 Listed Powers. Except to the extent that the following powers are in conflict, inconsistent with or limited by other provisions of this Agreement, the Trustee will have the power:

(1) to buy, sell, lease, convey, grant security interests in, mortgage and pledge trust assets (real or personal property) on terms (that include periods that start in the future or extend beyond the trust term unless otherwise limited by perpetuity limitations) the Trustee determines advisable (with or without notice at either public or private sale and subject only to those confirmations and other requirements of local law and

courts which may not be waived by my direction), including with respect to any warranties or indemnifications;

(2) (a) to hold and retain any property in the form received under this Agreement (including by continuation of a sole proprietorship or other business form);

(b) to invest and reinvest trust assets in all forms of real and personal property, which includes:

(i) investment or reinvestment in blockchain assets, loans, bonds, notes, futures, stock or other securities of any kind, shares or participating interests in any common trust fund of any corporate trustee, mutual funds and other forms of joint investment (that may be managed by, advised by or affiliated with a trustee), insurance, annuities, real estate, mortgages, real estate trusts, partnerships, mutual funds, venture capital or other private equity, leveraged or speculative funds, closely held businesses, tax shelters, foreign assets, oil and gas and other natural resource interests, equipment, commodities, currencies, collectibles, precious metals or other real or personal property of any kind considered appropriate in trustee discretion, and

(ii) investment or reinvestment by organization, operation and dissolution of businesses as corporations, sole proprietorships, general or limited partnerships, limited liability companies, business trusts, joint ventures or other forms (with authority to elect to a board of directors any individual trustee or officer or employee of any corporate trustee or an affiliated entity, to pay premiums on liability insurance maintained for any such individual trustee or officer or employee acting as a director and to receive additional compensation for this service);

(c) to exercise all options, rights and privileges to convert stocks, bonds, notes, mortgages or other property into stocks, bonds, notes, mortgages or other property, subscribe for additional other stocks, bonds, notes, mortgages or other property and make such conversions and subscriptions and payments for such conversions and subscriptions and hold such stocks, bonds, notes, mortgages or other property so acquired as investments of the trust;

(3) to trade in securities, including by options, short sales, futures and on margin, and to maintain margin accounts and pledge securities held in the trust for loans and advances to the trust;

(4) to borrow from any source (including from a trustee individually) and mortgage or pledge any assets of the trust for any purpose;

(5) to permit and engage in the use and severance of natural resources (including oil, gas, ore, coal, timber and other minerals and resources) as an owner of real property in which such natural resources are situated, as a lessee, licensee, partner or joint venturer in respect of such use and severance, or as a holder of any royalty, interest or miscellaneous right involving such use and severance, and in so doing, to secure appraisals and geological surveys and studies, make pooling and unitization agreements, make agreements involving the installation or operation of absorption, repressuring or other processing plants, pay delayed rents, lease bonuses, royalties and overriding royalties, drill, rework or recomplete wells, test, explore, treat, mine, produce, recover, process, store, transport and market any minerals or other natural resources, pay all reasonable expenses, employ, supervise and discharge independent

contractors and employees and take any other action necessary or desirable in order to use and sever natural resources;

(6) to enter into underwriting, purchase and stockholder deposit agreements, sign prospectuses, sign and file registration statements, give powers of attorney to sign registration statements, execute bonds and take any other action necessary to register and sell securities;

(7) to apply trust assets otherwise distributable to a beneficiary to the use of or for the benefit of the beneficiary, and for a beneficiary under age twenty-one (21) or legal disability, to transfer the assets to a custodian for the beneficiary under a transfer to minors act or the legal guardian of the beneficiary's estate;

(8) to make allocations and distributions of trust assets in cash or in specific property (including undivided interests), or both, which are not *pro rata* in character of assets and without regard to the income tax basis of specific property allocated or distributed;

(9) to litigate, submit to arbitration, compromise, adjust or settle claims against or on behalf of the trust and execute agreements, deeds, releases and other documents connected with such action;

(10) to retain or take title to any property held in trust in bearer form or in the name of any custodian or nominee, without disclosing this relationship;

(11) to charge fiduciary accounting income with charges described in paragraph 9.1.

These powers may be exercised without regard to any fiduciary requirement concerning nature of legal investments and without liability for lack of productivity, decline in value or lack of diversification, and if the Trustee disposes of assets, without liability for loss resulting from any increase in the value of the assets after disposition.

6.1.2 Incorporated Statutory Powers. In addition, to the extent not inconsistent with the subparagraph 6.1.1 listed powers, the Trustee will have those powers set forth in Ark. Code Ann. § 28-69-304 (4)-(38) as enacted at this date (that are designated as paragraphs "e" through "ff" of Section 3 of Act 153 of the 1961 Acts of the General Assembly of Arkansas and as paragraphs "(33)" through "(38)" of Section 1 of Act 421 of the 1993 Acts of the General Assembly of Arkansas) which are incorporated in this Agreement by reference.

6.1.3 Other Trust Code Powers. In addition, to the extent not inconsistent with the subparagraph 6.1.1 listed powers and the subparagraph 6.1.2 incorporated statutory powers, the Trustee will have those powers granted by the Arkansas Trust Code (6.3).

6.1.4 Exercise. The powers of the Trustee are exercisable without court authority. These trustee powers (and the other administrative terms of this Agreement) apply to all trust assets held by the Trustee until actual distribution of the trust assets, which includes the windup period with respect to the termination of a trust.

6.2 Principal and Income. Except to the extent the Trustee is otherwise restricted by the tax-sensitive or other transfer tax limitations of the Agreement, for income tax purposes, the Trustee has the discretion to allocate capital gains to distributable net income on the books, records and income tax returns of a trust created under this Agreement. Otherwise, the determination of all matters with respect to what is principal and income of a trust and the allocation of receipts, disbursements and other charges between these accounts will be governed by Arkansas law as it exists from time to

time. I incorporate for this purpose any required statutory reference to the Arkansas principal and income statutes.

6.3 Trust Code. 6.3.1 Arkansas. The Arkansas Trust Code (Ark. Code Ann. § 28-73-101 and following) ("Trust Code") applies to the trusts created under this Agreement. The Trust Code provides that it will govern the duties and powers of a trustee, the relations among trustees and the rights and interests of a beneficiary "except as is otherwise provided in the terms of the trust." The terms of this Agreement will therefore take precedence over the Trust Code when the terms of the trust conflict with the Trust Code except with respect to matters set forth in Ark. Code Ann. § 28-73-105(b), which cannot be altered by this Agreement.

6.3.2 Other Jurisdiction. If the trust or other laws of another state or jurisdiction become applicable to a trust created under this Agreement (*e.g.*, 6.5), the terms of this Agreement will also take precedence over the trust code or other similar provisions of the other state or jurisdiction when the terms of the trust conflict with that trust or other law except with respect to matters under that trust or other law which cannot be altered by this Agreement. In this event, specific references to the Trust Code will be deemed made to the corresponding provisions of the law of the other state or jurisdiction.

6.3.3 Notice, Information and Reports. 6.3.3.1 Ark. Code Ann.§ 28-73-813, which requires the trustee of a trust to inform and report, *will not apply* to the trusts created under this Agreement. The *only* information and report requirements of this nature imposed on trustees under this Agreement are as follows:

(A) After my death, the Trustee will provide to the Report Beneficiary (6.3.3.3) within a reasonable time of the request, at least annually and at the merger, division or termination of the share or trust, a report that would satisfy Ark. Code Ann. § 28-73-813(c)(1) if the Report Beneficiary requests the report in writing. The report need only relate to the share of the trust of the Report Beneficiary.

(B) The Trustee will furnish to the Report Beneficiary a copy of this Agreement if the Report Beneficiary requests the copy in writing. When furnishing this copy, the Trustee may delete the distribution provisions of the Agreement which relate to other beneficiaries and require the Report Beneficiary to enter into a confidentiality agreement to protect the confidence of this Agreement (with reasonable damages payable from the share of the Report Beneficiary in the event of a breach of confidentiality).

(C) The Trustee will furnish me with any information and reports that I request, orally or in writing.

6.3.3.2 The Trustee need not notify a Report Beneficiary of the existence of a share or trust held under this Agreement. The Trustee may give the Agent, parent, grandparent or legal guardian of a Report Beneficiary without legal capacity any notice, report or information required by this Agreement or the Trust Code and this person will have the power to bind this Report Beneficiary with respect to the interest of this Report Beneficiary in the share or trust. The Trustee may designate another person to receive notice, report or information on behalf of the Report Beneficiary for this purpose.

6.3.3.3 The term "Report Beneficiary" means Nick during his lifetime and after his death, the Beneficiary (as that term is defined in this Agreement) of the share or trust, and if there is no Beneficiary of the share or trust, the beneficiary(s) of the share or trust who is (are) my descendant(s) in the closest degree of relationship to me and is (are) a permissible current income beneficiary(s) of the share or trust.

6.3.4 Notice. Except as otherwise provided in this Agreement or by a mandatory rule of the Trust Code, the Trustee may, but is not required to provide any notice to any current or remainder beneficiary.

6.3.5 Modification or Termination. The court with jurisdiction over a trust created under this Agreement will not have the power to modify or terminate the trust solely on the consent of the beneficiaries. A material purpose of the trusts created under this Agreement is to preserve assets for the benefit of the beneficiary(s) for the length of the trust, to provide for trustee management of the assets, to protect the assets from claims of creditors and to accomplish my intended tax objectives. (See Ark. Code Ann.§ 28-73-411.)

6.4 Accounting. The Trustee will annually add any discretionary undistributed net income to principal. In computing net income, the Trustee will make provisions for all expenses, debts and other costs incurred in the management of the trust, which will be charged *pro rata* based on share values against separate shares, if applicable. Each trust will be subject to independent administration with the least court supervision permitted by law. The Trustee will not be required to render accountings, inventories, appraisals or the like to any court (whether required by statute or otherwise). The Trustee may have accounts approved with or without court approval and the expenses of this approval (including professional and guardian fees) will be paid from the trust.

6.5 Situs. The Trustee may remove trust assets from Arkansas and change the place of the administration and situs of any trust under this Agreement to other locations if the Trustee determines the change to be advisable for efficient administration of a trust except to the extent the Trustee is otherwise restricted by the tax-sensitive or other transfer tax limitations of the Agreement. The Trustee may elect by an instrument filed with the trust records that the law of such other jurisdiction will govern the administration of the trust to such extent as may be appropriate. Otherwise, the trust will be governed by Arkansas law, regardless of the location of its assets, place of administration and situs. These changes may be made without any notice to any beneficiary of the trust, which is a specific waiver of the notice required by the Trust Code (Ark. Code Ann.§ 28-73-108(d)).

6.6 Addition Allocations. Unless the donor directs otherwise, an addition to a trust will be allocated to the descendants of the donor who are then Beneficiaries, *per stirpes*, or if none, then in equal shares to the then shares of the trust.

6.7 Trust Names. The Trustee will name additional trusts which are created by division or other act under this Agreement. The Trustee may also change the name of a trust under this Agreement at any time. The Trustee will document the names and any changes in the trust records and may take action advisable to effect such action.

6.8 Delegation. Except as otherwise limited by this Agreement, a Trustee may in writing delegate to another Trustee the exercise of any power held by that Trustee *but only if* the other

Trustee is permitted by this Agreement or applicable law to exercise the delegated power. Even though the delegation is revocable, the delegating Trustee will have no responsibility concerning exercise of the delegated power while the delegation is in effect.

6.9 Appointment of Special Trustee. The Trustee of a trust will have the right at any time to appoint any person to act as a special trustee ("Special Trustee") with respect to the trust under those limited powers and authority as agreed to by the Trustee and the Special Trustee. Except as otherwise limited by this Agreement, the Trustee may make this agreement with the Special Trustee on those terms and conditions of the position of Special Trustee as are mutually agreeable, including reasonable compensation for the special trustee services. Unless otherwise agreed:

(A) This position of Special Trustee will be limited to the exercise of the agreed powers and authority.
(B) The Special Trustee will have no responsibility for any other aspect of trust administration.
(C) The position of Special Trustee will be executed in a manner that comports with my intent as expressed in this Agreement.
(D) The Special Trustee will be exonerated and indemnified from any and all liability arising from Covered Acts (10.8).

The appointment of a special trustee and the agreement with the Special Trustee will be set forth in a signed and acknowledged writing.

6.10 Duty of Person Dealing with Trustee. A person who in good faith and for value deals with a trustee or a co-trustee (or a person purporting to be a trustee or co-trustee), or who in good faith assists a trustee or co-trustee (or a person purporting to be a trustee or co-trustee), in the conduct of a transaction (*e.g.*, a purchaser of trust assets, a transfer agent, a dividend disbursing agent, a bank or a brokerage firm) will not be required to:

(1) ascertain whether this person who purports to be a current trustee is in fact then occupying the position of trustee;
(2) ascertain whether this trustee has the power to act alone, or if applicable, on behalf of the other co-trustees;
(3) ascertain whether a trustee is properly exercising any power;
(4) assure the proper application of any property paid or delivered to a trustee.

Deeds, notes, checks, contracts, leases, bills of sale, trust certifications and other documents or writings, or other action or nonaction, which bind the trust, subject the trust to liability or create other legal relationships with respect to the trust assets may be executed, or taken or not taken, (a) by one co-trustee or (b) by another person designated by the Trustee to act for the Trustee (such as an agent for the Trustee).

6.11 Compensation. Each Trustee will be entitled to receive reimbursement for expenses reasonably incurred in administering the trust. If an individual serves as Trustee, he will by acceptance of the position of trustee have waived his compensation for trustee services. This waiver may be revoked at any time by this individual for services not yet rendered and this individual Trustee will then receive reasonable compensation for trustee services. In determining this reasonable compensation, factors which may be considered are: (1) fees charged by local corporate

trustees under similar circumstances, (2) time spent in administering the trust, (3) the value of the trust assets and (4) the nature of the trust assets. The corporate Trustee will receive reasonable compensation for trustee services (that will be determined by the noncorporate Trustee Changer, if any, or if not, by then applicable trustee fee schedules) except as otherwise restricted by this Agreement.

6.12 Investment. The Trustee may employ, appoint, rely on the advice of and pay reasonable compensation to investment counsel, accountants, attorneys, and other professional advisers and agents, attorneys-in-fact, employees, and other similar persons the Trustee deems reasonably necessary for proper trust administration, without affecting the fees otherwise payable to the Trustee. The Trustee may delegate discretionary investment authority over investments to investment counsel under contracts which limit the liability of the Trustee to the extent of the assets of the trust. The Trustee may acquire a retain investments that present a higher degree of risk than would normally be authorized by the "prudent person" rule. I do not intend for any investment type to be prohibited, regardless of its risk or speculation. The Trustee may retain and acquire property that does not produce income subject to any restrictions or qualifications of this power elsewhere under this Agreement.

6.13 Flexibility. 6.13.1 Severance and Consolidation. The Trustee may on a fractional basis (1) initially establish a trust as or with two or more separate trusts or shares, (2) divide a trust or a separate share into separate trusts or separate shares or (3) initially establish an addition or pourover to be made to a trust as a separate share or a separate trust. The Trustee may consolidate two or more shares or trusts (including shares or trusts created by different transferors) having substantially similar beneficial terms into a single share or trust. A severed or consolidated share or trust will be treated as a separate share or trust for all purposes from the date on which the severance or consolidation is effective. This resulting share or trust will be held under the same beneficial terms of the severed or resulting share or trust with any relevant pecuniary amount or other design feature being applied *pro rata* to the resulting separate shares or trusts or other equivalent manner determined by the Trustee in order to prevent "double-up" or other unintended results. Income earned on assets being divided will retain its character as income and will be allocated in the same fractions. The Trustee will document this action and name or identify the resulting share or trust. *(The Trustee is advised to consult qualified tax advisors for assistance in this aspect of trust administration and tax planning.)*

6.13.2 Common Investment. For convenience in administration and investment, the Trustee may invest the assets of multiple trusts in a single fund, assigning them undivided interests in the combined fund and accounting for them separately.

6.13.3 Advances. Until all information needed for final distribution to another trust is assembled and final distribution is made, the Trustee may distribute trust assets to the then income and principal beneficiaries of the other trust with the consent of the other trustee. These distributions will be treated as advances and credited toward the transfers otherwise required to be made to the trustee of that trust.

6.14 Conflicts. The fact that the Trustee may have conflicting fiduciary and individual interests in a transaction, or may otherwise be interested in a transaction other than as a trustee, will not be the basis for preventing the Trustee from exercising trust powers with respect to a transaction and the Trustee may enter into the transaction so long as it is fair to the trust. This recognition of

perceived conflict does not relieve the Trustee of the fiduciary duties under this Agreement, nor does it reduce them in any manner. Subject to the fairness requirement, this recognition permits:

(1) purchases and sales of investments through a corporate trustee or firm of which a trustee is a partner, shareholder, proprietor, associate, employee, owner, subsidiary, affiliate or the like and investment in individual securities, mutual funds, partnerships, private placements or other forms of investment promoted, underwritten, managed, or advised by a trustee or such a firm; and

(2) a trustee (or a firm of which a trustee is a member or with which a trustee is otherwise affiliated) to render accounting, legal or other professional services for a trust and to receive both fees for these services and for services as trustee unless specifically limited by law.

This recognition also waives the rules of law prohibiting self-dealing between the Trustee in a fiduciary capacity and the Trustee in an individual capacity, entities with which the Trustee may be affiliated in an individual capacity, or entities in which the Trustee may have an interest in an individual capacity, but all such transactions will be at arm's length. The intent of this paragraph 6.14 is: (a) to relieve the Trustee of any liability for decisions or actions that would constitute self-dealing by a fiduciary if such decisions or actions are made in good faith and (b) to keep a transaction made by the Trustee in good faith from being void or voidable by a beneficiary pursuant to the duty of loyalty or similar standard otherwise applicable to the Trustee.

6.15 Loans and Purchases. The Trustee may borrow money (including from the Trustee and from any beneficiary of a trust), for the benefit of the trust and secure these debts with assets of the trust. The Trustee will not be personally liable for the loan. The loan will be payable from the assets of the trust. The Trustee may make loans to persons as the Trustee determines is advisable The Trustee may purchase assets from the personal representative of a probate estate or the trustee of another trust at their fair market value on terms determines advisable by the Trustee.

6.16 Asset Retention. If the trustee of a trust held under this Agreement is directed by the exercise of a power of appointment, the termination of a trust or other situation to distribute trust assets and there is the possibility that this distribution will leave the trustee without sufficient trust assets to meet trust obligations, the Trustee may retain sufficient assets to reasonably secure payment of liabilities incurred or accrued by the Trustee in administration (including Trustee fees) unless the Trustee has been indemnified against loss or expense not resulting from any breach of trust.

6.17 Nature of Trustee Action. The exercise of trustee powers, authority or discretion (by action or nonaction) will be subject to correction by a court if the Trustee should act in bad faith or without reason unless this standard of review is otherwise restricted by the transfer tax limitations of the Agreement. Therefore, the exercise of tax-sensitive trustee powers, authority or discretion (by action or nonaction) of a tax-sensitive trustee will be subject to that standard of fiduciary review consistent with an ascertainable standard for federal transfer tax purposes and that otherwise prevents unintended transfer taxation; and as such, each power, authority or discretion (by action or nonaction) of this trustee with respect to the trust and under the ascertainable distribution standard is exercisable only in a fiduciary capacity and may not be used by this trustee to enlarge or shift any beneficial interest except as an incidental consequence of the discharge of the fiduciary duties (7.6). Otherwise, the Trustee is to have as much discretion as is consistent with the intent of no unintended transfer taxation and the application of applicable ascertainable standards. Attorney fees and costs

will be reimbursed to each Trustee for the defense of a judicial review (and may be advanced at the request of the Trustee, with a required return of the advance made without interest) if agreed to in writing that reimbursement is subject to a final determination that the Trustee did not act or fail, choose or refuse to act in bad faith or without reason (or according to the ascertainable standard if applicable).

6.18 Virtual Representation. In court proceedings relating to a trust, service upon an individual under legal disability, or appointment of a guardian *ad litem* for this individual or for unborn or unascertained beneficiaries, need not be made if another person not under a disability is a party to the proceeding and has the same or a substantially similar interest as, or a position in the proceeding which is protective of, the individual under legal disability or any unborn or unascertained beneficiaries. The individual under disability and unborn or unascertained beneficiaries will be bound by the results of the proceeding without service. This concept of virtual representation will also apply to consents, nonjudicial settlements, releases, exonerations and indemnifications.

6.19 Property Use. The Trustee may continue to hold, or acquire, and maintain for the use and benefit of Nick or the beneficiary of a trust (or a share), any real property or any tangible personal property on terms the Trustee determines advisable (including rent free or in consideration of payment of taxes, insurance, maintenance and ordinary repairs) except to the extent the Trustee is otherwise restricted by transfer tax limitations of the Agreement. The Trustee may pay all carrying charges of this property (including taxes, assessments and maintenance) and all expenses of repair and operation. After my death, with respect to any interest in a residence (including condominium or cooperative apartment) held by the Trustee that was used by me or Nick, (A) the Trustee will allow Nick to use it rent free; (B) the Trustee may not exchange or sell it without Nick's written consent; (C) Nick can require the Trustee to replace it after sale with another residential interest (or the lease or rent of one) of a lower or comparable value of Nick's choice.

6.20 Personal Item Handling. Personal Items allocated to a descendant who has attained age twenty-three (23) will be distributed outright to the descendant. If a descendant has not attained age twenty-three (23), the Trustee will add the Personal Item to the trust share held under this Agreement with the highest exclusion ration and will hold and distribute it for the descendant according to the applicable trust terms.

6.21 Other Appointment Terms. 6.21.1 Definitions. The individual who creates the power of appointment is known as the "Donor" of the power. I am the Donor of the power(s) of appointment created by this Agreement. The individual to whom I have granted the power of appointment is known as the "Powerholder." The person(s) to whom the Powerholder may direct the Trustee to make distributions by exercise of the power of appointment are known as the "Appointee(s)" (and are sometimes called the "objects" of the power of appointment).

6.21.2 Exercise. Any power of appointment created by this Agreement may be exercised only by (1) an acknowledged writing (other than a will) which is signed by the Powerholder, or the specifically authorized Agent of the Powerholder, and is delivered to the Trustee during the lifetime of the Powerholder or (2) the Powerholder's last will duly admitted to probate. To be effective, the appointment must specifically refer to the power of appointment being exercised. Unless the appointment expressly provides otherwise, it may be revoked or amended by subsequent appointment. Unless otherwise directed in the exercise of the power of appointment, the

most recently executed appointment will revoke each earlier appointment by the Powerholder to the extent it is in conflict with prior appointments.

6.21.3 Extent. No limited power of appointment may be exercised directly or indirectly (1) in favor of the Powerholder or the creditors, estate or creditors of the estate of the Powerholder or (2) in discharge of any legal obligation of the Powerholder, including the obligation of support. Except as otherwise limited by the power itself, a Powerholder may appoint outright, to a custodian or to a trustee in further lawful trust (that is, not in violation of the applicable perpetuities limitations), in present or future interests, or any combinations of these forms. Also, a Powerholder may confer new powers of appointment of any type upon, and may impose restrictions and conditions on or for the benefit of, any of the objects of the power of appointment of this successor powerholder. Plan (10.7.7) benefits may only be appointed to designated beneficiaries (7.8). *(If a Powerholder gives an Appointee an income interest in further lawful trust, the Powerholder should consider the issues that can confront a trustee of that income interest if there is a conflict of interest between the Appointee and the remainder beneficiaries of the trust assets and draft the exercise of the power of appointment accordingly.)*

6.21.4 Notice. If the Trustee does not receive actual notice of the exercise of a power of appointment by will within six (6) months after the death of its Powerholder, the Trustee may distribute the property subject to the power without liability to any beneficiary or other person as if the power had not been exercised. Distributions made under this previous sentence will not affect any right of recovery which the appointee or beneficiary in default of appointment may have against a distributee. A power of appointment may be exercised with respect to a trust or share of it even though all assets constituting the trust or share over which the power of appointment has been granted have not been received by the Trustee.

6.21.5 Insurance. No power of appointment may be exercised by the Powerholder with respect to a life insurance policy on the life of the Powerholder or its proceeds unless the policies or proceeds would be included in the Powerholder's gross estate at his death without regard to the power of appointment.

6.21.6 Date Effective. Unless the exercise of a power of appointment is specifically restricted by this Agreement, a power of appointment (1) exercised by a writing is effective on delivery to the Trustee or as otherwise provided in the writing and (2) exercised by will is effective on the Powerholder's death or as otherwise provided in the will.

6.21.7 Compulsion. The purported exercise of a power of appointment will be void and of no effect if the purported exercise is the result of compulsion. If the purported exercise is the result of compulsion, the Trustee will distribute the assets as if the purported exercise had not occurred. A purported exercise of a power of appointment is the result of compulsion if the purported exercise is in response to or by reason of any order or other direction of a court having jurisdiction over the Powerholder, the Trustee or the trust assets. The Powerholder's Agent may not exercise a power of appointment if the purported exercise is in response to or by reason of any order or other direction of any court having jurisdiction over the Agent unless the order or other direction was obtained by the Agent in a proceeding in which the Agent was the petitioner or voluntarily acquiesced.

6.22 Perpetuities Limitation. 6.22.1 Intent. No trust or share of a trust held under this Agreement will fail in whole or in part by reason of any applicable rule against perpetuities. This paragraph 6.22 will be construed to prevent a possible violation any applicable rule against perpetuities with respect to the trust or share.

6.22.2 Maximum Duration Date. The trust or share will terminate on the last day of the longest period with respect to which that type property may be held in trust by the Trustee under the applicable perpetuities rule ("Maximum Duration Date") (e.g., a period of ninety (90) years or the death of a survivor of a group of individuals plus twenty-one (21) years). If there is no applicable perpetuities rule, then there will be no Maximum Duration Date that will require a trust or share to terminate.

6.22.3 Group Reference. If the Maximum Duration Date is determined by reference to the death of the last survivor of a group of individuals, this group will be comprised of me, the descendants of my father, the Spouses of the descendants of my father and the descendants of the King of England known as King George the Fifth who were alive on the date from which the perpetuities period is measured for the trust or share.

6.22.4 Vesting. On the Maximum Duration Date, the principal and undistributed net income of the trust or share will vest in each of its then permissible current primary income beneficiaries in proportion to the relative interests of these beneficiaries. The trustee will then distribute the principal and undistributed net income of the trust or share to these beneficiaries as soon as is administratively practicable with respect to this termination of the trust or share.

6.22.5 Power of Appointment Exception. These rules concerning the maximum duration of a trust interest will apply to an interest created by an exercise of a power of appointment held or conferred under this Agreement or to an interest that follows the nonexercise of this power of appointment unless this interest is allowed a new maximum duration period under the applicable rule against perpetuities, suspension of alienation or the like (*e.g.*, because of a new power of appointment or power of withdrawal conferred by the exercise of the original power).

6.22.6 Merger or Addition. If assets of a trust or share held under this Agreement are consolidated with the assets of another trust or share (*e.g.*, by merger of the trusts, by an addition to the trust by power of appointment or by the "pourover" from the other trust) and the Maximum Duration Date is not the same for each trust or share involved, the most restrictive Maximum Duration Date of these trusts or shares which are to be consolidated will apply to the trust or share that is to hold the assets of the trusts or shares after the consolidation unless trust accounting or other tracing methods can be applied to the assets of the receiving trust or share under the applicable rule against perpetuities, suspension of alienation or the like in a manner which preserves separate Maximum Duration Dates for the various assets in the consolidation. If the trustee determines that (1) in order to preserve the different Maximum Duration Dates for the various assets held or to be held in trust by the receiving trustee or (2) in order to avoid the accounting for separate assets necessary to preserve such periods, it is or would be advisable to hold the assets designated for receipt separately, the receiving trustee may choose to hold these appointed, pourover or other assets in a separate trust or share under the terms of the Agreement that would otherwise have applied to these assets, applying the applicable Maximum Duration Date to these assets in administration of the new separate trust or share (6.13.1).

6.23 Property Insurance. Property transferred by this Agreement (including under a list or statement concerning Personal Items (2.2.1)) includes any insurance policy with respect to the property and its proceeds.

6.24 Environmental Hazards. The Trustee has the power to perform all environmental inspections of trust assets deemed advisable by the Trustee at the expense of the trust before or after the assets are accepted by the Trustee. The Trustee has the right to decline to accept an asset as part of the trust based on the results of any inspection but may continue to act as Trustee with respect to other acceptable trust assets. The Trustee has the authority to undertake any remedial measures with respect to any trust asset which the Trustee deems necessary or advisable in order to comply with environmental laws and to compromise environmental liability claims on terms determined advisable by the Trustee at trust expense. The Trustee has authority to regularly inspect and monitor trust property for environmental compliance at trust expense and at the risk of the trust. The Trustee will have no personal liability for environmental laws. The Trustee may disclaim any power that might subject the Trustee to personal liability for environmental violations.

6.25 Distribution Delay. Upon the occurrence of an event requiring the Trustee to divide, allocate or distribute trust property, the Trustee may delay without payment of interest the division, allocation or distribution of all or any part of the distribution for the period of time reasonably required to ascertain and provide for the payment of any tax or other debt or liabilities for which the trust assets are or may become liable or to resolve any conflicting claims regarding entitlement to the assets. This authority does not effect the vesting of any interest created under this Agreement or the accrual and payment of trust income to a beneficiary.

6.26 Additions by Nick. The Trustee may not receive an addition to the Trust by Nick during my lifetime. Property transferred during my lifetime by Nick to the Trustee will be held by the Trustee for me individually and free of trust as my nominee. If I direct the Trustee to transfer property held as nominee to the Trust, no further transfer document will be needed to transfer title to the Trustee of the Trust.

6.27 Life Insurance. 6.27.1 Thoughts on Investment. In the long term, a life insurance investment by the Trustee may not yield a rate of return as high as other available investments and there is the possibility that such an investment may experience a negative rate of return (that is, a loss of principal). However, the benefits of life insurance investments (as compared to other investments) that result if an insured dies short of life expectancy can outweigh the risk of lower yield if life expectancy is out lived.

6.27.2 No Diversification and Relief from Risk. I authorize (but do not obligate) the Trustee to purchase life insurance on any life in which the Trustee has an insurable interest and also to continue to hold life insurance transferred to the Trustee by a donor or other person, without any duty to diversify the types of life insurance policies ("life policies") or to purchase life policies from more than one insurer. I relieve the Trustee from any duty to:

(1) independently investigate the recommendations of an insurance adviser;
(2) compare the performance or pricing or projected performance or pricing of a particular life policy with another life policy that may be available from any other source;
(3) periodically review the life policy(s) owned by the trustee;

(4) determine the appropriateness of insurance coverage or the amount of premiums;
(5) inquire into the status or financial strength or solvency of the insurance company that issued or is offering a given life policy;
(6) assess the appropriateness of purchasing or retaining any life policy as an investment for the trust as compared to other then-available investment vehicles that are not life policies;
(7) verify that any particular life policy satisfies the requirements for a "life modified endowment contract" under Code Section 7702A.

The investment in, and purchase of, life policies will be made in the discretion of the Trustee. In the exercise of this discretion, the Trustee may act upon the recommendation and representations of any person selling, or in any way associated with the marketing, promotion or sale of, life insurance. [Note: I would expect that relief from the risk of investment in life policies will be beneficial to the beneficiaries of the trust due to the entitlement to additional compensation charged by trustees for the additional risk normally inherent in life policies.]

6.27.3 Relief from Loss and Indemnity. The Trustee will incur no liability to any person interested in the trust for any loss or damage suffered in connection with the performance or lack of performance of a life policy owned by or payable to the Trustee or as a result of the financial condition (including insolvency) of any insurer. The fact that the Trustee may have made an inquiry regarding these matters before acquisition or transfer of a life policy or after the acquisition or transfer of the life policy will place no duty upon the Trustee to make any further inquiry. Further inquiry will be an activity that is beyond the scope of the duties of the Trustee under this Agreement. The Trustee is not a guarantor of any life policy held in the trust or payable to the trust, whether purchased by, transferred to or made payable to the Trustee. The Trustee will be exonerated and indemnified from any and all liability arising from Covered Acts (10.8).

6.27.4 Application. The provisions of this paragraph 6.27 apply to (1) any split-dollar interest in a life policy and (2) any life policy transferred to the Trustee by me, a predecessor Trustee or by any other person. I reserve no right to control or direct the Trustee in these life policy investments.

6.27.5 Beneficiary Indemnity. The Trustee may at any time require any beneficiary to indemnify and hold harmless the Trustee from and against any and all claims, liabilities, penalties and costs, including attorney fees, arising from any claim, demand, order or other action related in any way to the investment in or the retention of any life policies and the exercise or failure to exercise any incident of ownership in any life policies. The Trustee may withhold a distribution to or for the benefit of that beneficiary until receiving from that beneficiary such indemnification subject to the limitation that the Trustee may take no action in this regard which would impair or jeopardize any marital or charitable deduction otherwise available to the applicable taxpayer.

6.27.6 All Rights in Trustee. The Trustee will have all of the rights of the owner of the life policies and, without the consent or approval of any person, may in the discretion of the Trustee exercise or decline to exercise, any election, option, right or privilege available to the Trustee as owner of the life policy except to the extent the Trustee is otherwise restricted by the tax-sensitive or other transfer tax limitations of the Agreement. These rights include the power:

(1) to reduce the amount of any life policy or convert or exchange any life policy into other forms of insurance;
(2) to enter into nontaxable and taxable exchanges or transfers of trust assets;
(3) to surrender any life policy for its cash surrender value;
(4) to borrow upon and pledge any life policy in connection with a loan;
(5) to take paid-up insurance;
(6) to elect extended term insurance;
(7) to collect dividends, death or other benefits (including disability benefits or an accelerated death benefit), surrender payments and any other payment which may be due or collectable;
(8) to enter into a split-dollar or other premium sharing arrangement with any person or entity;
(9) to split any life policy into two or more policies;
(10) to allow dividends to remain with the insurance company or to use them to reduce premiums or to purchase additional insurance;
(11) to use cash values to pay premiums;
(12) to exercise any options of settlement that may be available under the terms of a life policy;
(13) to determine and modify the current amount of life insurance coverage under an existing life policy;
(14) to enter into viatical settlements concerning any life policies;
(15) to sell a life policy on the secondary market.

6.27.7 Payment of Premiums. The Trustee may pay any premiums or other charges from trust income or principal or by application of dividends on the life policy. If the trust assets are inadequate to pay such premiums or charges, or if the Trustee deems it inadvisable to pay these premiums or charges, the Trustee may do one or more of the following:

(1) sell a sufficient portion of the trust assets or borrow using trust assets as collateral to obtain funds necessary to pay the premiums or charges;
(2) convert a life policy into a paid-up life policy in whatever amount may be provided by the terms of the life policy or convert the life policy to a life policy of extended term insurance in whatever amount as may be provided by the terms of the life policy;
(3) use any automatic premium loan feature;
(4) borrow against any policy cash reserves (whether or not on the policy for which premiums or charges will be paid);
(5) elect any automatic nonforfeiture feature;
(6) surrender or sell any policy to obtain its cash surrender value;
(7) exercise any other right, option, power, election or privilege under any policy held by the Trustee;
(8) distribute the policy pursuant to any authority or discretion exercisable by the Trustee concerning distributions of trust principal;
(9) assign the policy to the beneficiary in equal shares and deliver such policies to them.

The Trustee has no duty to take any of these actions. The Trustee will not be responsible for the nonpayment of premiums if the trust lacks the ability to pay them. The Trustee will not be liable

to anyone if a life policy lapses (in whole or in part) or becomes otherwise uncollectible because the trust lacks the ability to pay the premiums.

6.27.8 Death of Insured. Upon the death of an insured under a life insurance investment of the trustee:

(A) the Trustee will furnish the necessary proof of death to the insurance company or companies which issued the life policy(s), the proceeds of which are payable to Trustee;
(B) the Trustee will collect the proceeds of the life policy(s) of insurance;
(C) the Trustee will collect and receive any other property which may be made payable to the Trustee.

For such purpose, the Trustee will have the authority to execute and deliver any receipt or other voucher for the proceeds or the other property, to institute any suit or suits at law or in equity to enforce the payment of the proceeds of the life policy(s) or to collect the other property. In the case of controversy or litigation over the collection of these proceeds or the other property, the Trustee will have the authority to adjust, compromise or otherwise settle any controversy or contest concerning the life policy or the other property or the collection of them. The Trustee will be responsible for the proceeds of the insurance only when and if collected or paid to the Trustee.

6.27.9 Indemnity Before Litigation. The Trustee may refuse to enter into or maintain any litigation, endorse life policy payments or take other action respecting any trust life policy until the Trustee has been indemnified against all expenses and liabilities which in the judgment of the Trustee may be involved in the action.

6.27.10 Trust Beneficiary Designation. The Trustee need not inquire whether or not the Trustee or the trust has been designated the beneficiary of any life policy or other death benefit. The Trustee need only act with respect to a life policy after receipt of written notice that the Trustee or the trust is a beneficiary.

6.27.11 Accounting. For trust accounting purposes, life policy dividends and increases in value before the death of the insured under any life policy held by the trust will be treated as principal and not income.

6.27.12 Group Term. Any group term life policy assigned to the Trustee will include any future life policies to be issued or life policies supplemented to it or in succession, substitution, replacement or renewal of it and increases in the amount of coverage.

6.28 My Agent. My Agent, to the extent authorized by the power of attorney or court order, may exercise for me my paragraph 1.3 powers to revoke and amend this Agreement and my paragraph 2.1 authority to direct distribution of assets of the Trust to me or to others.

6.29 Release of Power. A trustee may irrevocably release one or more powers held by the trustee while retaining other powers. This release will be binding on similarly situated successor trustees if designated in the release document.

6.30 No Equalization. Unequal distributions by the Trustee to a permitted group of beneficiaries pursuant to distribution discretion are made without requirement of future equalization.

6.31 Distribution Discretion. 6.31.1 Prohibition. No discretionary distribution or application from a trust can be made to or for a beneficiary or a member of the beneficiary's family who is a permitted distributee of the assets of a trust under this Agreement if this individual is then disabled for aid purposes and the making of such distribution or application would cause this individual to be ineligible or disqualified to receive or benefit from any federal, state or municipal aid, including Supplementary Security Income, state supplementary payments and Medicaid.

6.31.2 Factors. Otherwise, in determining whether and how to exercise distribution discretion, the Trustee may find it helpful to review some of my thoughts on those matters, which are:

(A) I consider the interests of Nick as being of primary importance and I consider the interests of a child as being more important than those of the descendants of the child.

(B) I consider the interests of the current beneficiary as being of primary importance rather than the interests of a subsequent or remainder beneficiary or the preservation of principal.

(C) It would seem relevant to consider, among other factors, the beneficiary's accustomed standard of living, the beneficiary's obligation to support another individual, the obligation of another individual to support the beneficiary and the income, gift, estate, generation-skipping transfer and other tax consequences.

(D) After taking into account the age, abilities and circumstances of a beneficiary, it may be in the best interest of the beneficiary to attempt to not create a disincentive for the beneficiary to be a productive, responsible and mature citizen.

These statements are precatory, are not binding, do not expand or restrict the purposes for which a distribution or application may be made otherwise under the Agreement and may not be used by a beneficiary to cause the Trustee to act or not act.

6.32 Allocation Information. The Trustee may rely on such information concerning heirship, relationship, survivorship, identity or other fact relevant to determining to whom assets are to be allocated or distributed as the Trustee has good faith reason to believe is correct without liability to any beneficiary or other person. Allocations or distributions made under good faith belief will not affect any right of recovery which the beneficiary may have against a distributee.

6.33 Trustee/Beneficiary Creditor Matters. 6.33.1 Intent. It is my intent that a creditor of a beneficiary not be able to reach the interest of a beneficiary who is also a trustee of the trust or has trustee change authority with respect to that trust ("creditor-sensitive beneficiary") or otherwise be able to compel a distribution from that trust.

6.33.2 Limitation. The creditor-sensitive beneficiary who is a trustee of a trust, or the trustee of a trust with respect to which the creditor-sensitive beneficiary has the ability to remove and change that trustee (each a "creditor-sensitive trustee"), will not have as trustee or otherwise any power under that trust which would allow a creditor of the creditor-sensitive beneficiary to reach

the interest of the creditor-sensitive beneficiary or otherwise compel a distribution from that trust but for this paragraph 6.33.

6.33.3 Ascertainable Standard. The creditor-sensitive trustee may therefore *only* distribute as much of the net income and principal of the trust, or of the share, otherwise available for distribution to the creditor-sensitive beneficiary under the other distribution terms of the trust as the creditor-sensitive trustee determines is necessary for the education, health, maintenance and support in the accustomed manner of living of the creditor-sensitive beneficiary. This limitation will not affect the distribution standards of the trust applicable to noncreditor-sensitive trustees nor will it prevent the creditor-sensitive trustee or other trustee from distributing all income at least annually to the income beneficiary of a marital trust. If there is a distribution decision conflict between a noncreditor-sensitive trustee and a creditor-sensitive trustee, the decision of the noncreditor-sensitive trustee will control.

6.33.4 Special Trustee. If this paragraph 6.33 prevents a creditor-sensitive trustee from exercising a power and this power can be exercised by a noncreditor-sensitive trustee and there is no noncreditor-sensitive trustee of the trust, the creditor-sensitive trustee may appoint a special trustee (6.9) who may exercise this power. If there is a distribution decision conflict between the special trustee and the creditor-sensitive trustee, the decision of the special trustee will control. For example, a special trustee decision to withhold the distribution of principal to a beneficiary will control over a creditor-sensitive trustee decision to distribute this principal to the beneficiary under the ascertainable standard. The position of special trustee is limited to the exercise of the creditor-sensitive power (which exercise includes a decision not to distribute, act, *etc.*).

7. **VARIOUS TAX MATTERS**. 7.1 Design. The design of this Agreement will allow transfer taxes to be postponed by the use of trusts that are not subject to further transfer taxation for a period of time and which are referred to as "exempt" trusts because of a zero inclusion ratio (7.4.1). Intentional fiduciary elections, grants of powers of appoint and other tax planning action can be implemented with respect to this Agreement and also used to reduce taxes.

7.2 Elections. It is my desire that in determining whether and how to exercise distribution discretion and tax elections, the executor, trustee or other authorized person will consider ways to reduce federal taxes and thus increase the amount of property ultimately passing to some or all of my beneficiaries (which is a precatory statement and not a binding direction). The Trustee may make elections available under tax laws that the Trustee is permitted to make.

7.3 Portability. To the extent no executor is appointed for my estate ("Executor"), the Trustee may take all actions necessary to make a valid election under Code Section 2010(c)(4) to allow my Spouse to have the benefit of my deceased spousal unused exclusion amount, if any, to the greatest extent permitted under applicable federal tax law, even if it appears unclear that my Spouse or my Spouse's estate could benefit from such exclusion amount and even if a federal estate tax return is not otherwise required to be filed for my estate. The Trustee is authorized to pay any expenses or costs associated with making such election as an expense of administration. In the event the Executor of my estate fails to make such election, I direct the Trustee to make such election independent of the Executor if the Trustee determines, in the Trustee's sole discretion, that such election is advisable.

7.4 GST Tax Planning. 7.4.1 Exempt Assets. GST tax planning involves (among its other facets) the use of separate trusts, or separate shares of trusts, which have inclusion ratios of zero ("exempt" trusts or shares) or inclusion ratios of one ("nonexempt" trusts or shares). To accomplish GST tax planning, the further division of a share or of a trust may be necessary, depending on the prior use of the GST exemption of the transferor of the share or trust. *The personal representative of the transferor's probate estate and the Trustee are advised to consult qualified tax advisors for assistance in this aspect of GST tax planning.*

7.4.2 Division of Bypass or Marital Share at My Death. If Nick survives me and my Available GST Exemption (7.4.5):

(A) is not sufficient to allow the Bypass Share to be exempt if allocated to it, the Trustee will further divide the Bypass Share into an exempt and a nonexempt share, or

(B) is not sufficient to allow the Bypass Share and the Marital Share to each be exempt if allocated first to the Bypass Share and then to the Marital Share, the Trustee will further divide the Marital Share into an exempt and a nonexempt share (by assuming that my remaining GST exemption will be first allocated to the exempt Bypass Share).

7.4.3 Division of Nonexempt Marital Trust at Death of Nick. If Nick survives me and Nick's Available GST Exemption (7.4.5) is not sufficient to allow the Nonexempt Marital Trust to be exempt if allocated to it, my Trustee will further divide the Nonexempt Marital Trust into an exempt and a nonexempt share.

7.4.4 Division of Remaining Trust Assets at My Death. If Nick does not survive me and my remaining GST exemption at my death is not sufficient to allow the Remaining Trust Assets to be exempt if allocated to them, my Trustee will further divide the Remaining Trust Assets into an exempt and a nonexempt share.

7.4.5 Other Division Instructions. "Available GST Exemption" means that amount of GST exemption of the referenced individual which remains after taking into account the allocations to lifetime transfers of the individual and the other allocations (if any) made by the person with authority to make final GST exemption allocation for the deceased individual to any other transfers at the individual's death. The Trustee will divide transfers into exempt and nonexempt shares on the applicable fractional basis required by the Code for this GST tax planning (if then applicable). Other divisions of trusts or shares for other tax planning or purposes will also be made on a fractional basis (6.13.1). The Trustee may "divide" a trust or share by refusing to accept an inclusion ratio changing addition to the trust or share and then holding the addition as a separate trust or share. *(Personal Items may need to be allocated to nonexempt shares to maximize the benefit of the GST exemption.)*

7.4.6 Distributions. *As a reminder, the trustee of an exempt or nonexempt trust with discretion to distribute trust assets should consider the GST tax consequences of the distributions.* Accordingly, a trustee should consider making distributions (1) to Nick first from the Nonexempt Marital Trust, (2) to skip persons first from exempt shares or trusts and (3) to nonskip persons first from nonexempt shares or trusts. If an advance is made to a beneficiary of a successor trust by a trustee (6.13.3), it must be made in such a manner as to avoid GST tax. Advances that are contrary

to this direction are loans by the trustee and not distributions. *(The trustee should be especially sensitive to the fact that distributions to skip persons from a nonexempt trust will trigger GST tax.)*

7.4.7 General Power I. If upon the death of the beneficiary (each the "GP Bene" in the applicable situation) a generation-skipping transfer of property would otherwise occur with respect to the GP Bene's interest in the trust (but for the fact that there is a living beneficiary of the share who is a nonskip person who is an individual (such as the Spouse or sibling of the GP Bene)), the GP Bene will have the power to direct the Trustee to distribute at the GP Bene's death to one or more of the creditors of the GP Bene's estate that part of the GP Bene's share of the trust (if any) equal to the amount of property (if any) which, when included in the GP Bene's gross estate by this general power of appointment, will result in the maximum reduction in the sum of GST taxes and estate, legacy, succession and inheritance taxes imposed by reason of the GP Bene's death with respect to the assets subject to this power when compared to the sum of the GST taxes and estate, legacy, succession and inheritance taxes imposed by reason of the GP Bene's death with respect to the assets subject to this power if this power was not created (6.21). This provision is intended to reduce the total transfer tax due with respect to the death of the GP Bene by maximizing the use of the transfer tax deductions and credits of the GP Bene. For purposes of this subparagraph 7.4.7, "creditor" will refer only to a person from whom the GP Bene received adequate and full consideration when the creditor relationship was established.

7.4.8 General Power II. If upon the death of the GP Bene it would be advantageous for the GP Bene to have a general power of appointment in order to obtain an income tax basis step-up for the GP Bene's share of the trust assets, to the extent that the creation of a general power of appointment for this purpose is not contrary to the intent of subparagraph 7.4.7, the nontax-sensitive Trustee may grant the GP Bene the power to direct the Trustee to distribute at the GP Bene's death to one or more of the creditors of the beneficiary's estate that part of the GP Bene's share of the trust assets which will accomplish this basis step-up. For purposes of this subparagraph 7.4.8, "creditor" will refer only to a person from whom the GP Bene received adequate and full consideration when the creditor relationship was established. *(See 7.6 for appointment of a special trustee to exercise this power if the Trustee is a tax-sensitive trustee.)*

7.5 Marital Deduction. 7.5.1 Marital Share. The "Marital Share" will consist of a fractional share of the Remaining Trust Assets. The numerator of the fraction will equal that minimum value, which if allowed as a marital deduction in determining the federal estate tax on my estate will cause my estate to incur no, or the least, such tax (determined without regard to the effects of any transfer taxes incurred at my death and attributable to either: (a) a qualified disclaimer by or for Nick of property included in my gross estate or (b) the failure to make a QTIP election). The denominator of the fraction will equal the value of the Remaining Trust Assets. In computing this fraction, the asset values, deductions, exclusions and credits will be determined using values as finally determined for the applicable tax purposes, using the credit for state death taxes only to the extent its use would not generate or increase a death tax payable to any state.

7.5.2 Bypass Share. The "Bypass Share" will consist of the remaining fractional share of the Remaining Trust Assets.

7.5.3 Allocations. I realize that these fractional shares can be affected by various tax elections. The Trustee will not allocate to the Marital Share any property or proceeds of property that cannot qualify for the marital deduction. To the extent possible, the Trustee will not allocate

to the Marital Share any assets upon which a foreign death tax is payable. Otherwise, the Trustee may allocate the assets being divided into shares as the Trustee determines is best, valuing each asset on the date of allocation. Income earned on the assets being divided (and income on assets used to make payments under Section 9) will retain its character as income and will be allocated in the same fractions.

7.5.4 Productive and Qualification Intent. Nick can direct the Trustee of each marital trust to make any unproductive assets of the marital trust productive or convert them within a reasonable time. In administering or funding a trust, the Trustee may not exercise any power or discretion in any manner that would infringe upon any legal requirement for the allowance of the marital deduction with respect to the transfer of property to Nick outright, in trust for his benefit or otherwise. It is my intent that each marital trust will qualify for the marital deduction as qualified terminable interest property in the event of the QTIP election (which election is exercisable in the discretion of the executor of my probate estate or the Trustee as applicable).

7.5.5 IRA/Plan. If a marital trust is the current beneficiary of a Plan, Nick can direct the Trustee of the marital trust to withdraw at least annually from the Plan all of the net income of the marital trust's share of the Plan. "Net income" for this purpose will be determined in that manner necessary to qualify the marital trust and the Plan for the marital deduction (*e.g.*, the Trustee will apply the principles of Ark. Code Ann. §28-70-409 or other applicable statute to arrive at the required net income definition of the marital trust for qualification). The Trustee will distribute to Nick on an annual basis all amounts distributed to the Trustee of the marital trust from the Plan.

7.6 No Unintended Taxation. 7.6.1 Intent. It is my intent that a transferor of property to a trust under this Agreement (other than myself) who is a trustee or a trustee changer of that trust ("interested transferor") or a beneficiary of a trust who is a trustee or a trustee changer of that trust ("interested beneficiary") *will not* be deemed for transfer tax purposes to possess a retained power or a general power of appointment as a result of a fiduciary power, authority or discretion held by the interested transferor or interested beneficiary as trustee or held by a trustee who may be changed by, controlled by or otherwise deemed to be controlled by the interested transferor or interested beneficiary ("tax-sensitive powers"). This reference to "transferor" includes an individual who is deemed by tax law to be a transferor of property to the trust.

7.6.2 Limitation. Each interested transferor trustee, each interested beneficiary trustee and each trustee whose tax-sensitive powers an interested transferor or an interested beneficiary would be deemed to possess for transfer tax purposes but for this paragraph 7.6 (each a "tax-sensitive trustee") will not have as trustee or otherwise any tax-sensitive powers under a trust which would cause unintended transfer taxation (for example, as compared to intended transfer taxation by a subparagraph 7.4.7 general power of appointment).

7.6.3 Ascertainable Standard. With respect to distributions from a trust (other than mandatory income distributions of a marital trust), the tax-sensitive trustee is *only* permitted to distribute trust assets to the interested beneficiary and those family members of the interested beneficiary named as permitted distributees of the trust (if any) under the following ascertainable standards:

(A) the tax-sensitive trustee will distribute as much of the net income and principal of the trust, or of the share, otherwise available for distribution to the interested beneficiary

under the other distribution terms of the trust as the tax-sensitive trustee determines is necessary for the education, health, maintenance and support in the accustomed manner of living of the interested beneficiary;

(B) if the tax-sensitive trustee determines that the amount and nature of the assets of the trust or of the share, are sufficient to satisfy distributions to the interested beneficiary during the expected life of the interested beneficiary under this previous ascertainable standard, the tax-sensitive trustee may distribute to any one or more of the other named beneficiaries of the trust, or of the share, as much of the net income or principal of the trust as the tax-sensitive trustee determines is necessary for their respective education, health, maintenance and support in their accustomed manner of living.

This limitation will not affect the distribution standards of the trust applicable to nontax-sensitive trustees nor will it prevent a trustee from distributing at least annually all income to the income beneficiary of a marital trust. If there is a distribution decision conflict between a nontax-sensitive trustee and a tax-sensitive trustee, the decision of the nontax-sensitive trustee will control.

7.6.4 QTIP Ascertainable Standard. Accordingly, Nick as a tax-sensitive trustee of a marital trust that did not or was not one hundred percent (100%) elected to qualify for the marital deduction is *only* permitted to distribute trust principal for his education, health, maintenance and support in his accustomed manner of living.

7.6.5 Special Trustee. If this paragraph 7.6 prevents a tax-sensitive trustee from exercising a tax-sensitive power and this power can be exercised by a nontax-sensitive trustee and there is no nontax-sensitive trustee of the trust, the tax-sensitive trustee may appoint a special trustee who may exercise this tax-sensitive power. If there is a distribution decision conflict between the special trustee and the tax-sensitive trustee, the decision of the special trustee will control. For example, a special trustee decision to distribute principal to a beneficiary as determined advisable controls over a tax-sensitive trustee decision to distribute this principal to another beneficiary under an ascertainable standard.

7.6.6 No Discharge of Trustee Obligations. Notwithstanding any other provision of this Agreement, each trustee (other than myself) is prohibited from making, voting on or otherwise participating in a distribution from a trust that would discharge or substitute for a legal obligation of that trustee, including the obligation to support a beneficiary of the trust.

7.6.7 Insurance and Securities. No tax-sensitive trustee will vote any securities or possess any incidents of ownership with respect to any policy of insurance on his life to the extent that exercise of that voting power or possession of the incidents of ownership would subject the tax-sensitive trustee to additional transfer tax liability. Any purported vote or exercise of ownership is void.

7.6.8 Statute Override. I intend for the provisions of this paragraph to have priority application over specific state statutes whose purpose is to prevent unintended transfer taxation in these situations (*e.g.*, such as Ark. Code Ann. §28-73-814). If not inconsistent with the provisions of this paragraph, the state statutes will apply to the extent they provide transfer tax protection. I incorporate for this purpose any required reference to those state statutes applicable to the trust that are necessary for this priority application or override.

7.7 Subchapter S Stock. If a trust should acquire any stock in a corporation, the shareholders of which will or have elected for it to be taxed under Subchapter S (Code Section 1361, *et seq.*), and the ownership of the stock by the trust would prevent an S election without an electing small business trust ("ESBT") election or would cause the termination of the S election by reason of being a trust that is not a qualified S corporation stockholder (the "unqualified trust"), and it is in the best interests of this trust and its beneficiaries to make an S election or to continue the S election, the Trustee may on the last date the unqualified trust is permitted to be an S corporation stockholder transfer this stock to a separate qualifying Subchapter S trust ("QSST"), and in the absence of such voluntary transfer, is deemed to have transferred this stock (and the trustee will document this involuntary transfer of this stock by applicable stock certificate notation) charging such transfer *pro rata* to the separate shares of the unqualified trust as applicable), the qualifying terms of which QSST are as follow:

(A) If the unqualified trust was comprised of separate shares, this stock will be allocated to the separate shares of the QSST (which qualify as "substantially separate and independent shares" under Code Section 663(c)) in the same *pro rata* manner as the stock was allocated to those separate shares of the unqualified trust for the previous beneficiaries of those separate shares.

(B) If the trustee of the unqualified trust could in any circumstance distribute income of the unqualified trust or a separate share of the unqualified trust to more than one beneficiary, then the primary beneficiary of that trust or that separate share (which will usually be a spouse or next generation level descendant) will become the *only* income beneficiary of the QSST or the subsequent separate share of the QSST.

(C) All of the income of the QSST or the separate share of the QSST (within the meaning of Code Section 643(b)) will be distributed to such only income beneficiary during the life of this only income beneficiary no less often than annually.

(D) The principal of the QSST or the separate share of the QSST will be distributed during the life of the only income beneficiary in accordance with the distribution standards applicable to that only income beneficiary under the unqualified trust or its separate share, except that the Trustee will distribute an amount equal to the federal and state income taxes imposed on the only income beneficiary with respect to any income or gain related to any S corporation stock owned by the trust that is allocated to the trust's principal under trust accounting principles. (In no circumstance will the principal of the QSST or its separate share be distributed to any other beneficiary during the life of the only income beneficiary.)

(E) Only individuals who are citizens or residents of the United States can be an only income beneficiary.

(F) The income interest of the only income beneficiary of the QSST or the separate share of the QSST will terminate on the earlier of the death of the only income beneficiary or the termination of the trust.

(G) Upon the termination of the trust during the life of the only income beneficiary, the assets of the QSST or the separate share of the QSST will be distributed to the only income beneficiary.

(H) The remaining terms of the QSST will be the same as those of the unqualified trust and will revert to those of the unqualified trust in the entirety on intentional termination of the applicable S election only to the extent that these other terms will not cause the QSST to fail to be an eligible S corporation shareholder.

If the QSST election is not made for this new trust and the Trustee elects to have the unqualified trust treated as an ESBT, then the deemed transfer to the QSST will not occur unless the ESBT election is defective. It is my intent that each QSST and ESBT be an eligible S corporation shareholder under the Code and all of its terms will be construed consistently with this intent. *(The trustee of the ESBT and the only income beneficiary of the QSST or its separate share are reminded to file the elections required by Code within the required periods following the date on which such stock is subject to the ESBT or QSST rules.)*

7.8 Plan Benefits. Notwithstanding other terms of this Agreement, benefits payable under a Plan to a trust created under this Agreement or under a future power of appointment which traces its origin to this Agreement may only be distributed by the trustee of that trust to or for, or appointed by the Powerholder to or for, individuals who are considered designated beneficiaries for purposes of these distribution rules (*e.g.*, no older individuals may later be added to a relevant class of distributees from the trust and no Charity or my probate estate may be distributed these Plan benefits). This limitation will survive with respect to any Plan benefits payable to a trust created under this Agreement that merges with another trust.

7.9 Plan Payout Schedule. The Trustee may, in the Trustee's sole and absolute discretion, exercise any right to determine the manner and timing of payment of Plan benefits that is available to the recipient of the Plan benefits, but the Trustee must exercise such rights in a manner consistent with the Federal income tax rules governing required distributions under Code Section 401(a)(9) to avoid any excise tax under Code Sec. 4974(a) or any other tax or penalty that would apply for failure to take distributions from the Plan.

8. **TRUST ADVISOR**. 8.1 Appointment. 8.1.1 Meaning. Trust advisor appointment authority ("TAA Authority") under this Agreement is the authority granted upon my disability or death:

(a) to appoint one or more individuals who are permitted to be trust advisor (8.4) to be trust advisor of this Agreement ("Trust Advisor"),
(b) to designate a list of successor trust advisors and
(c) to define the terms that govern the holding of the position of trust advisor for the periods of time designated.

The individual(s) with trust advisor appointment authority ("TA Appointor") may appoint himself or herself to the position of trust advisor if he or she is an individual who is permitted to hold the position (8.4). The TA Appointor may grant TAA Authority to other individuals.

8.1.2 TA Appointor List. After my death, Nick will have TAA Authority if Nick is not incapacitated (10.6).

8.2 Method. The TA Appointor may appoint any one or more individuals permitted to hold the position of trust advisor as the Trust Advisor. The appointment of trust advisor or successor trust advisors will be in writing, may be made to become effective at any time or upon any event, may be single or successive and may create or change the list of successor trust advisors as specified in the appointment writing. The TA Appointor may revoke an appointment before it is accepted by the appointee and may specify in the instrument of appointment whether it may be revoked by a

subsequent TA Appointor. In the event that two or more instruments of appointment or revocation by the same TA Appointor exist and are inconsistent, the latest by date controls.

8.3 Acceptance. An individual appointed to hold the position of trust advisor becomes the Trust Advisor when the position is accepted by the individual in a writing delivered to the Trustee. Unless otherwise limited by the TA Appointor, the appointment as Trust Advisor will carry with it TAA Authority if there is no then individual with TAA Authority.

8.4 Not Permitted. Individuals who are *not* permitted to hold the position of trust advisor are: (1) my Spouse; (2) my ancestors (if any), (3) my descendants, (4) the Spouses of my descendants, (5) my siblings (if any) and (6) any person who would have, or would cause a beneficiary of the trust to have, unintended tax consequences (for example, an unintended general power of appointment).

8.5 Trust Advisor Position Not Required. No trust created under this Agreement is required to have the position of trust advisor in effect with respect to the trust. The TA Appointor is not required to, and will have no duty to, exercise TAA Authority. The TA Appointor will be exonerated and indemnified from any and all liability arising from Covered Acts (10.8).

8.6 Court Designation of TAA Authority. If at any time in the operation of a trust created under this Agreement: (a) there is no individual with TAA Authority, (b) the TA Appointor has not otherwise changed or limited the terms of holding TAA Authority and (c) there is no Trust Advisor, the court with jurisdiction over the trust may grant TAA Authority to an individual permitted to hold the position of trust advisor upon the request of a beneficiary of the trust.

8.7 Other. If there are multiple Trust Advisors, or multiple TA Appointors, they will act by unanimous vote. A TA Appointor may refuse to hold or may release TAA Authority by giving written notice to other TA Appointors and the Trustee. The Trust Advisor may resign by giving written notice to the TA Appointor and the Trustee. Each trust created under this Agreement need not have or continue to have the same Trust Advisor.

8.8 Power. Except as otherwise limited by this Agreement (*e.g.*, 8.9 or 11.2) or the TA Appointor, the Trust Advisor will have the authority to amend the terms of a trust held under this Agreement (including one not yet in existence) in the following respects:

(1) change, eliminate or add provisions involving the current or future disposition of income and principal to and among or for the benefit of the group comprised of Nick, my descendants, the Spouses of my descendants and other named beneficiaries (including as a class) of the trust;

(2) grant to an individual any type of power of appointment (whether currently exercisable or not) or the authority to approve the exercise of a power of appointment, or expand, reduce or eliminate any existing power of appointment, which includes the authority to make the exercise of the power of appointment subject to one or more conditions or consents and to expand or reduce the appointee(s) in whose favor the power of appointment may be exercised;

(3) change the list of trustees or trustee changers, which includes the authority to remove, replace and add trustees of a trust (whether that trustee is currently serving or named to serve in the future) and to change, eliminate or add provisions involving

the identity, qualification, succession, removal and appointment of the trustees and the trustee changers;

(4) change, eliminate or add provisions granting, expanding, reducing or eliminating the powers or duties of any trustee, trustee changer, special trustee, trust advisor or trust advisor appointor;

(5) change the termination date of the trust, either by extending or shortening this date (but not beyond any applicable perpetuities limitations);

(6) change, eliminate or add provisions involving the liability of any trustee, trustee changer, special trustee, trust advisor or trust advisor appointor;

(7) change, eliminate or add provisions granting, expanding, reducing or eliminating provisions to remove "deadwood," tax plan or improve trust administration for the best interests of the beneficiaries of the trust.

8.9 Limitation. The Trust Advisor may not:

(1) modify or amend any provision in this Agreement in a manner that would or could change in any way the disposition of any Plan proceeds so as to not have a designated beneficiary of the proceeds for minimum distribution calculation purposes;

(2) modify or amend any provision in this Agreement in a manner that would disqualify any disposition under this Agreement that qualifies for the marital or charitable deduction;

(3) remove the amendment authority of the trust advisor position except upon the written advice of an attorney with expertise in trust, estate and taxation law;

(4) increase, lessen or otherwise change the tax consequence limitations on the amendment authority of the trust advisor position in any manner that would subject individuals to unintended tax consequences;

(5) increase, lessen or otherwise change limitations on the amendment authority of the trust advisor position other than in accordance with the limitations if the limitations have been put in place by the prior trust advisor with specific directions on further amendment to the limitations.

8.10 Guidance. In determining whether and to what extent to exercise the amendment power, the Trust Advisor will be guided by what the Trust Advisor considers appropriate for the beneficiaries and what the Trust Advisor believes I would have intended in light of the changes in law or other circumstances or information prompting the Trust Advisor to consider exercise of the amendment authority.

8.11 No Tax Power. Notwithstanding any other term of this Agreement, (1) the Trust Advisor will not participate in the exercise of a power or discretion conferred under this Agreement for the direct or indirect benefit of the Trust Advisor, the Trust Advisor's estate, or the creditors of either, or that would cause the Trust Advisor to possess a general power of appointment within the meaning of Code Sections 2041 and 2514 and (2) no discretionary distribution will be made from any trust created under this Agreement that would discharge or substitute for a legal obligation of the Trust Advisor even if this distribution otherwise would be authorized under the terms of the trust.

8.12 Release. Subject to applicable limitations, the Trust Advisor may at any time irrevocably release, renounce, suspend, cut down or modify to a lesser extent all or any part of a power or discretion conferred on the office of trust advisor under this Agreement by a writing delivered to the Trustee. Unless otherwise specified by the Trust Advisor, the release, restriction or other action will not apply to successor Trust Advisors.

8.13 No Duty to Act. The Trust Advisor will have no duty to monitor any trust held under this Agreement in order to determine whether any of the powers and discretions conferred on the Trust Advisor should be exercised. The Trust Advisor will have no duty to keep informed as to the acts or omissions of others or to take any action to prevent or minimize loss. Any exercise or nonexercise of the powers and discretions granted to the Trust Advisor will be in the sole and absolute discretion of the Trust Advisor and will be binding and conclusive on all persons. The Trust Advisor is not required to exercise any power or discretion granted under this Agreement. The Trust Advisor will be exonerated and indemnified from any and all liability arising from Covered Acts (10.8).

8.14 Compensation and Expenses. If the Trust Advisor is not also the Trustee, the Trust Advisor will be entitled to receive reasonable compensation and reimbursement for out-of-pocket expenses reasonably incurred in the position of trust advisor. The Trust Advisor will also be entitled to employ persons to advise or assist in the exercise of the powers and discretion of the position of trust advisor, including attorneys, appraisers and tax advisors, and to pay reasonable compensation for these services that will be reimbursed to the Trust Advisor by a trustee as an expense of the trust.

9. **DEBTS, COSTS AND TAXES.** 9.1 My Death. At my death, upon request of the personal representative of my probate estate, the Trustee will distribute to this personal representative or other persons for the benefit of my probate estate those assets of the Trust needed to pay all or any part of the following items as directed in my will:

(1) my funeral, burial and last illness expenses, the costs of the administration of my probate estate, enforceable claims and similar charges,
(2) estate, inheritance and other similar transfer taxes assessed by reason of my death and
(3) specific bequests under my will.

The Trustee may rely on my personal representative as to the amount of these items. Assets that are not included in my gross estate and Plan assets payable to a trust may not be used for these payments. My transfer taxes will be apportioned to the applicable property and persons as directed in my last will (regardless of whether this will is probated).

9.2 Nick Taxes. Unless Nick specifically provides otherwise in his will, the estate, inheritance and similar transfer taxes (but not GST taxes) payable at Nick's death and attributable to the marital trusts will be paid first from the estate taxable principal of the marital trust with the highest GST tax inclusion ratio other than zero, then from the marital trust with the next highest GST tax inclusion ratio other than zero, and so on. The taxes attributable to each marital trust will be the difference between (1) the actual taxes payable at Nick's death and (2) the taxes that would be payable if the assets of the marital trust were not taxable at Nick's death.

9.3 Beneficiary Taxes. Unless the beneficiary specifically provides otherwise in the beneficiary's will, the estate, inheritance and similar transfer taxes (but not GST taxes) payable at the beneficiary's death and attributable to the assets of the beneficiary's separate share or trust will be paid from the beneficiary's separate share or trust. The taxes attributable to the assets of the beneficiary's separate share or trust will be the difference between (1) the actual taxes payable at the beneficiary's death and (2) the taxes that would be payable if the assets of the beneficiary's separate share or trust were not taxable at the beneficiary's death.

10. **OTHER**. 10.1 Spendthrift. A beneficiary (other than me) of a trust created under this Agreement may not assign, sell or otherwise transfer any interest in the trust and the Trustee will not recognize any attempted transfer. Any interest of the beneficiary in a trust will not be liable for the debts of the beneficiary or subject to the claims of creditors. This spendthrift limitation does not limit the ability of a beneficiary to exercise any right of disclaimer or any power of appointment.

10.2 Protection From Creditors. If the Trustee determines that a beneficiary will not benefit as greatly from any outright distribution of trust income or principal because of access to the distribution by the beneficiary's creditors, the Trustee may instead expend those amounts for the benefit of the beneficiary except to the extent the Trustee is otherwise restricted by the tax-sensitive or other transfer tax limitations of the Agreement. This direction is intended to enable the Trustee to give the beneficiary the maximum possible benefit and enjoyment of all of the trust income and principal to which the beneficiary is entitled.

10.3 Survivorship. 10.3.1 Marital Presumption. If Nick and I should die simultaneously or under circumstances in which it cannot be determined which of us died first, it will be presumed: (1) that I survived Nick in the determination of the effect of an attempted exercise of a power of appointment under this Agreement by Nick and (2) that I survived Nick in the determination of the other terms of this Agreement, and also in the other situations related to my estate plan (such as the determination of the beneficiary of a life insurance policy on my life) for which a survivorship declaration is relevant and valid for which I am allowed to address by this survivorship presumption.

10.3.2 GST Presumption. Otherwise, an individual (the "nonskip person") will not be deemed to have been alive at my death or the date of a distribution from or termination of an interest in a trust under this Agreement for which the date of the nonskip person's death is relevant (the "Transfer Date") if the nonskip person is alive on the Transfer Date but is not alive on the ninetieth (90th) day after the Transfer Date and the existence of this condition of survivorship causes another individual who would otherwise be assigned to a generation below that of the nonskip person to be assigned to the generation of the nonskip person for GST tax purposes.

10.4 Election/Contest. 10.4.1 Effect of Attempted Contest. If any person directly or indirectly contests or attacks this Trust or my last will ("Will") or a beneficial interest created by this Trust or another trust created by me or conspires with or voluntarily assists anyone associated with any such contest or attack, singly or in conjunction with any other person(s), then in that event, I specifically disinherit such person, and such person's descendants and all interests and properties given to or created for the benefit of such person and such person's descendants, directly or in trust under this Trust or my Will or another trust created by me, will be forfeited and such property will be disposed as if such person and their descendants had predeceased me.

10.4.2 Acts Constituting a Contest. The acts described below constitute a contest for purposes of this paragraph 10.4:

(A) Such person contests or, in any manner, attacks or seeks to impair or invalidate any provision of the Trust or my Will on any grounds;

(B) Such person claims entitlement to any asset of my estate or any asset passing under the Trust or my Will or another trust created by me, based on any written, oral or implied contract, or any quantum meruit theory;

(C) Such person claims any elective share rights with respect to the Trust or my Will or another trust created by me;

(D) Such person claims entitlement to any asset of my estate or any asset passing under the Trust or my Will or another trust created by me, based on any alleged common law marriage or nonmarital relationship (including a domestic partnership), which is expressly disavowed by my Trustee;

(E) Such person challenges the appointment of any person or entity named to serve as Trustee or another trust created by me or as Executor under my Will;

(F) Such person uses an equitable action or legal process to object to any reasonable construction or interpretation of the Trust or my Will or another trust created by me or any provision of any of such documents that is adopted or proposed in good faith by the Trustee or Trust Advisor;

(G) Such person files any creditor's claim against my estate or my trusts that is reasonably and in good faith rejected by my Executor, and thereafter files suit on the rejected claim (whether or not the claim is thereafter found to be valid); and

(H) Such person conspires with or voluntarily assists anyone attempting to do any of these things, undertakes any of these things as an agent or fiduciary, undertakes to do any of these things through an agent or fiduciary, or would benefit from any action so undertaken by an agent or fiduciary and does not openly demand that such agent or fiduciary cease and desist from undertaking such action.

10.4.3 Expenses of Contest. Expenses to resist any contest or attack of any nature (including the acts described in subparagraph 10.4.2) upon any provision of the Trust will be paid from the Trust assets in the sole discretion of the Trustee. Such expenses will include, but not be limited to, reasonable attorneys' fees and costs. The Trustee is specifically authorized and encouraged vigorously to defend against any of the acts described in subparagraph 10.4.2.

10.4.4 Miscellaneous. If any provision of this paragraph 10.4 is void or ineffective, all other provisions will remain in full force and effect. A determination by the Trustee regarding the applicability of this paragraph 10.4 will be determinative, absent clear and convincing evidence that such determination was made in bad faith or was grossly negligent. This paragraph 10.4 applies to a creditor's claim, contract claim, tort claim, or other claim filed with the Trustee.

10.4.5 Withdrawal of Contest. Notwithstanding the foregoing, the provisions of this paragraph 10.4 will not apply unless and until the Trustee has given written notice of the Trustee's intent to enforce the foregoing provisions against a particular person to such person or such person's authorized representative, and given such person the opportunity to voluntarily dismiss or withdraw any petition or action that the Trustee deems to constitute a contest or to otherwise cooperate in defending or terminating a contest. If such person dismisses or withdraws such petition, contest or other claim or takes other actions requested by the Trustee within thirty (30) business days after

receipt of such notice, then this paragraph 10.4 will not apply with respect to such petition or contest or other claim; provided that the Trustee will have the broadest permissible discretion in terms of insisting on a particular form or scope of dismissal or withdrawal in order to ensure that the petition, contest or other claim will not reoccur.

10.4.6 Determination to Allow Action. The Trustee, in the exercise of the Trustee's sole and absolute discretion, may determine that a particular action should be allowed because I would have wanted such action to be taken, even though such action otherwise would constitute a violation of this paragraph 10.4 and otherwise would result in a forfeiture. If the Trustee makes such a determination, and executes and acknowledges a document declaring a particular action is not subject to this paragraph 10.4, then this paragraph 10.4 will not apply to such action, but only to the extent expressly provided in such document.

10.5 Disclaimer by Nick. 10.5.1 Marital Trust Assets. Assets of a marital trust disclaimed by (or for) Nick will be distributed to the trustee of the Bypass Trust with the same inclusion ratio as this Marital Trust, or if there is no such trust, to the Trustee of a new separate Bypass Trust, who will allocate, hold and distribute them under the Section 4 Bypass Trust terms.

10.5.2 Disclaimed Assets. Any property disclaimed by (or for) Nick which is transferred to the trustee of a trust under this Agreement and its income, increase and decrease ("Disclaimed Assets") will be distributed under the trust as if Nick had not predeceased me with respect to the Disclaimed Assets. Nick will have the same beneficial interest in the Disclaimed Assets of this trust as he has in the other assets of this trust unless he also disclaims his beneficial interest in the trust with respect to the Disclaimed Assets. Nick will not retain any control in any capacity over the Disclaimed Asset that would prevent the disclaimer from being transfer tax qualified. Therefore, he will not have a power of appointment with respect to the Disclaimed Assets and the tax-sensitive limitations of paragraph 7.6 will be applied to him as an interested beneficiary and to any tax-sensitive trustee in a manner that distributions to him and applicable family members (if any) only occur under ascertainable standards. The trustee of the trust will separately account for the Disclaimed Assets.

10.6 Disability. 10.6.1 Suspended from Position. The following positions held under this Agreement are referred to as "Designated Positions": trustee, trustee changer, special trustee, trust advisor and trust advisor appointor. An individual will not hold a Designated Position during any period that the individual is disabled.

10.6.2 Definition. An individual is "disabled" and may not hold a designated position if the individual:

(1) is not able to manage his or her personal business or investment affairs due to mental infirmity, and in the case of a trustee, special trustee and trust advisor, is not able to manage his or her personal business or investment affairs due to physical infirmity;
(2) refuses to provide, or authorize the release by any health care provider, that medical information of the individual needed to make a determination of whether or not the individual is disabled.

An individual will be presumed to be disabled if two physicians licensed to practice medicine examine the individual and make the determination in writing that the individual is disabled as

defined in this subparagraph 10.6.2. The written statement need not indicate the cause for disability. If the individual is in the practice of being seen by a family practice or internal medicine physician or clinic on a regular basis, one of the two examining physicians will be this doctor or a doctor from this clinic if reasonably available to make the examination. No person will be liable to anyone for actions taken in reliance on these physician statements.

10.6.3 Regained Ability. If a disabled individual who held a designated position thereafter becomes able to hold that position again, this individual may choose to accept and hold this position again by delivery of a writing accepting this position again to the then position holder(s).

10.6.4 Release of Records. An individual by acceptance of a designated position under this Agreement authorizes the release by any health care provider of that medical information of the individual needed to make any determination of disability.

10.7 Certain Definitions. 10.7.1 Descendants. The "descendants" of an individual in this Agreement means that individual's (then and subsequent) children, grandchildren and all others who are in a direct line of descent from that individual, and includes adopted individuals who were under age 18 at the time of their adoption and this adopted individual's descendants, but excludes individuals born out of wedlock unless a parent-child relationship is determined under the law of the domicile of the purported parent. Adoptions and paternity determinations recognized under these rules will not affect prior distributions or other interests that have previously vested in possession, but they will enable an individual to receive distributions from remainder or other interests in a trust still in existence. A descendant born after the death of his parent will be deemed to have been alive at the death of the parent.

10.7.2 Assisted Conception Children. A child born as a result of assisted conception will be considered a child of the individual whose status as such child's parent determines whether such child becomes a beneficiary under this Agreement:

(1) if such child was conceived using such individual's ovum or sperm and the ovum or sperm of such individual's spouse, or such individual's ovum or sperm and the ovum or sperm of a donor other than such individual's spouse or the ovum or sperm of a donor and the ovum or sperm of such individual's spouse;
(2) regardless of whether such ovum was fertilized *in utero*;
(3) regardless of whether the fetus was carried to term by such individual or such individual's spouse; and
(4) regardless of whether such individual has been legally adopted by such individual if such adoption is required under applicable law at the time of such child's birth to establish that such individual is such child's parent.

No individual who may be considered a natural parent of a child solely because of having donated ovum or sperm or having acted as a surrogate mother and who would not otherwise be a beneficiary under this Agreement, nor any other individual who is related to such individual by consanguinity or affinity, will ever be a beneficiary under this Agreement. Accordingly, for purposes of interpreting and implementing all provisions of this Agreement, any such individual will be considered to have predeceased me.

10.7.3 *Per Stirpes*. Property that is to be allocated among an individual's descendants, "per stirpes," will be divided for them into as many equal shares as there are children of that individual who are then living and children who have died leaving descendants. A share allocated to a deceased child of that individual will be further divided among this deceased child's descendants in this same manner.

10.7.4 Remaining Trust Assets. The phrase "Remaining Trust Assets" means those assets of the Trust held by the Trustee at my death, plus those assets receivable by this Trustee from my probate estate and any other source as a result of my death, less (1) the distributions described in subparagraph 2.2.1 that do not lapse and (2) the assets applied to paragraph 9.1 items other than transfer taxes incurred at my death and attributable to: (a) a qualified disclaimer by or for Nick of property included in my gross estate or (b) the failure to make a QTIP election.

10.7.5 Spouse. The "Spouse" of a referenced individual means the individual to whom the referenced individual is married at the relevant date of measurement of this status (*e.g.*, the date an individual dies) if the referenced individual and this individual (1) have not become subject to a divorce or separation instrument (as defined in Code §71(b)(2)), (2) there is no pending action or proceeding for legal separation, separate maintenance, divorce, dissolution of marriage, declaration of invalidity of marriage or annulment with respect to them and (3) have not been living separate and apart from each other for more than thirty (30) consecutive days under an informal separation arrangement agreed to between themselves.

10.7.6 Agent. The "Agent" of an individual is (1) that individual's attorney-in-fact acting under a power of attorney to the extent the power of attorney specifically authorizes the action being taken or (2) that individual's duly appointed conservator or guardian to the extent the conservator or guardian gives notice to the Trustee and obtains approval for the action being taken from the court which appointed this conservator or guardian.

10.7.7 Plan. A "Plan" is a contract, account, plan or interest in a plan which is subject to the required minimum distribution rules of Code §401(a)(9) or similar rules.

10.7.8 Personal Items. The phrase "Personal Items" means the tangible personal property of the Kelsey Brown Revocable Trust that is of a personal or household nature not held for investment or business purposes such as jewelry, silver, china, books, pictures, sporting goods, guns, tools, clothing, household furniture and furnishings, personal motor vehicles, recreational vehicles and boats, together with any unexpired insurance on this property and any resulting proceeds from this insurance, and subject to any encumbrances. Blockchain assets are excluded from the definition of Personal Items. If multiple lists or writings refer to an item, the most recent reference will control. Note: With respect to the distribution of these items: (1) if multiple lists or writings refer to an item, the most recent reference will control; (2) I will be deemed to have left only those lists or writings that the Trustee is able to find after reasonable inquiry within ninety (90) days after death and (3) the Trustee will make the directed division of these items as my adult descendants, if any, can agree upon, or if they cannot agree within one hundred twenty (120) days after death, as the Trustee determines.

10.7.9 Education. Except to the extent limited by ascertainable standard intent, the term "education" will include for so long as the Trustee determines that it is being pursued to the advantage of a beneficiary: (1) education at public or private elementary or high schools (including

boarding schools), (2) education at vocational or trade schools, (3) specialized formal or informal training in music, stage, handicrafts, arts or athletic endeavors by private or other instruction, (4) special training at institutions for the mentally or physically handicapped, (5) undergraduate or graduate study in professional or any type field at public or private universities, colleges or other institutions of higher learning, (6) education pursued abroad, (7) tuition, books and incidental charges made by the school or institution attended, (8) travel costs to and from the school or institution and (9) room and board.

10.7.10 Health. Except to the extent limited by ascertainable standard intent, the term "health" includes health insurance premiums, medical, dental, hospital and nursing expenses and expenses of invalidism.

10.7.11 Charity. A "Charity" is an organization, gratuitous transfers to which are deductible as charitable transfers for federal income, estate and gift tax purposes (as then applicable).

10.7.12 My Family. If at any time in the operation of the Bypass Trust an event occurs and there is no person then designated by the terms of the Bypass Trust, or the exercise of a power of appointment, to receive the distribution of the assets of the Bypass Trust, or if assets are designated for allocation to "My Family," the Trustee will allocate these assets, divided into equal shares, to the following individuals, *per stirpes*: Yvonne Louise Westfall, Joy Bonady Shepherd, Emily Marie Hanzlik, Samuel Stephen Hanzlik, Julia Jean Shepherd, and John Bryant Shepherd, IV. If all of the beneficiaries listed in the immediately preceding sentence predecease me without any then-living descendants, the Trustee will allocate these assets, divided into equal shares to my heirs in their applicable proportions, determined as if I had died at the allocation date owning the assets, unmarried, and without a will as a resident of Arkansas. Trust assets allocated to an individual ("Beneficiary") will be held as a separate share and distributed for this Beneficiary and the Beneficiary's family under this paragraph 4.3, except that references to "my descendant" and "my descendants" under subparagraph 4.3.4 will be changed to the descendant or descendants of that individual who stands in the same genealogical position as I stood to the prior Beneficiary who has died without descendants, resulting in the application of these takers-in-default.

10.8 Indemnification by Trust. 10.8.1 Covered Acts. The person holding a Designated Position will be exonerated and indemnified from liability related in any way or manner to the following described action or nonaction (the "Covered Acts") which is taken while holding the position:

(A) Trustee. The Trustee will be exonerated and indemnified from liability arising from action or nonaction, or the exercise or nonexercise of powers, related in any way or manner to investing in or retaining any life insurance policies (including loss or damage suffered in connection with the performance or nonperformance of an insurance policy owned by a trust or payable to it, the financial condition (including insolvency) of any insurer, the exercise or failure to exercise any incident of ownership in a policy and the failure to take reasonable action to prevent a lapse or partial lapse of an insurance policy) unless such action or nonaction was taken in bad faith or with reckless indifference to the purposes of the trust or the interests of the beneficiary(s).

(B) Trustee Changer. The Trustee Changer will be exonerated and indemnified from liability arising from the exercise or nonexercise of trustee change authority unless such action or nonaction was taken in bad faith.

(C) Special Trustee. The Special Trustee will be exonerated and indemnified from liability arising from the exercise or nonexercise of agreed powers and authority unless such action or nonaction was taken in bad faith or with reckless indifference to the purposes of the trust or the interests of the beneficiary(s).

(D) TA Appointor. The TA Appointor will be exonerated and indemnified from liability arising from the exercise or nonexercise of TAA Authority unless such action or nonaction was taken in bad faith.

(E) Trust Advisor. The Trust Advisor will be exonerated and indemnified from liability arising from the exercise or nonexercise of any trust advisor power or authority unless such action or nonaction was taken in bad faith and from liability caused by the acts or omissions of any fiduciary or beneficiary of a trust.

"Liability" refers to all expenses, liabilities, damages or losses incurred as a result of, and with respect to, Covered Acts.

10.8.2 Extent. The person entitled to indemnity will be indemnified out of, and will have a lien on, all trust assets against all liability. This indemnity will extend to all attorney fees, claims, costs, judgments or any other type of loss or expenditure. Attorney fees and costs will be reimbursed to this person for the defense of a judicial review or other action if a final determination is made by a court, or the moving party acknowledges, that this person did not act or fail, choose or refuse to act in bad faith or with reckless indifference to the purposes of the trust or the interests of the beneficiaries, as applicable. These fees and costs may be advanced at the request of this person if the advance must be returned without interest in the event of a final court finding of bad faith or with reckless indifference to the purposes of the trust or the interests of the beneficiaries, as applicable. The indemnity granted under this Agreement will be in addition to any and all rights to indemnity implied by law.

10.8.3 Advised Decision. The relief of the person holding the Designated Position from liability for Covered Acts has been reviewed by me with my attorney. I have made a determination to include the exoneration and indemnity provisions in this Agreement in an attempt (a) to reduce costs associated with life insurance investment by the Trustee, (b) to encourage the acceptance of a Designated Position (such as trust advisor) by the designated or appointed person and (c) to reduce costs incurred by the holder of a Designated Position in taking action or nonaction under the position. I find after this review with my attorney that these provisions are fair and reasonable under the circumstances and even necessary to encourage acceptance of a position. I have voluntarily determined that it is not necessary that I review these provisions with another attorney in order to make a knowledgeable decision about them, which decision has been made voluntarily without coercion or encouragement by my attorney.

10.9 Rules of Construction. 10.9.1 Definitions. Certain persons, terms, phrases or concepts that are initially described or defined in this Agreement are referenced by a capitalized reference which is set forth in parenthesis and quotes after the description or as part of the definition of the person, term, phrase or concept. The meanings of the referenced, explained or defined terms, phrases or concepts will be equally applicable to both the singular and the plural forms of the

referenced, explained or defined terms, phrases or concepts. Reference to "Marital Trust" or "Bypass Trust" in proper context includes the Nonexempt Marital Trust or the Nonexempt Bypass Trust.

10.9.2 Gender, Number, *Etc*. Words expressed in gender and number will include other genders and numbers in proper context. In some instances "(s)" is attached to the singular form of a word for a special emphasis of this construction rule. Use of the word "person" refers to both natural persons (*i.e.*, individuals) and artificial persons (*e.g.*, corporations, partnerships, *etc.*) as appropriate to the context. Use of the word "includes" or a derivative of it is not used in the limitation sense and will mean "including but not limited to," "including without limitation" or similar concept in proper context. Use of the word "and" in a series, and use of the word "or" in a series, includes the concept of "and/or" in proper context. Use of the word "will" is a word of mandate in proper context and equivalent to the traditional use of the word "shall."

10.9.3 Generic. The generic use of a word or phrase that is not capitalized includes in proper context a defined word or phrase that is referenced by capitalization. For example, in the proper context, (A) "marital trust" refers to the Marital Trust or the Nonexempt Marital Trust, (B) "trust" refers to a named trust such as the Bypass Trust and a successor trust created from it and (C) "trustee" and "trustee changer" refers to the "Trustee," the "Trustee Changer" and other similar positions and includes the initial, successor and substitute position holders.

10.9.4 Headings. Headings are for convenience, are not part of this Agreement and cannot be used in a construction of it.

10.9.5 Distribution Standard. Reference to a distribution standard related to health, education, maintenance and support in a manner of living or the like will be construed in such a manner as to be an ascertainable standard for federal estate and gift tax purposes and so that the exercise, release or lapse of a power which is limited by this standard will not be taxable for federal estate and gift tax purposes. Unless otherwise required by this intent or as stated in this Agreement, no Trustee will be required to consider a beneficiary's other readily available resources in making a distribution for the beneficiary under such a standard.

10.9.6 Corporate Trustee. Reference to "corporate trustee" refers to a person with fiduciary powers that is not an individual and to the successors in interest to this person's business. A successor in interest to a corporate trustee of a trust will continue to act as trustee of that trust.

10.9.7 Assets of a Trust. The assets of a trust at any applicable time (*e.g.*, to be allocated appointed or distributed) include assets that are distributable, payable or otherwise transferrable to, but not yet received by, the trustee of the trust (*e.g.*, from a probate estate, another trust, an insurance company or as a result of disclaimer because of the death of an individual).

10.9.8 Tax Terms and Sections. Tax-related terms will mean and be construed in the context of the meanings they have in the Internal Revenue Code of 1986, as amended (which includes applicable successor provisions of other federal revenue codes and the Regulations thereunder). References to "Code Sections" are to these Federal statutes.

10.9.9 Precatory Statements. Precatory trustee action guidelines (as opposed to directions or dollar limits) are suggestions only and do not create enforceable standards under which

an act can be criticized or compelled. It is my belief that the Trustee will be in the best position to interpret and carry out the intentions expressed under changing circumstances.

11. **INTENT AND LIMITATION.** 11.1 Intent. My intentions with respect to the trusts under this Agreement include (in order of priority) that:

(A) The Marital Trusts will qualify for the federal estate tax marital deduction QTIP election.

(B) There will be no inadvertent later loss of S corporation status of a corporation of which a trust under this Agreement is a stockholder.

(C) A trust created under this Agreement or under a power of appointment traceable to this Agreement will not violate those rules of law concerning perpetuities, vesting, suspension of alienation and the like rules that apply to the trust.

(D) Unless otherwise determined intentionally by the trustee to be appropriate, a separate share or a separate trust created under this Agreement will be either an exempt share or trust or a nonexempt share or trust.

(E) Exempt trusts will not be included in the gross estate of a beneficiary.

(F) A trust to which Plan proceeds are paid will not inadvertently not have a designated beneficiary for minimum distribution purposes and such proceeds will be limited to distribution for beneficiaries that will accomplish this purpose.

(G) The interests of beneficiaries in trust assets will be protected from creditors to the maximum extent allowed by applicable law, which includes the intent that trustee distribution directions not limited by an ascertainable standard related to health, education, maintenance and support in a manner of living or the like (*e.g.*, "as the Trustee determines is advisable from time to time") will allow the trustee to hold the trust assets in trust indefinitely and that this discretion is not discretion merely as to time and manner of payment.

(H) In applicable situations, trust assets would not be a countable resource that disqualifies a beneficiary from government assistance.

11.2 Overriding Limitation. Notwithstanding any other provision of this Agreement, no trustee, beneficiary or other person will have an unintended discretion, ability, authority or power, fiduciary or nonfiduciary, nor may this person exercise a discretion, ability, authority or power, fiduciary or nonfiduciary, in a manner, that will frustrate the accomplishment of the taxation or administration goals expressed in this Agreement. The terms of this Agreement will be applied and construed so that the expressed taxation and administration goals are accomplished.

DATED: February 4, 2025

Kelsey Fey Brown

Accepted by **TRUSTEE:**

Kelsey Fey Brown

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the person whose name is subscribed to this Trust Agreement, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that she had executed this Trust Agreement in the capacities stated in the Trust Agreement.

Dated: February 4, 2025

NOTARY PUBLIC

My commission expires:

_____

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

BILL OF SALE

For valuable consideration, the receipt and adequacy of which are hereby acknowledged, Kelsey Fey Brown ("Grantor") grants, bargains, sells, transfers and delivers to Kelsey Fey Brown, as Trustee of the Kelsey Brown Revocable Trust created under Agreement dated February 4, 2025 ("Grantee"), and her successors and assigns all right, title, and interest which Grantor now has or later acquires in and to the following items of tangible personal property (the "Assets"):

All of Grantor's household furniture and furnishings, jewelry, clothing and other similar tangible personal property not held for investment or business use.

RESERVING AND RETAINING for Grantor a life estate in this personal property for and during the term of Grantor's natural life.

The Grantee and her successors in trust as trustee will not be required to account for or safeguard the Assets. Grantor agrees to indemnify and hold the Grantee and her successors in trust as trustee harmless from any liability resulting from use and possession of the Assets.

Grantor conveys the Assets in "as is" condition, without any warranties of physical condition, including, but not limited to any warranties of merchantability or fitness for any particular purpose.

DATED: February 4, 2025

Kelsey Fey Brown

Accepted by **TRUSTEES:**

Kelsey Fey Brown

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown,** known (or proved) to me (a duly qualified notary public for this county and state) to be the person whose name are subscribed to this Bill of Sale, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that she had executed this Bill of Sale in the stated capacities.

Dated: February 4, 2025

NOTARY PUBLIC

My commission expires:

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

KelseyBrown BillOfSale 25-0204.wpd

L202506320
BENTON CO. AR FEE $20.00
PRESENTED & E-RECORDED
02/06/2025 09:55:53 AM
BRENDA DESHIELDS
Circuit Clerk & Recorder

WARRANTY DEED

KNOW ALL MEN BY THESE PRESENTS:

THAT WE, Nicholas Coleman and Kelsey Fey Brown, husband and wife ("**Grantors**"), for and in consideration of the sum of Ten Dollars ($10.00) and other good and valuable consideration in hand paid by Nicholas Lynn Coleman, Trustee of the Nicholas Coleman Revocable Trust created the 4th day of February 2025, and Kelsey Fey Brown, Trustee of the Kelsey Brown Revocable Trust created the 4th day of February 2025 ("**Grantees**"), each **an undivided one-half (½) interest** as tenants in common and not as joint tenants, the receipt of which is hereby acknowledged, do hereby grant, bargain, sell and convey unto the said Grantee, and unto its successors and assigns forever, the following described land situated in the County of Benton, and State of Arkansas as set forth below:

Lot 27, Oaklawn Hills Subdivision, to the City of Bentonville, Benton County, Arkansas, as shown on plat record 2006 at pages 560, 561, 562.

APN #: 01-14267-000

To have and to hold the same unto the said Grantee, and unto its successors and assigns forever, with all appurtenances thereunto belonging.

And the said Grantors hereby covenant with said Grantee that they will forever warrant and defend the title to said lands against all lawful claims whatsoever.

WITNESS our hand and seal on this 4th day of February 2025.

Nicholas Coleman

Kelsey Fey Brown

This Instrument Was Prepared By:
Adam C. Flock
RMP LLP
11601 Pleasant Ridge Road, Suite 101
Little Rock, Arkansas 72212

I certify under penalty of false swearing that documentary stamps or a documentary symbol in the legally correct amount have been placed on this instrument. Exempt or no consideration paid if none shown.

Grantee or Grantee's Agent
Grantee's Address: 2211 NW Willow Street
Bentonville, AR 72712

ACKNOWLEDGMENT

STATE OF ARKANSAS)
)ss.
COUNTY OF WASHINGTON)

On this 4th day of February 2025, before me, the undersigned, a Notary Public, duly commissioned, qualified, and acting, within and for said County and State, appeared in person the within named Nicholas Coleman and Kelsey Fey Brown, husband and wife, to me personally well-known or satisfactorily proven to be the Grantors in the foregoing deed, and stated and acknowledged that they had so signed, executed, and delivered the same for the consideration, uses, and purposes therein mentioned and set forth.

IN TESTIMONY WHEREOF, I have hereunto set my hand and official seal this 4th day of February 2025.

Notary Public

(S E A L)

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454

CERTIFICATE OF RECORD
STATE OF ARKANSAS, COUNTY OF BENTON
I hereby certify that this instrument was
Filed and Recorded in the Official Records
in **Doc Num L202506320**
02/06/2025 09:55:53 AM
Brenda DeShields
BENTON COUNTY Circuit Clerk & Recorder